



सत्यमेव जयते

INDIA NON JUDICIAL

Government of National Capital Territory of Delhi

e-Stamp

Certificate No. : IN-DL99253645734580U
Certificate Issued Date : 10-Oct-2022 02:12 PM
Account Reference : IMPACC (IV)/ dl813603/ DELHI/ DL-DLH
Unique Doc. Reference : SUBIN-DL81360377265308770812U
Purchased by : HORIZON INDUSTRIAL PARKS PRIVATE LIMITED
Description of Document : Article 5 General Agreement
Property Description : Not Applicable
Consideration Price (Rs.) : 0
(Zero)
First Party : HORIZON INDUSTRIAL PARKS PRIVATE LIMITED
Second Party : VIKAS YADAV AND OTHERS
Stamp Duty Paid By : HORIZON INDUSTRIAL PARKS PRIVATE LIMITED
Stamp Duty Amount(Rs.) : 500
(Five Hundred only)



Please write or type below this line

Statutory Alert:

1. The authenticity of this Stamp certificate should be verified at 'www.shcilestamp.com' or using e-Stamp Mobile App of Stock Holding. Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid.
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Certificate No.	: IN-DL99253386403806U
Certificate Issued Date	: 10-Oct-2022 02:11 PM
Account Reference	: IMPACC (IV)/ dl813603/ DELHI/ DL-DLH
Unique Doc. Reference	: SUBIN-DL81360377267313759490U
Purchased by	: HORIZON INDUSTRIAL PARKS PRIVATE LIMITED
Description of Document	: Article 5 General Agreement
Property Description	: Not Applicable
Consideration Price (Rs.)	: 0 (Zero)
First Party	: HORIZON INDUSTRIAL PARKS PRIVATE LIMITED
Second Party	: VIKAS YADAV AND OTHERS
Stamp Duty Paid By	: HORIZON INDUSTRIAL PARKS PRIVATE LIMITED
Stamp Duty Amount(Rs.)	: 500 (Five Hundred only)



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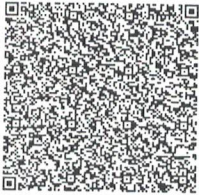
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Certificate No.	: IN-DL99253029559658U
Certificate Issued Date	: 10-Oct-2022 02:11 PM
Account Reference	: IMPACC (IV)/ dl813603/ DELHI/ DL-DLH
Unique Doc. Reference	: SUBIN-DL81360377268161312448U
Purchased by	: HORIZON INDUSTRIAL PARKS PRIVATE LIMITED
Description of Document	: Article 5 General Agreement
Property Description	: Not Applicable
Consideration Price (Rs.)	: 0 (Zero)
First Party	: HORIZON INDUSTRIAL PARKS PRIVATE LIMITED
Second Party	: VIKAS YADAV AND OTHERS
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INDIA NON JUDICIAL

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e-Stamp

Certificate No.	: IN-DL99252639880581U
Certificate Issued Date	: 10-Oct-2022 02:10 PM
Account Reference	: IMPACC (IV)/ dl813603/ DELHI/ DL-DLH
Unique Doc. Reference	: SUBIN-DL81360377268776855669U
Purchased by	: HORIZON INDUSTRIAL PARKS PRIVATE LIMITED
Description of Document	: Article 5 General Agreement
Property Description	: Not Applicable
Consideration Price (Rs.)	: 0 (Zero)
First Party	: HORIZON INDUSTRIAL PARKS PRIVATE LIMITED
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Stamp Duty Amount(Rs.)	: 500 (Five Hundred only)



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LLP ACQUISITION AGREEMENT

DATED OCTOBER 14, 2022

AMONGST

VIKAS YADAV

AND

CHANDERVATI YADAV

AND

VERTICAL LOGISTIC PARK LLP

AND

HORIZON INDUSTRIAL PARKS PRIVATE LIMITED

AND

VERTICAL WAREHOUSE HOLDINGS PRIVATE LIMITED

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LLP ACQUISITION AGREEMENT

This LLP Acquisition Agreement is executed on this 14th day of October, 2022 (the “**Execution Date**”) by and amongst:

1. **MR. VIKAS YADAV**, an Indian resident individual, with permanent account number AANPY7100N and residing at 1, Palm Avenue, Church Road, Vasant Kunj, South West Delhi 110070 (hereinafter referred to as “**Partner 1**”, which expression shall, unless repugnant to the context or meaning thereof, include his successors, executors, legal heirs, administrators, and permitted assigns);
2. **MS. CHANDERVATI YADAV**, an Indian resident individual, with permanent account number AAAPW6076C and residing at B-11, 8033, Vasant Kunj, New Delhi-110070 (hereinafter referred to as “**Partner 2**”, which expression shall, unless repugnant to the context or meaning thereof, include her successors, executors, legal heirs, administrators, and permitted assigns);
3. **VERTICAL LOGISTIC PARK LLP**, a limited liability partnership incorporated under the Limited Liability Partnership Act, 2008 bearing LLPIN AAJ-7048 and with permanent account number AAPFV2582H, and having its registered office at 78 Kapashera, New Delhi, South West Delhi, Delhi – 110037, (hereinafter referred to as the “**LLP**”, which expression shall include its successors, legal representatives and permitted assigns);
4. **HORIZON INDUSTRIAL PARKS PRIVATE LIMITED**, a company incorporated under the Companies Act, 1956 and having its registered office at I Floor, Embassy Point, 150 Infantry Road, Bangalore, Karnataka - 560001 with permanent account number AACCJ2346P, (hereinafter referred to as “**HIPPL**”, which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns); and
5. **VERTICAL WAREHOUSE HOLDINGS PRIVATE LIMITED**, a company incorporated under the Companies Act, 2013 bearing corporate identification number U63090DL2016PTC305445, and having its registered office at 78 Kapashera, New Delhi, South West Delhi, Delhi – 110037, (hereinafter referred to as “**Confirming Party**” or “**Licenser**”, which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns).

Partner 1 and Partner 2 may individually be referred to as a “**Partner**” and collectively be referred to as the “**Partners**”.

The Partners, the LLP, HIPPL and the Confirming Party may hereinafter be referred to individually as a “**Party**” and collectively as the “**Parties**”.

WHEREAS

- A. The LLP is engaged in the Business (*as defined hereinafter*).
- B. The Partners had incorporated the LLP on June 14, 2017 and executed a limited liability partnership agreement dated June 15, 2017, and as further amended *vide* First Supplementary to the Limited Liability Partnership Agreement dated August 22, 2022 and Amended and Restated Limited Liability Partnership Agreement dated August 25, 2022

(collectively, referred to as the “**Original LLP Agreement**”), for the purpose of carrying on the Business (as defined below). The aggregate Capital Contributions of the Partners as of the Execution Date is more particularly set out in Part A of **SCHEDULE I**.

- C. The Partners are desirous of selling and HIPPL is desirous of purchasing the entire Aggregate Partnership Interest (*as defined hereinafter*), in the manner provided in this Agreement, in consideration for the Purchase Consideration (*as defined hereinafter*).
- D. The Parties are now entering into this Agreement to record the mutual rights and obligations in relation to the purchase of the Aggregate Partnership Interest by HIPPL from the Partners and other matters in connection therewith.

NOW THEREFORE, in consideration of the foregoing and other good and valuable consideration, the receipt and adequacy of which are hereby expressly acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

“**Accounting Principles**” shall mean the accounting principles, methods, practices, policies, estimation techniques, classifications and methodologies which, in each case, are in accordance with Indian GAAP and are applied on a consistent basis with the audited Financial Statements for March 31, 2022;

“**Act**” shall mean the Limited Liability Partnership Act, 2008, as applicable, and as may be amended, modified, supplemented or re-enacted thereof from time to time;

“**Adjustment Amount**” shall have the meaning ascribed to the term in Clause 5.4(iii);

“**Affiliate**” shall mean, with respect to any Person, any other Person, which, directly or indirectly, Controls, is Controlled by or is under common Control with the first named Person, whether acting individually or in concert, including any right arising by virtue of shareholding, management rights, Contract or otherwise. In relation to HIPPL, the term “**Affiliate**” shall include the funds directly and indirectly owned, managed and/or advised by Blackstone Inc. or any of its Affiliates. HIPPL shall not be considered an Affiliate of the Partners (or prior to the Closing, the LLP), and *vice versa*, for any purposes hereunder. If such Person is an individual, the term “**Affiliate**” shall include Relatives of such individual. Partner 1 and Partner 2 shall always be considered as Affiliates of each other;

“**Agreement**” shall mean this LLP Acquisition Agreement, together with the Schedules and Annexures hereto, as may be amended, modified or supplemented from time to time, in accordance with its terms;

“**Air Act**” shall mean Air (Prevention and Control of Pollution) Act, 1981;

“**Anti-Corruption Laws**” shall mean any Law of any jurisdiction in which a Party performs business, or of the United States, or of the United Kingdom, including without limitation, the (Indian) Prevention of Corruption Act, Central Act No.49\1988, the Foreign Corrupt Practices Act of 1977, as amended, the U.K. Bribery Act of 2010, and where applicable, legislation enacted by member states and signatories implementing the OECD

Convention Combating Bribery of Foreign Officials;

“Anti-Money Laundering Laws” shall mean applicable financial record keeping and reporting requirements of the (Indian) Prevention of Money Laundering Act, 2002, as amended, the U.S. Currency and Foreign Transaction Reporting Act of 1970, as amended, the U.S. Money Laundering Control Act of 1986, as amended, and all Laws related to the prohibition of money laundering or the financing of terrorism of other jurisdictions where a Party conducts business or owns assets, and any related or similar Law issued, administered or enforced by any Governmental Authority;

“Assets” shall mean assets or properties of every kind, nature, character and description (whether immovable, movable, tangible, intangible, absolute, accrued, fixed or otherwise) as operated, hired, rented, owned or leased, including Cash, Cash Equivalents, receivables, securities, accounts and note receivables, real estate, , patents, copyrights, domain names, brands and other intellectual property, raw materials, inventory, furniture, fixtures and insurance;

“Benefit Plan” shall have the meaning ascribed to it in paragraph 21.6 of **SCHEDULE IV**;

“Business” shall mean the business of owning, constructing, developing, operating and managing the Project;

“Business Days” shall mean days (other than Saturday or Sunday) on which banks are generally open for operation in New York, Singapore, Cayman Islands and Bangalore and Mumbai in India;

“Capital Contribution” shall mean all amounts contributed by each Partner to the LLP which shall be calculated towards such Partner’s fixed capital and/or current capital in the LLP;

“Cash” means the aggregate of all cash held by or credited to the account of the LLP (but excluding any cash that is restricted for use like margin money deposited with banks, but including any amounts deposited in the LLP’s debt service reserve Account for purposes of servicing Financial Indebtedness) determined in accordance with Accounting Principles and computed in a manner consistent with the Example Purchase Consideration Computation (in respect of the line items, adjustments, accounting principles and practices referred to therein) and the accounting principles set forth in Part A of **SCHEDULE VII**;

“Cash Equivalents” means, without double-counting any amounts already included in the definition of Cash, marketable securities, and deposits (including any accrued interest thereon) that are readily collectible into Cash (but excluding any cash that is restricted for use like margin money deposited with banks) determined in accordance with Accounting Principles and computed in a manner consistent with the Example Purchase Consideration Computation (in respect of the line items, adjustments, accounting principles and practices referred to therein) and the accounting principles set forth in Part A of **SCHEDULE VII**;

“Claim” shall mean any claim raised under Clause 11.1 ;

“Closing” shall mean the completion, fulfillment and execution of the sale and purchase of the Aggregate Partnership Interest between Partners and HIPPL in accordance with this

Agreement;

“Closing Date” shall mean the date on which Closing takes place in accordance with Clause 5;

“Closing Long Stop Date” means the 15th (fifteenth) Business Day after the later of (i) date of issue of the original Conditions Precedent Satisfaction Letter or (ii) where HIPPL disputes satisfaction of any Condition Precedent or requires further documents evidencing fulfillment of Conditions Precedent in accordance with Clause 4.4, issue of the revised Conditions Precedent Satisfaction Letter as set out in Clause 4.4, or otherwise as extended in accordance with Clause 3.2(ii). The Closing Long Stop Date may be extended in writing upon mutual agreement of HIPPL and the Partners;

“Closing Resolutions” shall mean the following resolutions of the LLP:

- (i) approving the sale of the Aggregate Partnership Interest from the Partners to HIPPL (and its nominee) and change in Designated Partners to persons nominated by HIPPL;
- (ii) taking on record the Closing Restated LLP Agreement;
- (iii) revoking any authority granted to the Partners and existing Designated Partners including to operate any accounts of LLP maintained with banks or other financial institutions;
- (iv) approving: (a) the resignation of the Partners as partners of the LLP; and (b) removal of Partners as the designated partners of the LLP;
- (v) approving the admission of HIPPL and its nominee as partners of the LLP;
- (vi) appointing designated partners nominated by HIPPL and its nominee as designated partners of the LLP;
- (vii) approving the amendment and restatement of the Original LLP Agreement to capture any internal governance and such other requirements recommended by HIPPL, in form and substance acceptable to HIPPL; and
- (viii) approving any other matters required by HIPPL.

“Closing Restated LLP Agreement” shall mean the restated and amended agreement to the Original LLP Agreement, which is in form and substance acceptable to HIPPL;

“Completed Project” shall mean Warehouse 1 and Warehouse 2;

“Completed Project Land” shall mean the land parcels underlying Warehouse 1 and Warehouse 2 and shall be more particularly identified as set out in **Annexure A**;

“Conditions Precedent” shall collectively mean the conditions specified in **SCHEDULE II**;

“Conditions Precedent Satisfaction Letter” shall have the meaning ascribed to it in Clause 4.4;

“Conditions Subsequent” shall have the meaning ascribed to the term in Clause 9.1;

“Consents” shall mean any approval, consent, ratification, waiver, notice or other authorization of or from or to any Third Party, including banks and financial institutions (other than a Governmental Approval) that may be required for (i) the execution of the Transaction Documents; and/or (ii) the consummation of the transactions contemplated under the Transaction Documents;

“Contract” shall mean, with respect to any Person, any agreement, contract, obligation, promise, deed, arrangement, declaration, estoppel, understanding, subcontract, lease, instrument, note, warranty, insurance policy, benefit plan or legally binding commitment or undertaking of any nature, whether written or oral or express or implied, in each case which is enforceable against and/or by such Person under applicable Law;

“Control” (including with correlative meaning, the terms **“Controlled by”**, **“Controlling”** and **“under common Control with”**) shall mean, with respect to any Person, the acquisition or control, directly or indirectly, of more than 50% (fifty per cent) of the voting rights or of the issued share capital of such Person or the right to nominate, appoint and/or remove all or the majority of the members of the board of directors or other governing body of such Person, the power to direct or cause the direction of the management, to exercise significant influence on the management or policies of such Person, in each case, whether obtained directly or indirectly, and whether obtained by ownership of share capital, the possession of voting rights, through Contract or otherwise;

“CP Fulfilment Long Stop Date” shall mean the date immediately following the expiry of 12 (twelve) months from the Execution Date or such later date as HIPPL may, in its sole discretion notify the LLP and the Partners in writing;

“Current Assets” shall mean receivables, inventories, loans and advances and other current assets (excluding fixed assets, land, investments in fixed assets, capital work in progress and/or inventory and any goods and services taxes on such fixed assets, capital work in progress and/or inventory) of the LLP which are recoverable in the Ordinary Course of the LLP, determined in accordance with Accounting Principles and computed in a manner consistent with the Example Purchase Consideration Computation (in respect of the line items, adjustments, accounting principles and practices referred to therein) and the provisions of Part A of **SCHEDULE VII**; provided that notwithstanding the foregoing, Current Assets shall exclude Cash, Cash Equivalents and receivables outstanding for, or not realisable or realised within a period of 30 (thirty) days or more;

“Current Liabilities” shall mean trade payables, payable for capital creditors, provisions and any other liabilities of the LLP (including but not limited to pending tenant capex and unpaid leasing commission), provision for tax and advanced rent collected, determined in accordance with Accounting Principles and computed in a manner consistent with the Example Purchase Consideration Computation (in respect of the line items, adjustments, accounting principles and practices referred to therein) and the provisions of Part A of **SCHEDULE VII**;

“Deductible Amounts” shall mean without duplication the following amounts, if any on the Closing Date:

- (i) unreconciled differences between balances outstanding as per balance

confirmation from suppliers or creditors and corresponding balances recorded in the Estimated Closing Date Financial Statements;

- (ii) any costs paid or payable, and any Liabilities owing, by the LLP to a Third Party in relation to the transaction incurred by the LLP pursuant to the terms of the Transaction Documents, including any fees payable by the LLP to any advisors appointed in connection with the transactions contemplated under the Transaction Documents;
- (iii) any other Liabilities not expressly and specifically recorded in the Estimated Closing Date Financial Statements, including any unpaid liabilities in relation to capital expenditure for the Completed Project;
- (iv) audit adjustments including any provisions not Fully and Fairly Disclosed in the Estimated Closing Date Financial Statements; and
- (v) any other items agreed in writing between the Parties, computed in a manner consistent with the Example Purchase Consideration Computation (in respect of the line items, adjustments, accounting principles and practices referred to therein) and the provisions of Part A of **SCHEDULE VII**;

“Delivered Financial Statements” shall mean the audited Financial Statements of the LLP for the financial year ended March 31, 2022 and the management certified Financial Statements of the LLP as on March 31, 2022;

“Designated Partner(s)” shall mean any Partners of the LLP designated as such pursuant to the provisions of the Original LLP Agreement;

“Development Management Agreement” shall mean the development management agreement to be executed between the LLP, the Partner 1 and Confirming Party in relation to Warehouse 3, on the Closing Date;

“Disclosure Letter” shall mean the letter from Partners to HIPPL issued on Execution Date, in the form annexed hereto as **SCHEDULE V**, providing specific Full and Fair Disclosures as against specific Representations (excluding Fundamental Warranties and Tax Warranties). For clarity, the Disclosure Letter shall form an integral part of this Agreement;

“DP World” shall have the meaning ascribed to the term in paragraph 16 of **SCHEDULE II**;

“DP World Lease Addendum” shall have the meaning ascribed to the term in paragraph 16 of **SCHEDULE II**;

“DP World Lease Deed” shall have the meaning ascribed to the term in paragraph 16 of **SCHEDULE II**;

“DP World Outstanding Rentals” shall have the meaning ascribed to the term in Clause 10.13(i);

“EC I” shall mean environmental clearance dated August 20, 2018 issued by the State

Environment Impact Assessment Authority, Haryana;

“**EC II**” shall mean environmental clearance dated April 26, 2021 issued by the State Environment Impact Assessment Authority, Haryana;

“**Encumbrance**” shall mean:

- (i) Any mortgage, charge (whether fixed or floating), pledge, equitable interest, lien, hypothecation, assignment, deed of trust, title retention, security interest, encumbrance of any kind securing or conferring any priority of payment in respect of any obligation of any Person;
- (ii) Any proxy, power of attorney, voting trust, interest, option, right of other Persons, right of set off, right of first offer, refusal or Transfer restriction or any other right similar to the foregoing in favour of any Person;
- (iii) Any adverse claim as to title, possession or use, conditional sale contract, co-sale contract, trust or other title exception of whatsoever nature;
- (iv) Other commitment, restriction, limitation or encumbrance of any kind or nature whatsoever including restriction on use, restrictions on voting rights, restrictions on Transfer (including negative liens, non-disposal undertakings/covenants), restrictions on receipt of income or restrictions on exercise of any other attribute of ownership; and
- (v) Any Contract, whether conditional or otherwise, to give or refrain from giving effect to any of the foregoing;

in each case, of any nature whatsoever, and the terms “**Encumber**” and “**Encumbering**” shall be construed accordingly;

“**Environmental Laws**” shall mean any applicable Law relating to the environment, pollution of the environment, health or safety or hazardous substances, which directly or indirectly applies to or affects the LLP, Project or Project Land, and shall include the EPA, Air Act, Water Act and applicable Laws in relation to fire safety;

“**Environmental Permit**” means any Governmental Approval which is issued or granted to the LLP or required by the LLP in relation to Environmental Laws;

“**Environmental Proceeding**” shall mean a civil, criminal, constitutional, equitable, arbitration, administrative or other proceeding initiated by any Person concerning Environmental Law and Environmental Permits;

“**EPA**” shall mean the Environment (Protection) Act, 1986;

“**Estimated Closing Date Financial Statements**” means the management certified Financial Statements of the LLP which shall include good faith estimates of the balance sheet of the LLP as on the Closing Date, with line item estimates for Cash, Cash Equivalents, Current Assets, Financial Indebtedness, Security Deposits and Current Liabilities;

“Estimated Purchase Consideration” shall have the meaning ascribed to it in Clause 3.2(i);

“Example Purchase Consideration Computation” shall mean the illustrative computation of the Purchase Consideration prepared using the Signing Financial Statements assuming that March 31, 2022 is the Closing Date, and as set out more particularly in Part B of **SCHEDULE VII**;

“Financial Indebtedness” means, with respect to the LLP, without duplication, any obligation for the payment or repayment of money for or in respect of:

- (i) moneys borrowed, together with applicable interest, fees and/or other charges payable in connection with such borrowings;
- (ii) any amount raised by acceptance under any acceptance credit, bill acceptance or bill endorsement facility or dematerialized equivalent;
- (iii) the amount of any liability in respect of any lease or hire purchase contract which would, in accordance with Accounting Principles, be treated as a finance or capital lease;
- (iv) any guarantee, indemnity or any other contingent liability (including commitments under any comfort letters or letters of credit);
- (v) any derivative transaction entered into in connection with protection against or to benefit from fluctuation in any rate or price including any credit support arrangement in respect thereof (and, when calculating the value of any derivative transaction, only the marked to market value shall be taken into account);
- (vi) receivable sold or discounted which has the effect of a future financial obligation of the LLP or any subsidiary;
- (vii) any amount raised or payable under any other transaction (including any forward sale or purchase agreement) having the commercial effect of a borrowing (including under Accounting Principles), including any obligation of the LLP to pay in relation to any call or put option relating to any interest owned by a party in the LLP;
- (viii) amounts of any payables owed by the LLP to the Partners and/or their respective Related Parties;
- (ix) amount of any obligation to pay the deferred and unpaid purchase price of property, plant and equipment; or
- (x) amount of any liability in respect of any guarantee or indemnity for any of the items referred to in paragraphs (i) to (ix) above;

“Financial Statements” shall mean the balance sheets, profit and loss account statements, and cash flows statements (audited or unaudited, as the case may be) together with notes thereto;

“Foreign Exchange Laws” means the Foreign Exchange Management Act, 1999, the rules and regulations framed thereunder, the circulars and press notes issued by the Department for Promotion of Industry and Internal Trade / Reserve Bank of India in relation to such act, rules and regulations, and the consolidated foreign direct investment policy issued by the Government of India, as may be amended, modified, supplemented or re-enacted from time to time;

“Framework Agreement” shall mean the framework agreement to be executed between Palra Estate Private Limited, the Partner 1, the Partner 2 and HIPPL on or about the Closing Date;

“Full and Fair Disclosure” (including with correlative meaning, the term **“Fully and Fairly Disclosed”**) shall mean a disclosure made with sufficient details such that HIPPL is able to reasonably identify and evaluate the nature and scope of the matter disclosed, without having to refer to any other information or documents, and no information or other details shall have been omitted to make such disclosure misleading in any material respect;

“Fundamental Warranties” shall mean the warranties set out in paragraphs 1, 2, 3, 4, 6, 8 and 14 of **SCHEDULE IV**;

“Government Official” shall mean (i) an officer, agent or employee of a Governmental Authority or political party or any public international organization, (ii) a candidate for government or political office, or (iii) an agent, officer, or employee of any entity owned or controlled by a Governmental Authority;

“Governmental Approvals” shall mean any permission, approval, consent, license, permit, Order, decree, authorization, registration, filing, notification, exemption or ruling to or from or with any Governmental Authority;

“Governmental Authority” shall mean any nation or government or any province, state or any other political subdivision thereof, any entity, authority or body exercising executive, legislative, judicial, regulatory or administrative functions of or pertaining to government, including any government authority, agency, department, board, commission or instrumentality, any court, tribunal or arbitrator and any securities exchange or body or authority regulating such securities exchange;

“Handover Documents” shall mean all the documents, permits, licenses, title documents, books of accounts, and any corporate, tax or other records relating to the LLP and/or the Project and such documents shall include the list of documents to be provided by HIPPL prior to the Closing Date;

“HIPPL Notice” shall have the meaning ascribed to in Clause 3.2(ii);

“HWM Rules” shall mean Hazardous and Other Wastes (Management and Transboundary Movement) Rules, 2016, issued in terms of the EPA;

“Identified Accounting Firm” shall mean any of the below accounting firms (or any of their Indian associates and Affiliates):

- (i) Ernst and Young;
- (ii) PriceWaterhouseCoopers; and

(iii) KPMG,

or any of their Indian associates or Affiliates.

“Improper Payment” shall mean any bribe, improper rebate, payoff, influence payment, kickback, or any other item of value provided with the intent to obtain or secure an undue business advantage;

“Incentive” shall mean any inducement, incentive or concession of any nature and however named or structured, including any premium or capital payment, any period of abatement or reduction of rent, the payment of other moneys, or the supply of any finishes or fit out, paid or allowed to a tenant or any person associated with a tenant as an inducement or incentive to enter into a Lease;

“Indemnified Persons” collectively means HIPPL, its Affiliates, the LLP, and each of their respective directors, officers, representatives, employees and agents;

“Indemnifying Notice” shall have the meaning ascribed to it in Clause 11.2(i);

“Indemnifying Persons” collectively means the Partners;

“Indian GAAP” means the generally accepted accounting principles as issued by the Institute of Chartered Accountants of India for financial reporting in the Republic of India, in effect, as of the relevant date;

“Information” shall have the meaning ascribed to it in Clause 13.1;

“Intellectual Property” shall have the meaning ascribed to it in paragraph 22.2 of SCHEDULE IV;

“KMP” shall mean key personnel of the LLP, including Mr. Vikas Yadav and Ms. Chandervati Yadav;

“Knowledge” of any Person, when used in relation to the Partners, shall mean (i) actual knowledge of the Knowledge Personnel; and (ii) also the knowledge, information, or awareness any Knowledge Personnel would have had assuming such Knowledge Personnel had made reasonable, due and careful enquiries;

“Knowledge Personnel” shall mean in relation to the Partners and LLP, (i) the Partners and Designated Partners of the LLP; and (ii) KMP of the LLP;

“Law” shall mean any statute, law, regulation, ordinance, code, rule, judgment, notification, rule of common law, Order, decree, bye-law, Governmental Approval, directive, guideline, requirement or other governmental restriction, or any similar form of decision of, or determination by, or any interpretation, policy or administration, each having the force of law issued by any Governmental Authority having jurisdiction over the matter in question, in each case, whether in effect as of the Execution Date or thereafter;

“Lease” means, in respect of any real property, any lease, sublease, tenancy, license or other right to occupy or make use of such real property or any portion thereof;

“Liabilities” shall mean all Financial Indebtedness, liabilities and obligations (whether

accrued or fixed, absolute or contingent, matured or un-matured or determined or determinable and including those arising under any Law, Order, Litigation or Contract), and shall include any liabilities towards trade creditors, relating to Taxes, book overdrafts, customer deposits and provisions for gratuity or leave encashment or fringe benefit Taxes or statutory dues;

“**Licensee**” shall have the meaning ascribed to the term in paragraph 1 of **Annexure F**;

“**Litigation**” shall mean suits, civil and criminal actions, arbitration proceedings, investigations initiated by any Governmental Authority, legal notices, disputes, writ petitions, investigations, and all other legal proceedings, or written claims of any kind, pending, whether before any court, judicial or quasi-judicial or regulatory authority, tribunal, Governmental Authority or any arbitrator;

“**LLP Information**” shall mean all information and other materials in relation to the LLP, the Project, and/or the Project Land, including any information regarding title over Assets, any Financial Indebtedness, any Contracts, or litigation of the LLP;

“**Loss**” or “**Losses**” means any and all direct losses, Liabilities (including payment of Taxes), claims, demands, actions, suits, judgments, awards, fines, fees, settlements, damages (whether or not resulting from Third Party Claims), charges, reasonable costs, out-of-pocket expenses (including attorneys’ and accountants’ fees), interests and penalties, including loss of revenue/profits and reduction or diminution in value of HIPPL’s interest in the LLP, the Project or Project Land and in each case whether or not resulting from any Third Party Claim. For the avoidance of doubt, this term “**Losses**” shall not include any remote or unforeseeable losses;

“**Material Adverse Effect**” shall mean (i) any action initiated by any institutional or other lender for closure, foreclosure, re-call, default, requiring early re-payment, etc. against the LLP, or (ii) any event, occurrence or fact, or series of events, occurrences or facts, that individually or in the aggregate, has had or would reasonably be expected to have an adverse change to any of the following:

- (i) the validity or enforceability of any of the Transaction Documents, including, without limitation, the validity or enforceability of any of the transactions contemplated thereby, or the rights or remedies of the Parties (as applicable) thereunder;
- (ii) demands by all or any of the creditors of the LLP for foreclosure, re-call, default, request for re-payment, etc.;
- (iii) the Assets (including the Project Land), Business, property, liabilities, financial condition, results, operations or prospects of the LLP;
- (iv) development, completion, operation, management and/or leasing of the Project as contemplated under the Transaction Documents;
- (v) the ability of the LLP or Partners to perform their respective obligations under any of the Transaction Documents; and/or
- (vi) the status and validity/continued survival in full force and effect of any Contracts,

Consents or Governmental Approvals required for the LLP to carry on the Business or the status and the validity/continued survival in full force and effect of any Contracts, Consents or Governmental Approvals required for LLP to carry on the Business in a manner as contemplated under the Transaction Documents;

“**OC**” shall mean the occupancy certificate dated April 29, 2022 in relation to Warehouse 1 and dated August 30, 2022 in relation to Warehouse 2, both issued by the Director of the Town and Country Planning Department;

“**OFAC**” shall mean Office of Foreign Assets Control of the U.S. Department of Treasury;

“**Order**” shall mean any order, injunction, judgment, decree, ruling, writ, assessment or award of a court, arbitration body or panel or other Governmental Authority;

“**Ordinary Course**” shall mean an action taken by or on behalf of a Person that is:

- (i) recurring in nature and magnitude to actions customarily taken, without any separate or special authorization, in the ordinary course of the Person’s normal day-to-day operations and of other Persons that are engaged in businesses or industry similar to the Person’s business or industry;
- (ii) taken in accordance with (a) applicable Law and (b) sound and prudent business practices by other Persons engaged in the business and industry substantially similar to the Person’s business and industry; and
- (iii) consistent with past practice and existing policies of such Person;

provided that any actions or measures taken in the calendar year 2020 or thereafter as a response to issues or concerns arising out of the Covid-19 pandemic shall not be considered to be in the Ordinary Course;

“**Outstanding Related Party Loans**” shall have the meaning ascribed to such term in paragraph 10.9 of **SCHEDULE IV**;

“**Partners’ Bank Accounts**” shall mean the bank accounts maintained by each of the Partners, the details of which are as follows:

- (i) Partner 1:

Bank name	Axis Bank
Bank address	Iffco Chowk,Gurgaon
Beneficiary name	VIKAS YADAV
Account number	921010031749160
IFSC Code	UTIB0003683

- (ii) Partner 2:

Bank name	Axis Bank
Bank address	Iffco Chowk,Gurgaon
Beneficiary name	CHANDERVATI YADAV

Account number	921010031749184
IFSC Code	UTIB0003683

“**Partnership Interest**” shall, with reference to a Partner, means the entire rights, title and interest in the LLP held by such Partner, including but not limited to the below: (i) such Partner’s aggregate Capital Contribution; (ii) such Partner’s right to receive proceeds at the time of distribution of the LLP; (iii) such Partner’s right to a share in the profits and/or revenues of the LLP; (iv) such Partner’s right to participate in the management and conduct of the activities of the LLP, and the term “**Aggregate Partnership Interest**” shall mean the aggregate Partnership Interests held by all the Partners;

“**Person**” shall mean any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, union, association, Governmental Authority or any agency or political subdivision thereof or any other entity that may be treated as a person under applicable Law;

“**Post -Closing Review Period**” shall mean the period of 90 (ninety) days from the Closing Date;

“**Pre-Closing Resolutions**” shall mean the resolutions of the LLP (drafts of which shall be approved in writing by HIPPL) authorising the execution and performance of the Transaction Documents by the LLP and the Partners;

“**Project**” shall mean: (i) the Completed Project, (ii) the Completed Project Land, (iii) the Under-Construction Project and (iv) the Under-Construction Project Land, and shall also include all other buildings, structures, improvements and fixtures located on the Project Land and common infrastructural facilities and amenities for the Project, together with all easements and other rights and interests appurtenant thereto;

“**Project Land**” shall mean: (i) the Completed Project Land and (ii) the Under-Construction Project Land;

“**Purchase Consideration**” shall mean the TEV **plus** (i) (a) Cash of the LLP as on the Closing Date; (b) Cash Equivalents of the LLP as on the Closing Date; and (c) Current Assets of the LLP as on the Closing Date; **less** (ii) (a) Financial Indebtedness of the LLP together with all accrued and outstanding interest on such Financial Indebtedness as on the Closing Date; (b) Security Deposits as on the Closing Date; (c) Current Liabilities of the LLP on the Closing Date; and (d) the Deductible Amounts on the Closing Date;

“**Related Party**” shall have the meaning as set out in the Accounting Principles;

“**Relative**” shall, with reference to any Person, means any other Person that is the first-mentioned Person’s: (i) spouse; (ii) father (including step-father); (iii) mother (including step-mother); (iv) son (including step-son); (v) daughter (including step-daughter); (vi) son’s wife; (vii) daughter’s husband; (viii) brother (including step-brother); (ix) sister (including step-sister); and/or (x) member of the same ‘Hindu Undivided Family’ (as construed under applicable Law) of which he/she is a member

“**Reliance Projects**” shall have the meaning ascribed to the term in paragraph 8 of **SCHEDULE II**;

“Representations” shall mean the representations, warranties and statements contained in **SCHEDULE IV**;

“Requisite Green Area Land” shall mean such lands forming part of the Under Construction Project Land, adjacent to Completed Project Land, which is required to create the green area mandated under the EC I and EC II. An illustrative sketch of the Requisite Green Area Land is provided under **Annexure D1**. Details of the land parcels comprising the Requisite Green Area Land is set out under **Annexure D2**;

“Reviewed Closing Date Financial Statements” shall have the meaning ascribed to it in Clause 5.4(i);

“RoC” shall mean the jurisdictional Registrar of Companies;

“Sanctioned Jurisdiction” means any country or jurisdiction that is, or at the relevant time was, the target or subject of a comprehensive export, import, financial, or investment embargo under the Sanctions Laws (including Cuba, Iran, North Korea, Syria, Venezuela and Crimea Region of Ukraine (as amended from time to time));

“Sanctioned Person” shall mean any individual, entity or vessel that is the sanctioned subject or target under Sanctions Laws, including (i) any individual, entity or vessel that is listed on any U.S. or other sanctions-related restricted party list (including the List of Specially Designated Nationals and Blocked Persons by the Office of Foreign Assets Control of the U.S. Department of the Treasury), or any Reserve Bank of India circular on sanctions or willful defaulter list; (ii) any entity that is 50% or more owned or otherwise controlled by an individual or entity described in paragraph (i); or (iii) any national of (excluding any such national that has taken up permanent residence outside the relevant Sanctioned Jurisdiction), or any entity based in or organized under the laws of a Sanctioned Jurisdiction;

“Sanctions Laws” shall mean all the economic or financial sanctions, trade and import and export-related laws, regulations or embargos implemented or enforced by the United States (including U.S. Treasury Department, U.S. Commerce Department and U.S. State Department), the European Union, Her Majesty’s Treasury, the United Nations, the Reserve Bank of India or any other Governmental Authority to whose jurisdiction any Party to this Agreement is subject;

“Security Deposits” shall mean all security deposits or other deposits taken by the LLP from the tenants in the Project (including but not limited to rent, maintenance and electricity);

“Services Agreement” shall mean the services agreement to be executed between the LLP, the Partner 1 and the Confirming Party on the Closing Date;

“SIAC” means the Singapore International Arbitration Center;

“Signing Financial Statements” shall mean the audited Financial Statements of the LLP for the financial year ended March 31, 2022;

“SPCB” shall mean the state pollution control board, Haryana;

“Tax” or collectively **“Taxes”** or **“Taxation”** includes any and all taxes (Indian and where

applicable non-Indian), assessments, duties, impositions, liabilities, and other charges in the nature of (or similar to) tax whatsoever by any Governmental Authority, including income tax, fringe benefit tax, sales tax, customs duty, gains, franchise, property, sales, use, employment, license, excise duty, goods and services tax, capital gains, dividend distribution, payroll, occupation, recording, value added or transfer taxes, governmental charges, fees, levies or assessments or other taxes, levies, fees, stamp duties, statutory gratuity and provident fund payments or other employment benefit plan contributions, withholding obligations and similar charges of any jurisdiction and shall include any interest, compounding fees, fines, penalties, interim demands and litigation costs related thereto and, with respect to such taxes, any estimated tax, interest and penalties or additions to tax and interest on such penalties and additions to tax;

“Tax Claim” shall mean any notice of any claim pursuant to any assessment, administrative or appellate or court proceedings or proposed change or adjustment by any taxing authority concerning, for or in respect of any and all Taxes with respect to any taxable period ending on or before the Closing Date or beginning before and ending after the Closing Date;

“Tax Warranties” shall mean the warranties set out in paragraphs 11 and 12 of **SCHEDULE IV**;

“Tenant Agreements” shall mean the leave and license agreements, lease agreements or other similar agreements, and the maintenance agreements, executed by the LLP and the licensees / lessees occupying premises in the Project. The details of Tenant Agreements that are subsisting as of the Execution Date are as follows:

- (i) Lease Deed dated February 26, 2021 executed with Reliance Projects; and
- (ii) Lease Deed dated September 28, 2021 executed with DP World.

“TEV” shall mean Rs. 193,00,00,000 (Rupees One Hundred and Ninety Three Crores);

“Third Party” shall mean a Person who is not a party to this Agreement;

“Third Party Claim” means an indemnity Claim relating to or arising out of or in connection with or is suffered on account of any actual claim, legal action, proceeding, suit, Litigation, prosecution, mediation or arbitration by a Third Party;

“Threshold Loss” shall have the meaning ascribed to the term in Clause 11.8(i);

“Trademark” shall mean: (i) the trademarks associated with “Vertical” brand, their respective logos and the copyright (if any) associated with it; and (ii) such additional Trademarks as mutually agreed in writing by the Licensor and the Licensee.

“Transaction Documents” shall mean this Agreement, the Development Management Agreement, the Services Agreement, the Framework Agreement, the Original LLP Agreement, any agreement executed as a Condition Precedent under this Agreement and any agreement identified as a Transaction Document by the Parties in writing;

“Transfer” (including, with correlative meaning, the terms **“Transferred by”**, **“Transferring”** and **“Transferability”**) shall mean to transfer, sell, assign, Encumber,

place in trust (voting or otherwise), exchange, gift or transfer by operation of Law or in any other way, dispose of, whether or not voluntarily and whether directly or indirectly (pursuant to the transfer of an economic or other interest, the creation of a derivative security, operation of law or otherwise);

“**U.S.**” shall mean the United States of America;

“**Under-Construction Project**” or “**Warehouse 3**” shall mean the proposed building to be constructed on the Under Construction Project Land, in accordance with the Development Management Agreement;

“**Under-Construction Project Land**” shall mean land parcels comprised in Rectangle No. 50 Kila Nos. 1/2, 2/2, 3/2, 4/1, 4/2min, 7, 8, 9, 10/1 admeasuring approximately 6.24 acres out of the total area of 33.1 acres situated in Village Koka, Tehsil and District Jhajjar, Haryana, India;

“**Warehouse 1**” means the warehouse building having gross leasable area of 3,68,178 (three lakh sixty eight thousand one hundred and seventy eight) square feet, situated on the Completed Project Land, and forming part of the Project;

“**Warehouse 2**” means the warehouse building having gross leasable area of 3,28,000 (three lakh twenty eight thousand) square feet, and forming part of the Project;

“**Warrantors**” shall collectively mean the Partners;

“**Water Act**” shall mean the Water (Prevention and Control of Pollution) Act, 1974.

1.2 Interpretation

- (i) Unless the context of this Agreement otherwise requires:
 - (a) Words using the singular or plural number also include the plural or singular number, respectively;
 - (b) Words of any gender are deemed to include the other gender;
 - (c) Reference to the word “include” (or any derivative thereto) shall be construed without limitation;
- (ii) The terms “hereof”, “herein”, “hereby”, “hereto” and derivative or similar words refer to this entire Agreement or specified Clauses of this Agreement, as the case may be;
- (iii) The term “Clause”, “Schedule” and “Annexure” refers to the specified Clause, Schedule or Annexure, respectively, of this Agreement;
- (iv) References in this Agreement to any legislation or Law or any policy issued by a Governmental Authority or to any provision thereof shall be construed as meaning and including references to:
 - (a) any statutory modification, consolidation or re-enactment made after the Execution Date and for the time being in force;

- (b) all statutory instruments or orders made pursuant to a statutory provision and any subordinate legislation made from time to time; and
- (c) any statutory provisions of which these statutory provisions are a consolidation, re-enactment or modification.
- (v) The Recitals, the Schedules, Annexure hereto and the Disclosure Letter shall constitute an integral part of this Agreement;
- (vi) The index hereto and headings and titles herein are used for convenience of reference only and shall not affect the construction of this Agreement;
- (vii) Reference to any document includes an amendment or supplement to, or replacement or novation of, that document, but disregarding any amendment, supplement, replacement or novation made in breach of this Agreement;
- (viii) Any word or phrase defined in the body of this Agreement as opposed to being defined in Clause 1.1 above shall have the meaning assigned to it in such definition throughout this Agreement, unless the contrary is expressly stated or the contrary clearly appears from the context;
- (ix) If any provision in the recitals or Clause 1 is a substantive provision conferring rights or imposing obligations on any Party, effect shall be given to it as if it were a substantive provision in the body of this Agreement;
- (x) When any number of days is prescribed in any document, the same shall be reckoned exclusively of the first and inclusively of the last day unless the last day does not fall on a Business Day, in which case the last day shall be the next succeeding day which is a Business Day;
- (xi) Time is of essence in the performance of the Parties' respective obligations. If any time period specified herein is extended, such extended time shall also be of essence;
- (xii) Where any reference is made in this Agreement to the obligations of the Partners and the LLP (or any combination thereof), it shall be construed that such obligations shall have to be performed jointly and severally by such Parties.
- (xiii) No provision of this Agreement shall be interpreted in favour of, or against, any Party by reason of the extent to which such Party or its counsel participated in the drafting hereof or by reason of the extent to which any such provision is inconsistent with any prior draft hereof. Accordingly, in the event any ambiguity or a question of intent or interpretation arises, this Agreement will be construed as drafted jointly by the Parties, and no presumption or burden of proof will arise favouring or disfavouring any Party by virtue of the authorship of any provisions of this Agreement. Additionally, no court or arbitrator construing this Agreement will construe it more stringently against one Party than against the other.

2. AGREEMENT TO SELL AND PURCHASE

2.1 Agreement to Sell and Purchase of Aggregate Partnership Interest: Subject to the

terms and conditions of this Agreement, the Partners agree to sell the entire Aggregate Partnership Interest to HIPPL (and its nominee), and HIPPL (and its nominee) agree to purchase from the Partners on the Closing Date, the entire Aggregate Partnership Interest, free and clear from all Encumbrances, together with all rights, title and interests arising therefrom (including all rights and advantages now and hereafter attaching or accruing thereto), such that HIPPL shall, upon completion of the sale of the Aggregate Partnership Interest in its name, receive full legal and beneficial ownership of the Aggregate Partnership Interest and all rights and benefits relating thereto and arising thereof.

- 2.2 On the Execution Date, the Partners shall provide to HIPPL certified true copies of the Pre-Closing Resolutions.

3. **CONSIDERATION**

- 3.1 The total consideration for the purchase of the Aggregate Partnership Interest shall be the Purchase Consideration with the Estimated Purchase Consideration being paid on the Closing Date and adjustments, if any, thereto being effected in the manner contemplated under Clause 5.4. For the avoidance of doubt, if HIPPL does not exercise its rights to re-compute the Purchase Consideration pursuant to Clause 5.4, the Estimated Purchase Consideration paid by HIPPL on the Closing Date shall be deemed to be the Purchase Consideration for the purposes of this Agreement.

3.2 **Determination of the Estimated Purchase Consideration**

- (i) On such date which is not later than the 10th (tenth) Business Day prior to the Closing Date (it being clarified that this timeline can be waived at the sole discretion of HIPPL by providing a notice in writing to the Partners), the Partners shall jointly deliver to HIPPL: (a) the Estimated Closing Date Financial Statements; and (b) a computation of the Purchase Consideration (such amount, the “**Estimated Purchase Consideration**”) determined using the Estimated Closing Date Financial Statements and in a manner consistent with the Example Purchase Consideration Computation (in respect of the line items, adjustments, accounting principles and practices referred to therein) and the accounting principles set forth in Part A of **SCHEDULE VII**.
- (ii) Within 5 (five) Business Days from the date of receipt of the Estimated Closing Date Financial Statements and the computation of the Estimated Purchase Consideration from the Partners pursuant to Clause 3.2(i) above, HIPPL may (at its sole discretion) issue a notice to the Partners and the LLP (“**HIPPL Notice**”) if HIPPL disagrees with the Estimated Closing Date Financial Statements and/or the computation of the Estimated Purchase Consideration. If HIPPL issues a HIPPL Notice, HIPPL and the Partners shall discuss in good faith and try to resolve the disagreements between them in relation to the Estimated Closing Date Financial Statements and/or the computation of the Estimated Purchase Consideration. If HIPPL and the Partners are unable to resolve their disagreements within 1 (one) Business Day from the date of receipt of HIPPL Notice, HIPPL may, within 1 (one) Business Day from the expiry of the aforesaid period, appoint an Identified Accounting Firm to review and verify the items of disagreement in the Estimated Closing Date Financial Statements and thereby re-compute the Estimated Purchase Consideration. HIPPL shall request the Identified Accounting Firm to provide its report as soon as reasonably possible, preferably within 1 (one) Business Day of

its appointment. The Identified Accounting Firm shall, after taking into account HIPPL's objections outlined in the HIPPL Notice, compute the Estimated Purchase Consideration, in the same manner as specified in Clause 3.2(i) above, and shall not apply any other accounting principles which are inconsistent with such principles. The costs of the appointment of the Identified Accounting Firm shall be borne equally by HIPPL (on the one hand) and the Partners (on the other). Notwithstanding anything to the contrary in this Agreement, in the event that: (a) the Identified Accounting Firm intimates the Parties in writing that it will take additional days to deliver its report, and furnishes reasons for delay; and (b) the Closing cannot be undertaken prior to the Closing Long Stop Date on account of such delay, then the Closing Date and the Closing Long Stop Date will stand automatically extended by such number of additional days as required for delivery of the said report.

- (iii) Absent fraud or manifest error by such Identified Accounting Firm, the Estimated Purchase Consideration computed by the Identified Accounting Firm shall be binding on HIPPL and the Partners. If there is any dispute in relation to there being fraud or a manifest error in the Estimated Purchase Consideration as computed by the Identified Accounting Firm, the Parties shall resolve such dispute pursuant to the provisions of Clause 12.
- (iv) Notwithstanding anything in the above Clauses 3.2(i) and 3.2(ii), HIPPL may, at its sole discretion, agree in writing by sending a written notice to the Partners at any time to waive the Partners' requirement to provide the Estimated Closing Date Financial Statements, in which case (unless otherwise agreed in writing by the Parties) the Signing Financials shall be deemed to the Estimated Closing Date Financial Statements.
- (v) The Partners and the LLP shall ensure that the relevant records and employees of the LLP are made available at all reasonable times during normal business hours to HIPPL and the Identified Accounting Firm for verification of the Estimated Closing Date Financial Statements.

3.3 **Tax Deducted at Source**

- (I) Notwithstanding anything to the contrary contained in this Agreement, HIPPL shall be entitled to deduct and withhold Taxes as per section 194Q of the IT Act ('**Tax Deducted at Source**') from payments of all or a portion of the Purchase Consideration to be made pursuant to this Agreement. To the extent that amounts are so withheld and paid to the appropriate Governmental Authority by HIPPL, such withheld amounts shall be treated for the purposes of this Agreement as having been paid to the relevant payee in respect of which such deduction and withholding was made.
- (ii) HIPPL shall: (a) deposit any Taxes withheld under this Agreement with the relevant Governmental Authority, (b) complete filing of withholding tax returns within the statutory due date, and (c) issue a withholding Tax certificate in Form

16A, in each case within the prescribed statutory timelines.

4. CONDITIONS PRECEDENT

- 4.1 The obligations of HIPPL to purchase the Partnership Interest and pay the Purchase Consideration as contemplated under this Agreement shall be conditional upon completion, to the sole satisfaction of HIPPL (or where waiver has been provided by HIPPL in writing in its sole discretion) of each of the Conditions Precedent as specified in **SCHEDULE II**, on or prior to the CP Fulfilment Long Stop Date.
- 4.2 The LLP and the Partners shall jointly and severally procure that each Condition Precedent is fulfilled at the earliest and in any case before the CP Fulfilment Long Stop Date (other than the Conditions Precedent that are required to be completed immediately in advance of Closing or at Closing or such Conditions Precedent that have been waived in writing by HIPPL). All costs in relation to the fulfilment of the Conditions Precedent shall be borne solely by the Partners.
- 4.3 If any of the LLP or the Partners become aware of any event or circumstance that will or may reasonably be expected to prevent any of the Conditions Precedent from being satisfied, on or prior to the CP Fulfilment Long Stop Date, it shall forthwith notify HIPPL in writing of such fact, event or circumstance and the LLP and Partners shall take all actions and steps as may be required to remove or remedy the events/circumstances and complete the relevant Condition Precedent.
- 4.4 Upon fulfillment, or waiver by HIPPL, of each of the Conditions Precedent (other than the Conditions Precedent that are required to be completed immediately in advance of Closing or can only be satisfied at Closing), the LLP and the Partners shall jointly deliver to HIPPL, a completion certificate in a form annexed to the Agreement as **SCHEDULE III** (such certificate referred to as the “**Conditions Precedent Satisfaction Letter**”) and shall, along with the Conditions Precedent Satisfaction Letter, enclose or electronically provide access to all necessary documents evidencing fulfillment of each of the Conditions Precedent to HIPPL’s satisfaction; provided that if HIPPL disputes the satisfaction of any of the Conditions Precedent set forth in any Conditions Precedent Satisfaction Letter so delivered, the Partners and LLP shall jointly and severally procure the fulfillment of each such Condition Precedent to HIPPL’s satisfaction and, following such fulfillment, reissue the Conditions Precedent Satisfaction Letter.

5. CLOSING

- 5.1 The sale to and purchase by HIPPL of the Aggregate Partnership Interest shall take place on the Closing Date, at such place as may be mutually agreed amongst HIPPL and the Partners. The Closing Date, for the purposes of this Agreement, shall in any event not be later than the Closing Long Stop Date.
- 5.2 On the Closing Date, the following events shall take place:
- (i) Each of the Partners shall certify in writing that the Representations contained in **SCHEDULE IV** are true, accurate and not misleading in any respect as of the Execution Date and the Closing Date, as though made on and as of each such date and that the Partners have complied with all of their obligations and undertakings required to be complied with by it (including as required under this Agreement) on

or prior to the Closing Date.

- (ii) The Partners, LLP, HIPPL and nominee shall have executed the amended and restated Closing Restated LLP Agreement.
- (iii) The LLP shall have filed Form-3 under the Limited Liability Partnership Rules, 2009 (“**LLP Rules**”) for such amendment / restatement referred to in (ii) above.
- (iv) The LLP shall have filed LLP Form – 4 with the RoC recording (a) admission of HIPPL and its nominee as partners of the LLP; and (b) appointment of nominees of HIPPL as designated partners of the LLP.
- (v) The LLP shall have filed LLP Form – 4 with the RoC recording (a) cessation of the Partners as partners of the LLP; and (b) cessation of the Partners as designated partners of LLP.
- (vi) Subject to completion of all matters contemplated in Clause 5.2(i) and Clause 5.2(ii), HIPPL shall remit the Estimated Purchase Consideration in the proportion set out in the table below, subject to deduction of Taxes deductible at source as contemplated under Clause 3.3, to the Partners’ Bank Accounts by way of a wire/electronic transfer (or such other method as may be agreed by HIPPL and Partners in writing prior to the Closing Date) and HIPPL shall provide, the Partners, a copy of the wire transfer instruction evidencing such remittance;

Name of the Partner	Proportion of Estimated Purchase Consideration payable
Mr. Vikas Yadav	99%
Ms. Chandervati Yadav	1%

- (vii) Upon receipt of the documentary proof of remittance instructions issued by HIPPL for payment of the Estimated Purchase Consideration in the manner contemplated under Clause (vi) above:
 - (a) The LLP shall (and the Partners shall cause the LLP to) pass the Closing Resolutions and provide certified copies of the Closing Resolutions to HIPPL.
 - (b) The LLP shall have adopted an anti-corruption compliance program which shall, take effect on and from Closing Date and, include a written anti-corruption policy designed to ensure compliance by the LLP’s partners, officers, employees and agents (if any) with applicable Anti-Corruption Laws, and routine and periodic compliance trainings for such individuals, in each case in a form and substance to HIPPL’s satisfaction.
 - (c) Each of the Persons proposed to be appointed as designated partners shall have provided their consent to act as designated partners in LLP Form 9 to the LLP.

- (viii) The LLP, Partner 1 and Confirming Party shall execute, the Development Management Agreement.
 - (ix) The LLP and Confirming Party shall execute, the Services Agreement.
- 5.3 The Parties shall undertake best efforts to complete all actions contemplated by this Agreement to be consummated at Closing simultaneously and on the same day and no one action shall be deemed to be consummated unless all other such actions are simultaneously consummated. Without limiting any rights or remedies of HIPPL under this Agreement, if any actions specified in Clause 5.2, other than actions specified in Clauses 5.2(i), 5.2(ii) and 5.2(vi), cannot be completed on the same day: (a) HIPPL may, at its sole discretion, extend the time for completion of such actions, and (b) if so extended by HIPPL, Closing shall be deemed to occur on the last day on which all the actions specified in Clause 5.2 are completed, provided that all actions specified in Clauses 5.2(i), 5.2(ii) and 5.2(vi) must be completed on the same day
- 5.4 **Post-Closing Review**
- (i) Anytime before the expiry of the Post Closing Review Period, HIPPL shall have the right to appoint an Identified Accounting Firm, to undertake an audit / review of the Estimated Closing Date Financial Statements and update them to be as of the Closing Date immediately prior to Closing (such updated Estimated Closing Date Financial Statements shall be referred to as the “**Reviewed Closing Date Financial Statements**”) and re-compute the Purchase Consideration based on the Reviewed Closing Date Financial Statements in a manner consistent with the Example Purchase Consideration Computation (in respect of the line items, adjustments, accounting principles and practices referred to therein) and the accounting principles set forth in Part A of **SCHEDULE VII**. If HIPPL exercises its right pursuant to this Clause 5.4(i), the LLP shall appoint the Identified Accounting Firm after intimation to the Partners, to undertake the actions as contemplated in this Clause 5.4(i) and provide all cooperation as required by the Identified Accounting Firm. In particular, the Partners shall ensure that the Identified Accounting Firm has access to any information relating to the LLP available with them, or to the former employees of the LLP, as requested by them to conduct the review of the Estimated Closing Date Financial Statements. The costs of the appointment of the Identified Accounting Firm pursuant to this Clause 5.4(i) shall be borne equally by the Partners (on the one hand) and HIPPL (on the other).
 - (ii) The Identified Accounting Firm shall, within 15 (fifteen) Business Days of its appointment, complete its review and submit a statement/ report, which shall include a copy of the Reviewed Closing Date Financial Statements and a computation of the Purchase Consideration. Absent fraud or manifest error by such Identified Accounting Firm, the Parties agree that the computation of the Purchase Consideration by the Identified Accounting Firm shall be final and binding on the Parties. If there is any dispute in relation to there being fraud or a manifest error in the Purchase Consideration as computed by the Identified Accounting Firm, the Parties shall resolve such dispute pursuant to the provisions of Clause 12.
 - (iii) In the event the Purchase Consideration as determined by the Identified Accounting Firm pursuant to Clause 5.4(ii) is lower than the Estimated Purchase

Consideration (such difference hereinafter referred to as the “**Adjustment Amount**”), the Partners shall pay an amount equal to the Adjustment Amount to HIPPL within 30 (thirty) days from the date the Identified Accounting Firm submits its statement/report to the Parties as contemplated under Clause 5.4(ii).

- (iv) Any payment by the Partners pursuant to Clause 5.4(iii) shall be made free and clear of and without deduction for or on account of any Taxes, except as may be required by applicable Law. If any Tax must be deducted, or any other deductions must be made, from such payment, such additional amounts must be paid by the Partners as may be necessary to ensure that HIPPL receives a net amount equal to the Adjustment Amount which it would have received had payment not been made subject to such Taxes or other deductions.
- (v) Notwithstanding anything to the contrary contained in this Agreement, subject to applicable Law, HIPPL, at its sole discretion, shall be entitled to treat all or part of the Adjustment Amount paid pursuant to this Clause 5.4 (*Post-Closing Review*) as indemnity payments; and for the avoidance of doubt, the Parties expressly agree and acknowledge that nothing contained in Clause 11.8 (*Limitations on Liability*) shall apply to any claims for adjustments/payments being effected pursuant to this Clause 5.4 (*Post-Closing Review*).

6. CONDUCT UNTIL CLOSING

6.1 The LLP and the Partners shall during the period between the Execution Date and the Closing Date:

- (i) promptly supplement or amend the information:
 - (a) given to HIPPL and/or its Representatives pursuant to this Agreement with respect to any matter which comes to the knowledge of any of the LLP, the Warrantors, and/or KMP which makes it necessary to correct any information in this Agreement or any document delivered pursuant to this Agreement (including in terms of any of the Representations); or
 - (b) provided in the course of HIPPL’s due diligence exercise, which may be rendered inaccurate or misleading thereby, would or would reasonably be expected to cause or result in any of the Conditions Precedent not being satisfied or being delayed in violation of the provisions of this Agreement, or would or would reasonably be expected to, individually or in the aggregate, result in a Material Adverse Effect;

provided that, notwithstanding anything contained in this Clause 6.1, no information provided to HIPPL subsequent to the Execution Date, shall have the effect of amending or qualifying any Representation, or any other term of this Agreement, and no such information disclosed shall affect or prejudice HIPPL’s rights or remedies under this Agreement;

- (ii) provide HIPPL and its employees, representatives, officers, advisors and agents with access to the books and records of the LLP and the LLP’s personnel, the Assets, the Project, the Project Land, and to the personnel of the Partners or its Affiliates who are involved in the LLP’s business. A breach of this obligation shall

constitute a Material Adverse Effect.

- (iii) provide copies of:
 - (a) any filings or reports filed by the LLP, or the Partners or Designated Partners in relation to the LLP, the Project or the Project Land with any Governmental Authority; or
 - (b) such other filings as may be requested by HIPPL,

in each case as soon as practicable and in any event within 5 (five) Business Days after the date of submission of such reports / notices or upon the request of HIPPL, provided that the copies of any such filing which relates to or is required to be made in connection with any of the transactions contemplated by any of the Transaction Documents or which contains any reference to HIPPL, its Affiliate(s) or any of HIPPLs in the funds they manage shall be provided to HIPPL in advance of the submission of such filings, and HIPPL shall be given a reasonable opportunity to review and provide suggestions / comments on such filings (which suggestions / comments shall be duly incorporated to the reasonable satisfaction of HIPPL prior to submission of such filings);

- (iv) provide copies of licenses or correspondence with regulatory or Governmental Authorities in relation to any Governmental Approvals maintained or required to be maintained by the LLP in relation to the Business, the Project or the Project Land, in each case as soon as practicable and in any event within 5 (five) Business Days from procurement of such license or receipt of correspondence; provided that the copies of any such correspondence which relates to the transactions in the Transaction Documents shall be provided to HIPPL in advance of the delivery of such correspondence, and HIPPL shall be given a reasonable opportunity to review and provide suggestions / comments on such filings (which suggestions / comments shall be duly incorporated to the reasonable satisfaction of HIPPL prior to submission of such filings);
- (v) provide details of any Litigation, disputes and / or adverse changes that impedes the LLP or which is likely to adversely affect the Business, the Project, the Project Land or the Assets of the LLP or the operation thereon, immediately after the LLP or Partners become aware of the possibility that such event may occur or has occurred;
- (vi) provide copies of legal notices or notices or Orders from Governmental Authorities, received by the LLP or Partners in relation to the LLP, the Business, the Project or the Project Land, within 2 (two) Business Days of such receipt or such notice or communication coming to its knowledge, whichever is earlier;
- (vii) provide details of any events/ occurrences arising out of the Covid-19 pandemic which can actually or potentially affect the Business and/ or operations of the LLP, the Project, or the Project Land and take any steps recommended by HIPPL to rectify or mitigate the effects of such events/ occurrences on the Business and/ or operations of the LLP, the Project, or the Project Land;
- (viii) provide, in respect of any meetings of Partners or Designated Partners and any

committees of the LLP:

- (a) written copies of notices or agenda of the meeting at least 7 (seven) days prior to the provision of such notice / agenda to the Partners or Designated Partners of such meeting;
 - (b) written details of resolutions passed, immediately upon conclusion of the meeting;
 - (c) minutes of the meetings within 3 (three) days of such meeting;
 - (ix) provide timely updates of the status and progress of the satisfaction of the Conditions Precedent and promptly provide HIPPL with such updates as HIPPL may reasonably request;
 - (x) procure that the LLP continues to carry on the Business in the Ordinary Course and in compliance with all applicable Law, and provide all other information not expressly covered above that is requested by HIPPL, acting reasonably; and
 - (xi) take all actions necessary (including exercising their voting rights) to give effect to the transactions contemplated under this Agreement.
- 6.2 The LLP and the Partners confirm that, they shall during the period between the Execution Date and the Closing Date, not directly or indirectly speak or discuss, enter into any contract, understanding or term sheet or any other agreement of like nature (whether or not such contract, understanding, term sheet or agreement is absolute, revocable, contingent, conditional, oral, written, binding or otherwise), or solicit with any Third Party, for a potential acquisition of partnership units or Assets of the LLP, including in relation to issuance of any partnership units of the LLP, or granting any management rights in the LLP or directly or indirectly Transferring or Encumbering the Project. In the event that the LLP or the Partners receive any such offers from a Third Party, they shall simultaneously, and in any event no later than 2 (two) days from the receipt of such offer, notify HIPPL of the terms of the offer in writing and reject such offers.
- 6.3 Without limiting the generality of the foregoing, during the period between the Execution Date and the Closing Date:
- (i) The LLP shall not and shall not agree to, and the Partners shall cause the LLP to not, without the prior written consent of HIPPL:
 - (a) amend or modify or supplement the Original LLP Agreement;
 - (b) hire any employees, terminate employment of any employees or change terms of employment of any employee including of any Benefit Plans, stock option plans;
 - (c) loan or advance any money to any present or former employee, partners or officer of the LLP;
 - (d) take any action or enter into any transactions that could be expected to result in a change in the scope and nature of the Business including

discontinuing any portion of the existing Business;

- (e) enter into, terminate, amend or vary the terms of, or waive or assign any rights under any (I) Contract; (II) any Tenant Agreement, (III) any Lease or (IV) any agreement in relation to sale of any unit in the Project;
- (f) enter into any contract or arrangement for the Transfer or create an Encumbrance over all or part of (I) the Aggregate Partnership Interests or (II) the Assets of the LLP (including the Project and the Project Land), or enter into any contract or arrangement for any of the foregoing;
- (g) acquire or dispose of any Assets with a value in excess of INR 50,00,000 (Indian Rupees Fifty Lakhs only) in the aggregate;
- (h) undertake or agree to undertake any action which would reasonably be expected to result in a Material Adverse Effect;
- (i) avail of any borrowing or create or agree to create any Financial Indebtedness, including provision of any security by the LLP;
- (j) repay, redeem or otherwise extinguish Liability in excess of INR 50,00,000 (Indian Rupees Fifty Lakhs only) in the aggregate;
- (k) provide or advance any borrowings, loans, advances in excess of INR 50,00,000 (Indian Rupees Fifty Lakhs only) in the aggregate;
- (l) provide any guarantees, securities or indemnities or similar arrangement to, on behalf of, or for the benefit of any Person (including a Related Party) in excess of INR 50,00,000 (Indian Rupees Fifty Lakhs only) in the aggregate;
- (m) forgive, cancel, release, assign or waive any Financial Indebtedness owed to the LLP;
- (n) establish a subsidiary or make an investment in any other Person or enter into any joint venture and partnerships or acquisition of any business or undertaking;
- (o) take any action in relation to the Capital Contribution, including any increase or decrease in the Capital Contribution, or the purchase of the partnership units of the LLP or issuing or redeeming any partnership units of the LLP, for consideration or otherwise;
- (p) initiate, agree to settle, or settle any Litigation;
- (q) initiate any merger, restructuring, amalgamation, or other business combination with any other Person, or acquire any interests in any other Person;
- (r) initiate any liquidation, winding-up, bankruptcy, reconstitution, or dissolution of the LLP, or commence any proceedings in relation to any of

the foregoing;

- (s) change any of the LLP 's accounting policies or the LLP's auditors;
 - (t) alter the customary payment cycles for any of its payables or receivables (including accelerating the receipt of any payment by the LLP or delaying the making of any payment by the LLP), or default in the repayment of any Financial Indebtedness;
 - (u) make or change any Tax election, settle or compromise any proceeding with respect to any Tax Claim or assessment relating to the LLP, surrender any right to claim a refund of Taxes, consent to any extension or waiver of the limitation period applicable to any Tax claim or assessment relating to the LLP, filing any amended Tax return, or incurring any liability for Tax;
 - (v) make application to any Governmental Authority for the purpose of applying for any discount, preferential treatment, tax reduction, exemption, subsidy or refund;
 - (w) make or commit to any capital expenditure in excess of INR 50,00,000 (Indian Rupees Fifty Lakhs only) in the aggregate;
 - (x) increase the Current Liabilities of the LLP in excess of INR 50,00,000 (Indian Rupees Fifty Lakhs only) in the aggregate;
 - (y) refund any Security Deposit, except upon expiry of the term of, and otherwise in accordance with, the relevant Tenant Agreement(s);
 - (z) alter the terms on which the Business, the Project and the Project Land are insured as disclosed in writing to HIPPL prior to the date of this Agreement, or do or allow any act or omission that might render such insurance void or voidable or otherwise terminate such insurance;
 - (aa) take any action to designate any Persons other than Partner 1 and Partner 2 as the designated partners of the LLP; or
 - (bb) agree to or resolve to do any of the foregoing.
- (ii) Without prejudice to the foregoing, the Partners shall not avail of any borrowing or create any Financial Indebtedness, unless as a condition precedent to its creation, the Partners obtains the consent of such bank, financial institution, or lender for the transactions contemplated under the Transaction Documents in a form and substance acceptable to HIPPL.

6.4 During the period between the Execution Date and the Closing Date, the LLP and the Partners shall not, and the Partners shall procure that the LLP shall not, take any action that would constitute a violation, or implicate HIPPL in a violation, of the Anti-Corruption Laws, Anti-Money Laundering Laws, or Sanctions Laws. The LLP shall, and each of the Partners shall ensure that the LLP shall, during the period between the Execution Date and the Closing Date, immediately notify HIPPL of any violation or potential violation of the Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws by the LLP, the

Partners, or any of their respective officers, KMPs or employees of the LLP or to the Knowledge of the LLP or the Partners any authorized agents of the LLP engaged by the LLP for the purpose of the Business or the Project.

- 6.5 During the period between the Execution Date and the Closing Date, neither the LLP, the Partners, nor any of their respective KMPs, officers, or employees or the Knowledge of the LLP or the Partners, none of the authorized agents engaged for the purposes of the Business, or the Project, shall make, promise to make, or cause to be made any Improper Payments: (i) to or for the use or benefit of any Government Official; (ii) to any other Person either for an advance or reimbursement, with knowledge or reason to know that any part of such Improper Payment will be directly or indirectly given or paid by such other Person, or will reimburse such other Person for Improper Payments previously made, to any Government Official; or (iii) to any other Person or entity, to obtain or keep business or to secure some other improper advantage, or otherwise in violation of applicable Anti-Corruption Laws.
- 6.6 During the period between the Execution Date and the Closing Date, if any of the Partners or the LLP, or any of their respective Affiliates, officers, KMPs, or employees or to the Knowledge of the LLP or the Partners, any authorized agents engaged for the purposes of the Business or the Project becomes a Government Official or Governmental Authority (as applicable), the Partners and the LLP shall notify HIPPL immediately, so that HIPPL may, and hereby reserves the right to, take such precautions and actions that may be reasonably required to assure compliance with applicable Anti-Corruption Laws.
- 6.7 During the period between the Execution Date and the Closing Date, if any Government Official becomes associated with, or obtains an interest, whether direct or indirect, in the LLP or the Partners, or obtains any legal or beneficial interest in the transaction contemplated by this Agreement, or in any payments to be made by HIPPL pursuant to this Agreement, except any Government Official who may be a tenant or customer of the Partners in connection with their respective businesses, then the LLP and the Partners shall notify HIPPL immediately so that HIPPL may, and hereby reserves the right to, take whatever precautions and actions that may be appropriate to assure compliance with the Anti-Corruption Laws.
- 6.8 The LLP and the Partners acknowledge and agree that HIPPL is undertaking discussions with potential lender(s) for loans to be obtained by the LLP after the Closing Date. In this regard, the LLP shall provide any information (including in relation to the LLP, Project, Project Land or Partners), documents and/or corporate authorisations sought by the said lender(s), if any.

7. REPRESENTATIONS AND WARRANTIES OF THE WARRANTOR

- 7.1 The Partners (the “**Warrantors**”) represents and warrants to HIPPL that each of the Representations is true, accurate and not misleading in any aspect as of the Execution Date, and shall be true, accurate and not misleading in any aspect on and as of the Closing Date.
- 7.2 Subject to and as qualified by the Full and Fair Disclosures made under the Disclosure Letter, the Representations shall be deemed to be repeated on the Closing Date by reference to the facts and circumstances then existing as if references in the Representations to the Execution Date were references to the Closing Date.

- 7.3 None of the Representations shall be treated as qualified by any actual or constructive knowledge on the part of HIPPL or any of their Affiliates or any of their agents, representatives, officers, employees or advisers, save and except to the extent in respect of matters that are specifically set out as Full and Fair Disclosures in the Disclosure Letter.
- 7.4 Each of the Representations shall be construed as a separate representation and shall not be limited by the terms of any other representation or warranty or by any other term of this Agreement; and in the event and to the extent that any such Representation explicitly provides an exception, exclusion or qualification thereto by reference to a circumstance or fact stated in such Representation, such exception, exclusion and qualification shall be applicable only and limited to such Representation and shall not, and shall in no circumstance be deemed to, apply as an exception, exclusion or qualification to any other Representation or warranty made in this Agreement unless and to the extent explicitly stated in such other Representation or warranty.
- 7.5 Any information disclosed in the Disclosure Letter with respect to any Representation (by reference to the corresponding paragraph of **SCHEDULE IV**) shall only apply to and be limited to such corresponding Representation, and shall not, and shall in no circumstance be deemed to, apply as an exception, exclusion or qualification to any other Representation (or any other paragraph of **SCHEDULE IV**) or any other Representation, warranty, obligation, covenant, agreement or undertaking contained in this Agreement.

8. REPRESENTATIONS OF HIPPL

8.1 HIPPL hereby represents and warrants that:

- (i) It is duly organized, and validly existing under the laws of its incorporation;
- (ii) It has the power and authority and has taken all corporate actions to execute and deliver this Agreement and to consummate the transactions contemplated by this Agreement;
- (iii) This Agreement has been duly and validly executed by such HIPPL, and constitutes legal, valid and binding obligations of such HIPPL, enforceable against it in accordance with its terms.

9. CONDITIONS SUBSEQUENT

- 9.1 Following the Closing, the Partners shall undertake all actions required to complete, to the satisfaction of HIPPL, all conditions as set forth in **SCHEDULE IX** that are required to be completed and fulfilled within the time frame identified therein (unless such condition is specifically waived or the relevant time frame extended by HIPPL in writing) (such conditions referred to as the “**Conditions Subsequent**”).
- 9.2 Without prejudice to the generality of the foregoing, (i) if so requested by HIPPL, the Partners shall promptly and no later than 5 (five) Business Days of such a request, provide an update on the status of the each Condition Subsequent together with copies of relevant supporting documents; and (ii) prior to making any applications to any Governmental Authority or responding to any queries or correspondence from any Governmental Authority, the Partners shall (a) provide HIPPL an opportunity and a reasonable period to

review and comment on any such response and (b) incorporate in such response all inputs and comments provided by HIPPL.

- 9.3 Any and all costs required to be incurred towards or in connection with the completion of the Conditions Subsequent shall be borne solely by the Partners.

10. COVENANTS

10.1 Green Area

The Partners shall ensure that Requisite Green Area Land is kept vacant, till (i) the Warehouse 3 EC is obtained; and (ii) HIPPL and Partners have agreed on the location of the green area to ensure compliance with the Warehouse 3 EC and EC II conditions.

10.2 Branding

- (i) The Partners hereby specifically agree and undertake that the Project, at the sole discretion of HIPPL, may be branded with 'Vertical' name, logo and trademark and that the Project may be named 'Vertical Logistics Park'. In order to enable the LLP to exercise such rights, the Partners shall grant the LLP a royalty-free, non-exclusive, license to use the 'Vertical' name, logo and trademark, in accordance with the terms set out under **Annexure F** hereto.
- (ii) Without prejudice to the foregoing, until the expiry of 24 (twenty four) months from the Closing Date or until such period as HIPPL or its Affiliates holds any Partnership Interest in the LLP, whichever is earlier, the Project will continue to be named 'Vertical Logistics Park'.

10.3 Payment of Tax Amounts pursuant to re-organisation of partnership interests

HIPPL shall, within the timelines prescribed under applicable Tax Laws, cause the LLP to pay, to the income tax department, the Taxes required to be paid under applicable Tax Laws in respect of the capital gains arising under Section 45(4) of the IT Act upon re-organisation of partnership interests of the LLP which amount shall not exceed Rs 12,87,50,000 (Indian Rupees Twelve Crores Eighty Seven Lakhs Fifty Thousand). Any excess amount over and above 12,87,50,000 (Indian Rupees Twelve Crores Eight Seven Lakhs Fifty Thousand) which the LLP is liable to discharge under section 45(4) of the IT Act shall be borne solely by the Partners.

10.4 Transfer of Income Tax Refunds

- (i) In the event that the LLP receives Tax refunds for the assessment year 2021-22 and assessment year 2022-2023 during the Eligible Tax Refund Period, such Tax refunds (after deducting any costs incurred and applicable Taxes paid/payable by the LLP in relation thereto) (such amount, "**Net Tax Refund**") shall be paid to the Partner 1 or any other Person nominated by the Partners (subject to 'KYC' checks being completed on such nominee to the satisfaction of HIPPL) on the receipt of such Tax refund.

The term "**Eligible Tax Refund Period**" shall mean the period which commences

on the Closing Date and ends on the earlier of (a) or (b) below:

(a) date on which HIPPL or its Affiliates ceases to own any part of the Partnership Interest in the LLP, provided that if HIPPL or its Affiliates ceases to hold Partnership Interest prior to 30 (thirty) months from the Execution Date, then (a) shall be considered as 30 (thirty) months from the Execution Date; and

(b) date immediately following the expiry of 48 (forty eight) months from the Execution Date.

- (ii) The Parties will mutually discuss and agree on the mechanism in which the Net Tax Refunds are to be transferred. All the costs / Taxes, if any of implementing such mechanism, will be borne by Partner 1.
- 10.5 In the event, any vendor seeks payment from the LLP, in excess of the amounts contemplated under paragraph 26.1 of **SCHEDULE IV**, the same shall be promptly paid or settled by the Partners.
- 10.6 In the event the tenants of Completed Project require any further equipment to be installed in the Project or any further services to be provided by the LLP in the Project, in addition to what is being provided as of the Execution Date, on account of what has been agreed by the LLP with the tenants (whether written or orally agreed prior to the Closing Date), the Partners shall promptly provide the same at their sole expense.
- 10.7 The Partners shall permit the LLP to use the premises situated at Building # 78, Third Floor Kapashera, New Delhi 110037 as its registered office, and consequently permit the LLP to maintain its records therein, till such time as HIPPL procures a change in its registered office. Partners shall execute any documents required by HIPPL in this regard, stamp duty costs of which shall be incurred by HIPPL or the LLP.
- 10.8 The Partners shall ensure that the construction and development of Warehouse 3 does not contravene any parking norms under Applicable Law and/or the occupation certificates procured in respect of the Warehouse 1 and Warehouse 2.
- 10.9 Upon any inquiry being instituted by, and/or any order or direction being issued by any Governmental Authority, in relation to the location of the sewage treatment plant, and at the request of the LLP, the Partners shall, at their sole cost and within the timelines required by the relevant Governmental Authority, cause the LLP to relocate the sewage treatment plant to the specific location within the Project Land as has been identified in the site plan annexed at **Annexure D1**.
- 10.10 No later than 6 (six) months from the Closing Date, the Partners shall undertake best endeavours to procure an email confirmation from Future Supply Chain (“**FSC**”) that the entire security deposit liable to be refunded by the LLP to FSC pursuant to termination of the lease *vide* cancellation deed dated March 18, 2021 has been set off against the invoice raised by the Partners (or their Affiliate) for other services/ works performed for FSC. In the event that FSC makes any claims against the LLP, the Partners shall be solely responsible for making payment of those claims. If the Partners intend to contest these claims, then the process under Clause 11.2(ii) (*Third Party Claims*) shall apply.

10.11 The Partners shall promptly provide all necessary documents, information and otherwise extend full cooperation in relation to: (a) filing of LLP Form 8 with the RoC for registering satisfaction of the charge created by the LLP in favour of Yes Bank in respect of the loan of INR 25,00,00,000 (“**Yes Bank Charge**”); and (b) procuring a certificate from the RoC (or such other suitable confirmation pursuant to applicable Laws) recording satisfaction of the aforesaid Yes Bank Charge. It is clarified that the Partners shall pay all applicable charges and penalties in this regard.

10.12 The Partners shall promptly provide all necessary documents, information and otherwise extend full cooperation in relation to filing by the LLP of the Statement of Account & Solvency in LLP Form 8 with the RoC for each of the financial years – (a) 2019-20; (b) 2020-21; and (c) 2021-22. It is clarified that the Partners shall pay all applicable charges and penalties in this regard.

10.13 **DP World Actions**

(i) The Partners shall, prior to the re-payment of the Outstanding Related Party Loans by the LLP in accordance with Clause 10.14 and in any event within 45 (forty-five) days from the Closing Date, co-ordinate and procure the following in relation to the DP World Lease Deed:

(a) registration of the DP World Lease Addendum, with the jurisdictional sub-registrar of assurances, at no additional cost to the LLP and any such additional costs to be borne by the Partners;

(b) co-ordinate with the LLP and DP World to raise invoices of the LLP on DP World for the rental amounts set out under the DP World Lease Addendum for the period between August 30, 2022 and the last date of the billing cycle immediately preceding the date on which invoices are issued (such amounts, “**DP World Outstanding Rentals**”); and

(c) payment by DP World of the DP World Outstanding Rentals to the LLP.

(ii) The Partners shall compensate the LLP for any difference between: (i) rental amounts paid by DP World to the LLP; and (ii) the rental amounts payable by DP World in accordance with the DP World Lease Addendum, from the period commencing on August 30, 2022 and ending on the last date of the billing cycle prior to the date (“**DP World Satisfaction Date**”) of payment by DP World of all of the rental amounts payable as per the DP World Lease Addendum as of the DP World Satisfaction Date. Such compensation shall be paid by the Partners to the LLP: (a) with respect to the period commencing on August 30, 2022 and ending on the last billing cycle prior to November 30, 2022 (such billing cycle, “**First Payment Billing Cycle**”), not later than November 30, 2022; and (b) with respect to all subsequent billing cycles after the First Payment Billing Cycle, within 5 (five) days after the due date for payment of the rental amount under each such billing cycle.

It is clarified that, upon receipt of all of the rental amounts payable by DP World as per the DP World Lease Addendum as of the DP World Satisfaction Date, the LLP shall re-pay, within 15(fifteen) days from the DP World Satisfaction Date, the compensation (net of Taxes and other costs incurred or to be incurred by the LLP)

paid by the Partners to the LLP.

10.14 Re-payment of Outstanding Related Party Loans

No later than 45 (forty-five) days from the Closing Date, HIPPL shall cause the LLP to re-pay the Outstanding Related Party Loans. On such re-payment, the Partners shall provide, and shall cause each of MVM and Vertical Infradevelopers Private Limited to provide, a no dues certificate in form and substance acceptable to HIPPL.

10.15 Handover Documents

No later than 5 (five) days from the Closing Date, the Partners shall deliver/ handover the Handover Documents to HIPPL or such other Persons as may be nominated by HIPPL.

11. INDEMNITY

11.1 The Indemnifying Persons, jointly and severally to the full extent of each Loss, agree to indemnify, defend and hold harmless the Indemnified Persons from and against any and all Losses, suffered or incurred by any of the Indemnified Persons which arise out of, or result from or are connected with:

- (i) Any breach or misrepresentation or any inaccuracy in any of the Representations;
- (ii) Any breach of any covenant or undertaking of the Indemnifying Persons and/or the LLP contained in this Agreement;
- (iii) any violation of applicable Laws (including Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws) or the terms of any Governmental Approval, or breach of any Contract by the LLP or the Partners, or their Affiliates, officers, KMPs, employees or authorized agents with respect to actions taken relating to the LLP, Business or the Project, on or prior to the Closing Date;
- (iv) Any obligation or liability of the LLP arising as a result of any Tax accrued or imposed on the LLP for, or attributable to, any taxable period (or portion thereof) ending on or prior to the Closing Date or by virtue of being a member of a Tax group of the Partners or any of its Affiliates, or any other breach of a Tax statute, or any liability arising in respect of Taxes including without limitation failure to remit any applicable Tax, to file Tax returns, to register under the applicable Tax statute, disallowance of any expenditure claimed by the LLP by the Tax authorities in relation to any period (or any portion thereof) ending on or prior to the Closing Date;
- (v) Any of specific indemnity items set out in **SCHEDULE VIII** (*Specific Indemnities*); and
- (vi) Any claims under the Transaction Documents, which have not been satisfied pursuant to the terms thereto.

11.2 Indemnification Procedures

- (i) Any Claim for indemnity pursuant to this Agreement shall be made by the

Indemnified Persons by notice in writing to the Indemnifying Persons (such notice, the “**Indemnifying Notice**”). The Indemnifying Notice issued by the Indemnified Persons shall also contain, to the extent available to the Indemnified Persons, a reasonable description of the Claim and the Losses. The Indemnifying Persons shall make the indemnity payment in cash and in immediately available funds (or such other manner acceptable to the Indemnified Persons) to the Indemnified Persons within 30 (thirty) days from the date of the Indemnifying Notice.

(ii) Third Party Claims

- (a) If an indemnity Claim relates to a Third Party Claim against any Indemnified Person, the Indemnified Person shall notify the Indemnifying Persons of such Third Party Claim within a period of 30 (thirty) days from the date of receipt of a written notice with respect to such Third Party Claim.
- (b) In the case of any Claim or proceeding made against the Indemnifying Persons on account of any Third Party Claim which are covered by the indemnity set forth in Clause 11.1, then the Indemnifying Persons may, subject to acknowledging its indemnification obligations in relation to the relevant Third Party Claim and keeping the Indemnified Persons fully indemnified in relation to the relevant Third Party Claim in accordance with this Clause 11, if it so desires and at its own cost, by written notice to the Indemnified Persons within a period of 15 (fifteen) days of receipt of notice of the relevant Third Party Claim from the Indemnified Persons as contemplated under Clause 11.2(ii)(a) above, decide to defend such Claims on its own or in consultation with the Indemnified Persons. Notwithstanding the foregoing and without prejudice to the indemnification obligations of the Indemnifying Persons pursuant to this Clause 11, the Indemnifying Persons shall not have the right to assume control of the defence of a Third Party Claim against any Indemnified Person if: (I) the Third Party Claim entails a criminal action against or potential criminal liability for the Indemnified Persons; (II) the Third Party Claim entails action against or liability for the Indemnified Persons under any applicable Law relating to bribery, corruption, money-laundering or trade sanctions; or (III) the Third Party Claim has been solely made against a Designated Partner of the LLP who has been nominated by HIPPL
- (c) If the Indemnifying Persons choose to defend a Third Party Claim as contemplated under Clause 11.2(ii)(b), the Indemnifying Persons shall have the right to control the defense, negotiation or settlement of such Third Party Claim or proceeding, provided that (I) the Indemnified Persons shall, at their cost, continue to have the right to be represented by its counsel in connection with the defense, negotiation or settlement of such Claim or proceeding. However, in the event that the Indemnified Persons cannot be represented by the same counsel appointed by the Indemnifying Persons on account of any conflict of interest situation, then the costs incurred by the Indemnified Persons in being represented by a separate counsel will be borne by the Indemnifying Persons; (II) the Indemnifying Persons shall, in good faith (A) consult with the Indemnified Persons in relation to such defence; (B) provide the Indemnified Persons an

opportunity to review all written submissions proposed to be made in defence of such Third Party Claim; (C) take into account any inputs and suggestions received from the Indemnified Persons; (D) keep the Indemnified Persons informed of all material developments and events relating to the defence of the Third Party Claim; (III) where any settlement of any such Claim or proceeding is proposed, then, the Indemnifying Persons shall not settle such Claim or proceedings without the prior written consent of HIPPL (on its own behalf and on behalf of all the Indemnified Persons); and (IV) notwithstanding the Indemnifying Persons' election to control the defence, negotiation or settlement of such Third Party Claim or proceeding as provided for above and without prejudice to the indemnification obligations of the Indemnifying Persons, the Indemnified Persons may, at any point of time, take over control of such defence, negotiation or settlement (at the cost of the Indemnifying Persons) if the Indemnified Persons reasonably determine that there are actual or reasonably foreseeable, potential conflicts of interests between the Indemnified Persons and the Indemnifying Persons in relation to the defences that can be taken in relation to the relevant Third Party Claim.

- (d) If the Indemnifying Persons do not assume the conduct of any dispute, compromise, defence, appeal or negotiations with respect to the Claim in the manner as set out in this Clause 11.2(ii)(b), the Indemnified Persons shall have the right to defend themselves against such Claim, and any costs, expenses or other liabilities incurred in connection therewith shall be deemed a Loss for purposes of Clause 11.1.
- (e) If the Indemnified Persons have assumed the conduct of any dispute, defence, compromise or appeal of a Claim, the Indemnifying Persons shall reasonably cooperate with the Indemnified Persons in relation to the conduct of any dispute, defence, compromise or appeal of the Claim and shall furnish the Indemnified Persons with such records, information and testimony, and attend such conferences, proceedings, hearings, trials and appeals as may be reasonably required by the Indemnified Persons.
- (iii) The obligation of the Indemnifying Persons to indemnify the Indemnified Persons pursuant to this Clause 11 shall arise immediately upon any Indemnified Person incurring any liability and being required to make payment thereon in the manner contemplated under Clause 11.2(i). The failure of the Indemnified Persons to timely notify the Indemnifying Persons of a Claim or a Third Party Claim shall not relieve the Indemnifying Persons of any indemnification responsibility under this Clause 11.
- (iv) The obligation of the Indemnifying Persons to indemnify the Indemnified Persons pursuant to this Clause 11 shall arise irrespective of any alternate rights or remedies that may be available to the Indemnified Persons against any Third Party in relation to such Loss.
- (v) All sums payable to the Indemnified Persons by the Indemnifying Persons under this Agreement shall be paid without set-off or counterclaim and free and clear of all deductions or withholdings whatsoever.

- 11.3 If the Indemnifying Persons make any indemnity payment to the Indemnified Persons pursuant to this Clause 11, which is subject to any withholding Tax or Tax in the hands of the Indemnified Persons, the Indemnifying Persons shall pay such additional amounts so as to ensure that the net amount received by the Indemnified Persons is equal to the full amount payable by the Indemnifying Persons to the Indemnified Persons, and the Indemnified Persons receive the amount that they would have been entitled to receive prior to such Taxes.
- 11.4 The Indemnifying Persons shall do all such acts and deeds as may be necessary to give effect to the provisions of this Clause 11, including obtaining all applicable Consents and Governmental Approvals in a timely manner, where required.
- 11.5 A Loss which is suffered by the LLP shall be deemed to be a Loss to HIPPL. HIPPL shall have the sole discretion to require the Indemnifying Persons to make indemnity payments due to HIPPL to the account of HIPPL and / or to the account of the LLP.
- 11.6 Notwithstanding any agreement or understanding to the contrary between the LLP, the Partners, or any other Person, on and from the Closing Date, the Partners hereby absolutely and unconditionally (and shall procure that their respective Affiliates unconditionally):
- (i) waive any and all claims, whether known or latent, that the Partners, or any of the their Affiliates may have against the LLP, in relation to any matter whatsoever including to unpaid dividends, breaches of Contracts, or invoked guarantees or indemnities issued for the benefit of the LLP (including any indemnity obligations hereunder), if any;
 - (ii) agree that the Partners shall not have any claims and hereby waive their rights to make any claim against the LLP with effect from the Closing Date, including any Claims arising out of their indemnification obligations hereunder; and
 - (iii) agree that none of the Partners or their Affiliates shall have any recourse against the LLP, whether as restitution or under contract, law, tort or any other basis whatsoever, for any breach of any Transaction Document including for any liability that the LLP may have with the Partners and which the Partners discharge.
- 11.7 The indemnification rights of the Indemnified Persons pursuant to this Clause 11 shall be notwithstanding any investigation conducted before or after the Closing Date, and notwithstanding any actual or implied knowledge or notice of any facts or circumstances including knowledge which the Indemnified Persons may have as a result of such investigation.
- 11.8 **Limitations on Liability**
- (i) Notwithstanding anything stated in Clause 11, the Indemnifying Persons shall not be liable in respect of a Claim, other than the Claims set out in Clause 11.8(iv), unless, the aggregate of Losses claimed by the Indemnified Persons is greater than Rs 50,00,000 (Rupees Fifty Lakhs) (“**Threshold Loss**”). For the avoidance of doubt, once the aggregate of the Losses exceeds the Threshold Loss, the Indemnifying Persons shall be liable for all Losses, irrespective of the amount, including any and all Losses that is less than the Threshold Loss.

- (ii) Any Tax Claim under this Agreement must be initiated not later than the expiry of a period of 3(three) months from the expiry of the maximum period prescribed under applicable Tax Laws for re-opening of assessment of the relevant Tax.
- (iii) Any Claim apart from the Claims described in Clauses 11.8(ii) above or arising from, or in connection with the matters set out in **SCHEDULE IV**, must be initiated not later than 76 (seventy six) months from the Closing Date.
- (iv) It is hereby agreed and acknowledged between the Parties that the restrictions set forth in this Clause 11.8 shall not apply to any Loss incurred or suffered by the Indemnified Person arising out of, relating to or resulting from (a) breach of Fundamental Warranties, (b) gross negligence, wilful misconduct or fraud by the LLP and/or the Partners in connection with the matters and transactions contemplated under the Transaction Documents, (c) a breach of any covenants or undertaking under this Agreement, (d) any Specific Indemnities or (e) the circumstances set out under Clause 11.1(iv), and any such Claim may be initiated any time without time limit.

11.9 Net Worth Obligation

- (i) Each of the Indemnifying Persons shall undertake to ensure that they at all times maintain sufficient net worth and assets so as to ensure that it is able to meet its indemnification obligations under the Transaction Documents.
- (ii) Each of the Indemnifying Persons, hereby undertake to notify HIPPL, immediately and in any case within 5 (five) Business Days of any such Person becoming aware of any material and adverse change their respective net worth or ability to meet indemnification obligations under the Transaction Documents. Without prejudice to the foregoing, HIPPL may from time to time require one or more of the Indemnifying Persons to provide them a certificate issued by a practicing chartered accountant of repute and acceptable to HIPPL, certifying the net worth of the relevant Indemnifying Persons; provided that HIPPL shall not be entitled to make such a request in relation to any one Indemnifying Person more than 2 (two) times in any calendar year and any such requests shall at least be made no earlier than 6 (six) months following the date on which the relevant Indemnifying Person had last provided HIPPL such a certificate. Upon receipt of such a request by HIPPL, the Indemnifying Persons shall be obligated to provide HIPPL a certificate of net worth as contemplated above within a period of 30 (thirty) days of the request by HIPPL.
- (iii) If HIPPL acting reasonably determines that the net worth of any of the Indemnifying Persons has fallen and such Indemnifying Person would not be able to meet its indemnification obligations under the Transaction Documents, such Indemnifying Person agrees and undertakes to take all actions as may be required to ensure that within a period of 7 (seven) days of being so notified by HIPPL, it shall procure that a creditworthy entity owned and Controlled by such Indemnifying Person and having sufficient net worth assumes identical indemnity obligations jointly and severally with such Indemnifying Person.

12. DISPUTE RESOLUTION

- 12.1 All disputes arising out of, relating to or in connection with this Agreement, including any

question regarding its existence, validity or termination, (“**Dispute**”), shall be referred, at the request in writing of any party to the Dispute, to final and binding arbitration. In the event of such arbitration:

- (i) The arbitration shall be finally resolved through arbitration administered by the SIAC in accordance with the Arbitration Rules of the SIAC for the time being in force (“**Rules**”) (which Rules are deemed to be incorporated by reference into this Clause);
- (ii) The arbitration shall be conducted before a tribunal (“**Tribunal**”) which consists of three (3) arbitrators. The claimant(s) shall nominate one arbitrator in the notice of arbitration. The respondent(s) shall nominate one arbitrator in the response to the notice of arbitration. The two party-nominated arbitrators shall then have twenty (20) days to agree, in consultation with the parties to the arbitration, upon the nomination of a third arbitrator to act as presiding arbitrator of the tribunal, barring which the President of SIAC shall select the third arbitrator (or any arbitrator that claimant(s) or respondent(s) fail to nominate in accordance with the foregoing;
- (iii) The language of the arbitration shall be English. The seat and venue of the arbitration shall be Singapore.
- (iv) The award rendered by the Tribunal shall, in addition to dealing with the merits of the case, fix the costs of the arbitration (which includes the Tribunal’s fees) and decide which of the parties thereto shall bear such costs or in what proportions such costs shall be borne by such parties.
- (v) This arbitration agreement shall be governed by the Laws of Singapore. It is expressly agreed that: (a) provisions of Part I of the Arbitration and Conciliation Act, 1996 (India) will not apply to this arbitration agreement; and (b) provisions of Part II of the Arbitration and Conciliation Act, 1996 (India) will apply to this arbitration agreement.
- (vi) The existence or subsistence of a Dispute or the commencement or continuation of arbitration proceedings, shall not, in any manner, prevent or postpone the performance of those obligations of Parties under this Agreement which are not in dispute.

13. CONFIDENTIALITY AND NON-DISCLOSURE

13.1 Each Party shall keep all information and other materials passing between it and the other Parties in relation to the transactions contemplated by this Agreement, as well as the existence and the terms and conditions of this Agreement (the “**Information**”) confidential and shall not, without the prior written consent of the other Parties, divulge the Information to any other Person or use the Information other than for carrying out the purposes of this Agreement except:

- (i) To the extent that such Information is in the public domain other than by breach of this Agreement;
- (ii) To the extent that such Information is required to be disclosed by any applicable

Law or requested to be disclosed by any Governmental Authority to whose jurisdiction the relevant Party is subject or with whose instructions it is customary to comply, under notice to the other Party(ies); provided that the disclosing Party shall give the other Party a reasonable opportunity to comment on the proposed disclosure and, to the extent permissible, seek a protective order or other appropriate remedy or to waive compliance with the terms of this Agreement;

- (iii) To employees, directors or professional advisors of any Party or its Affiliates on a need-to-know basis, subject to the disclosing Party informing such persons of the confidential nature of such Information, and provided that such Party shall continue to maintain the confidential nature of such Information;
 - (iv) To the extent that any Information has been independently developed by a Party without reference to any Information furnished by any other Party hereto;
 - (v) In the case of HIPPL, to any direct or indirect investors/limited partners/general partners of HIPPL or funds Affiliated with HIPPL;
 - (vi) To the extent that any of such Information is later acquired by a Party from a source not obligated to any other Party hereto, or its Affiliates, to keep such Information confidential;
 - (vii) To the extent that any of such Information was previously known or already in the lawful possession of a Party, prior to disclosure by any other Party hereto;
 - (viii) To the extent required by a Party for the enforcements of its rights and obligations under this Agreement; and
 - (ix) After the Closing Date, any potential transferee of the Partnership Interests by HIPPL.
- 13.2 Notwithstanding the provisions of Clause 13.1, with effect from the Closing Date:
- (i) the Partners shall keep any and all LLP Information and other materials passing between it and the other Parties confidential and shall not, without the prior written consent of the other Parties, divulge the LLP Information to any other Person or use the LLP Information for any purpose;
 - (ii) the LLP and HIPPL shall not require the consent of the Partners to divulge any LLP Information to any other Person or use the LLP Information for any purpose.
- 13.3 No formal or informal public announcement or press release, which makes reference to the terms and conditions of this Agreement or any of the matters referred to herein, shall be made or issued without the written consent of the Parties.
- 13.4 Each Party accepts and acknowledges that the undertakings set out in this Clause 13 are reasonable restrictions placed on the Parties and a breach thereof would cause loss and injury to the other Parties. Each Party agrees that, without prejudice to any other rights of the other Parties, such other Parties will be entitled to seek equitable remedy in the form of restraint orders against the defaulting Party for any breach or attempted breach of this Clause 13.

14. NOTICES

14.1 Unless otherwise stated, all notices, approvals, instructions, demands and other communications given or made under this Agreement shall be in English and in writing and shall be given by personal delivery, or by sending the same by pre-paid registered mail addressed to the relevant Party at its address, or to the email account set out below. In each case it shall be marked for the attention of the relevant Party set forth below. Any notice so served shall be deemed to have been duly given (i) in case of delivery by hand, when hand delivered to the other Party; or (ii) when sent by registered mail or courier, upon receipt by the addressee; and (iii) for electronic mail, upon a confirmation of transmission being recorded on the server of the Party sending the communication, unless the party receives a message indicating failed delivery.

(i) **If to Vikas:**

Address: Building # 78, Third Floor Kapashera, New Delhi 110037

Telephone: +91 9810294412

Email: vikas@verticalwarehousing.com

(ii) **If to Chandervati:**

Address: Building # 78, Third Floor Kapashera, New Delhi 110037

Telephone: +91 9810294412

Email: vikas@verticalwarehousing.com

(iii) **If to HIPPL:**

Address Tower 1, Floor 15, One World Centre, Lower Parel, Mumbai, 400013

E-mail Kunal.shah@hiparks.com

Attention Kunal Harun Shah

Copy to:

Address C/o The Blackstone Group (HK) Limited, Suite 901, 9/F Two IFC

8 Finance Street, Central, Hong Kong

E-mail realestateasianotices@Blackstone.com

Attention Richard Blair

(iv) **If to the LLP, prior to Closing:**

Address: Building # 78, Third Floor Kapashera, New Delhi 110037

Telephone: +91 9810294412

Email: vikas@verticalwarehousing.com

Attention: Mr. Vikas Yadav

(v) **If to the LLP, after Closing:**

Address Tower 1, Floor 15, One World Centre, Lower Parel, Mumbai, 400013

E-mail Kunal.shah@hiparks.com

Attention Kunal Harun Shah

14.2 Any notice so served shall be deemed to have been duly given (i) in case of delivery by hand, when hand delivered to the other Party; or (ii) when sent by registered mail or courier, upon receipt by the addressee; and (iii) for electronic mail, upon a confirmation of transmission being recorded on the server of the Party sending the communication, unless the party receives a message indicating failed delivery.

14.3 A Party may change or supplement the addresses given above, or designate additional addresses, for purposes of this Clause 14, by giving the other Parties written notice of the new address in the manner set forth above.

15. **TERM AND TERMINATION**

15.1 **Term**

This Agreement shall come into effect on the Execution Date and shall remain valid and binding on the Parties until such time that it is terminated in accordance with Clause 15.2 below.

15.2 **Termination**

(i) This Agreement may be terminated prior to Closing at the option of HIPPL, by written notice to the LLP and the Partners, if:

(a) the Conditions Precedent have not been completed to the satisfaction of HIPPL by the CP Fulfillment Long Stop Date, unless expressly waived in writing by HIPPL;

(b) the LLP or the Partners (as the case may be) is in breach any of covenants, undertakings, Representations, or warranties set out in this Agreement;

- (c) there is an occurrence, existence or subsistence of a Material Adverse Effect;
 - (d) if HIPPL is unable to consummate the transactions contemplated in this Agreement on account of a change, modification, amendment or clarification of any applicable Law after the Execution Date or to the interpretation thereof, or where such change, modification, amendment or clarification requires the prior approval of any Governmental Authority or would otherwise restrain, enjoin, otherwise prohibit or make illegal or otherwise make onerous the consummation of the transactions contemplated under this Agreement; or
 - (e) either the LLP or any Partners have been subject of any Sanctions Laws.
- (ii) This Agreement may be terminated at any time prior by the mutual agreement of the Parties.
 - (iii) This Agreement may be terminated, at the option of the Partners, if Closing does not occur by the Closing Long Stop Date, after the Partners have undertaken all actions required to be undertaken by them for Closing and are not in breach of any of the provisions of Clause 5 (*Closing*), Clause 6 (*Conduct Until Closing*) and Clause 13 (*Confidentiality*).

15.3 Effect of Termination

- (i) The right to terminate as aforesaid shall be without prejudice to all the contractual, equitable and legal rights and remedies available to the Parties.
- (ii) The provisions of Clauses 1 (*Definitions and Interpretation*), 12 (*Dispute Resolution*), 13 (*Confidentiality and Non-disclosure*), 14 (*Notices*), this Clause 15.3 and 16 (*Miscellaneous*) shall survive the termination of this Agreement.
- (iii) The termination of this Agreement shall not relieve any of the Parties of any obligation or liability accrued prior to the date of termination.

16. MISCELLANEOUS

16.1 Execution

Delivery of an executed signature page of a counterpart by facsimile transmission or in Adobe™ Portable Document Format (PDF) sent by electronic mail shall take effect as delivery of an executed counterpart of this Agreement. If either method is adopted, each Party shall provide the others with the original of such page as soon as reasonably practicable thereafter.

16.2 Counterparts

This Agreement may be executed simultaneously in any number of counterparts, each of which will be deemed an original, but all of which will constitute one and the same instrument.

16.3 **Specific Performance**

Notwithstanding anything said in Clause 12 (*Dispute Resolution*) above, this Agreement shall be specifically enforceable at the instance of a Party. The Parties agree that the non-defaulting Party will suffer immediate, material, immeasurable, continuing and irreparable damage and harm in the event of any material breach of this Agreement and the remedies at applicable Law in respect of such breach will be inadequate (the defaulting Party hereby waives the claim or defence that an adequate remedy at applicable Law is available) and that the non-defaulting Party shall be entitled to seek specific performance against the defaulting Party for performance of its obligations under this Agreement in addition to any and all other legal or equitable remedies available to it.

16.4 **Entire Agreement**

This Agreement, along with the other Transaction Documents, constitutes and contains the entire agreement and understanding between the Parties with respect to the subject matter hereof and supersedes all previous communications, negotiations, commitments, either oral or written, between the Parties with respecting the subject matter hereof.

16.5 **Governing Law**

This Agreement shall be governed in all respects by the Laws of India (without reference to its conflict of laws provisions).

16.6 **Severability**

Any provision of this Agreement, which is invalid or unenforceable, shall be ineffective to the extent of such invalidity or unenforceability, without affecting in any way the remaining provisions hereof. If for any reason whatsoever, any provision of this Agreement is or becomes, or is declared by a court of competent jurisdiction to be, invalid, illegal or unenforceable, then the Parties will negotiate in good faith to agree on such provision to be substituted, which provisions shall, as nearly as practicable, leave the Parties in the same or nearly similar position to that which prevailed prior to such invalidity, illegality or unenforceability.

16.7 **Amendments**

No change, alteration, modification or addition to this Agreement shall be valid unless in writing and properly executed by the Parties (other than the Confirming Party) hereto.

16.8 **Rights Cumulative**

- (i) The rights, powers, privileges and remedies provided in this Agreement are cumulative and are not exclusive of any rights, powers, privileges or remedies provided by applicable Law or otherwise.
- (ii) No failure to exercise nor any delay in exercising any right, power, privilege or remedy under this Agreement shall in any way impair or affect the exercise thereof or operate as a waiver thereof in whole or in part.
- (iii) No single or partial exercise of any right, power, privilege or remedy under this

Agreement shall prevent any further or other exercise thereof or the exercise of any other right, power, privilege or remedy.

16.9 Successors and Assigns

- (i) Save and except as permitted under sub-Clause (ii) below, no rights, liabilities or obligations under this Agreement shall be assigned by any Party without the prior written consent of the other Parties.
- (ii) HIPPL may assign the whole or any part of this Agreement or its rights and obligations hereunder, without obtaining the consent of any other Party, to one or more Affiliates or to one or more transferees of all or a portion of the Partnership Interest or the Project.

16.10 Costs and Expenses

- (iii) Except as otherwise provided in this Agreement, each Party shall pay its own expenses in connection with the preparation and performance of this Agreement and the consummation of the transactions contemplated hereby, including without limitation, all fees and expenses of legal and financial advisors, independent accountants and actuaries.
- (iv) All stamp duty costs incurred in execution of this Agreement shall be borne by HIPPL.

16.11 No Waiver

No waiver of any provision of this Agreement or consent to any departure from it by any Party shall be effective unless it is in writing, and signed by a duly authorized representative of the concerned Party. A waiver or consent shall be effective only for the purpose for which it is given. No default or delay on the part of any Party in exercising any rights, powers or privileges operates as a waiver of any right, nor does a single or partial exercise of a right preclude any exercise of other rights, powers or privileges.

16.12 Further Assurances

The Parties shall execute other documents, cause meetings to be held, cause resolutions to be passed, exercise their votes and do and perform, and cause to be done and performed such further acts and things as may be necessary or desirable in order to give full effect to this Agreement and the transactions contemplated under this Agreement, whether prior to or after the Closing Date. Wherever this Agreement provides a Party a right to consent to a certain matter at the Party's discretion, this Clause 16.12 shall not prejudice any such right a Party may have to provide or withhold such consent at such Party's sole discretion.

16.13 Relationship of the Parties

The Parties are independent contractors. None of the Parties shall have any right, power or authority to enter into any agreement for or on behalf of, or incur any obligation or liability of, or to otherwise bind, the other Parties except as specifically provided by this Agreement. Nothing in this Agreement shall be interpreted or construed to create an association or

partnership between the Parties, deem them to be persons acting in concert or to impose any liability attributable to such relationship upon any of the Parties nor, unless expressly provided otherwise, to constitute any Party as the agent of any of the other Parties for any purpose.

16.14 **Partner's Representative**

- (i) Mr. Vikas Yadav ("**Partner's Representative**") is hereby constituted and appointed as agent and attorney for and on behalf of the Partners. The Partner's Representative shall have full power and authority, on behalf of each of the Partners to: (a) execute and deliver and receive deliveries of all agreements, certificates, statements, notices, approvals, extensions, waivers, amendments, and other documents required or permitted to be given in connection with or consummation of the transactions contemplated by this Agreement; (b) receive notices in connection with any Claims under this Agreement; (c) negotiate, enter into settlements and compromises of, or assume the defense of, Claims, and demand arbitration and comply with orders of courts and awards of arbitrators with respect to such Claims; (d) give and receive notices and communications on behalf of the Partners in connection with this Agreement.
- (ii) A decision, act, consent or instruction of the Partner's Representative, shall constitute a decision of all the Partners and shall be final, binding and conclusive upon each such Partner, and HIPPL may rely upon any decision, act, consent or instruction of the Partner's Representative, as being the decision, act, consent or instruction of each of the Partners. HIPPL is hereby relieved from any liability to any Person for any acts done by them in accordance with such decision, act, consent or instruction of the Partner's Representative.

16.15 **No Recourse**

Notwithstanding anything that may be expressed or implied in this Agreement and/or the other Transaction Documents, each Party agrees and acknowledges that a Party shall not have any rights against, and no such Person shall make any claim (whether by the enforcement of any assessment, by any legal or equitable proceeding or by virtue of any applicable Laws) against any Non-Recourse Persons in connection with this Agreement, and/or the other Transaction Documents or any other instrument, agreement or document referred to herein or therein or to be delivered hereunder or thereunder (whether by the enforcement of any assessment or by any legal or equitable proceeding, or by virtue of any statute, regulation or other applicable Laws, or by or through attempted piercing of the corporate veil, by or through a claim by or on behalf of any Person against any Non-Recourse Person, in equity or at Law, in contract, tort or otherwise), and that any such claim shall only be made against the Party or other parties to the Transaction Documents (as applicable). In addition, and for clarity, it is expressly agreed and acknowledged by each Party (for itself and on behalf of its Affiliates) that no liability whatsoever shall attach to, be imposed on or otherwise be incurred by any Non-Recourse Person for any obligation of a Party under this Agreement and/or the other Transaction Documents, or any other instrument, agreement or document referred to herein or therein or to be delivered hereunder or thereunder for any claim based on, in respect of, or by reason of such obligations or their creation. For the purpose of this clause, "**Non-Recourse Persons**" means, with respect to a Party, any former, current or future direct or indirect equity holder or other beneficial owner, controlling person, trustee, director, officer, agent,

representative, Affiliate, employee, general or limited partner, member or manager of the Party or any of its Affiliates, or any former, current or future direct or indirect equity holder or other beneficial owner, Controlling person, trustee, director, officer, agent, representative, Affiliate, employee, general or limited partner, member or manager of any of the foregoing, or any representative or any of the successors and assigns of each of the foregoing, but excluding (for clarity) the Parties hereto and any Person who subsequently becomes a party to this Agreement and/or the other Transaction Documents. Notwithstanding any provision of this Agreement, this clause shall survive termination of this Agreement.

16.16 No Use of Blackstone Name

The Partners shall not in any way use the “Blackstone” or “Horizon” name or mark or the mark or the name or mark of any of HIPPL or its Affiliates, or any derivative thereof in any public disclosure, including any press release, without the prior written approval from HIPPL.

16.17 Leasing Non-Compete

The Existing Partners agree and undertake to not, directly or indirectly, engage, solicit, entice away, or attempt to employ or engage, solicit, entice away or negotiate or arrange the engagement by any tenant, lessee, sub-lessee and/ or their respective Affiliates and associates/ clients of any portion of Warehouse 1, Warehouse 2 and/or Warehouse 3.

Provided that the Existing Partners are permitted to engage with such Persons with a view to cater to such Persons’ growth or expansion requirements to the extent such growth or expansion exceeds the available leasable premises of Warehouse 1, Warehouse 2 and Warehouse 3 only, and such engagement should not in any way result in such Person terminating any interests in Warehouse 1, Warehouse 2 and/or Warehouse 3.

[signature pages to follow]

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY EXECUTED AND DELIVERED AS OF THE DAY AND YEAR FIRST HEREINABOVE WRITTEN

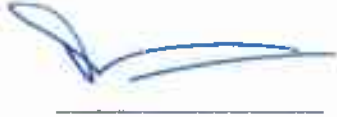
MS. CHANDERVATI YADAV

Chandervati

This signature page forms part of the LLP Acquisition Agreement executed between Mr. Vikas Yadav, Ms. Chandervati Yadav, Vertical Logistic Park LLP, Horizon Industrial Parks Private Limited and Vertical Warehouse Holdings Private Limited..

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY EXECUTED AND DELIVERED AS OF THE DAY AND YEAR FIRST HEREINABOVE WRITTEN

MR. VIKAS YADAV



This signature page forms part of the LLP Acquisition Agreement executed between Mr. Vikas Yadav, Ms. Chandervati Yadav, Vertical Logistic Park LLP, Horizon Industrial Parks Private Limited and Vertical Warehouse Holdings Private Limited.

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORISED REPRESENTATIVES AS OF THE DAY AND YEAR FIRST HEREINABOVE WRITTEN

For VERTICAL LOGISTIC PARK LLP

A handwritten signature in blue ink is written over a horizontal line. To the right of the signature is a circular blue stamp. The text 'VERTICAL LOGISTIC PARK LLP' is written around the perimeter of the circle, and a small star is at the bottom center.

Authorized Signatory

Name: **VIKAS YADAV**

This signature page forms part of the LLP Acquisition Agreement executed between Mr. Vikas Yadav, Ms. Chandervati Yadav, Vertical Logistic Park LLP, Horizon Industrial Parks Private Limited and Vertical Warehouse Holdings Private Limited..

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORISED REPRESENTATIVES AS OF THE DAY AND YEAR FIRST HEREINABOVE WRITTEN

For VERTICAL WAREHOUSE HOLDINGS PRIVATE LIMITED

A handwritten signature in blue ink is written over a horizontal line. To the right of the signature is a circular blue stamp. The text 'VERTICAL WAREHOUSE HOLDINGS PVT. LTD.' is written around the perimeter of the stamp, with a small star symbol at the bottom center.

Authorized Signatory

Name: VIKAS YADAV

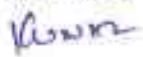
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IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORISED REPRESENTATIVES AS OF THE DAY AND YEAR FIRST HEREINABOVE WRITTEN

For HORIZON INDUSTRIAL PARKS PRIVATE LIMITED



Authorized Signatory

Name:  

This signature page forms part of the LLP Acquisition Agreement executed between Mr. Vikas Yadav, Ms. Chandervati Yadav, Vertical Logistic Park LLP, Horizon Industrial Parks Private Limited and Vertical Warehouse Holdings Private Limited.

SCHEDULE I

CAPITAL CONTRIBUTION

PART A – AS ON THE EXECUTION DATE

S. No.	Name of Partner	Capital Contribution (in Rs.)	Contribution Ratio
1.	Vikas Yadav	50,000	99%
2.	Chandervati Yadav	500	1%

PART B – AS ON THE CLOSING DATE IMMEDIATELY AFTER CLOSING

S. No.	Name of Partner	Capital Contribution (in Rs.)	Contribution Ratio
1.	HIPPL	50,500	100%

SCHEDULE II

CONDITIONS PRECEDENT

1. Each of the Representations shall be true, accurate and not misleading in any respects as of the Execution Date and as of the Closing Date, as though made on and as of each such date.
2. The Partners and the LLP shall have complied in all respects with all covenants and other agreements in this Agreement required to be performed and/or complied with on or prior to Closing.
3. The LLP shall have obtained a fair valuation certificate in respect of the Aggregate Partnership Interest, in form and substance acceptable to HIPPL, from a reputed merchant banker or a chartered accountant as per the valuation methodology prescribed under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 and Income Tax Act, 1961 read with Income Tax Rules, 1962 and the reasonable rationale and basis thereto.
4. The Partners shall have and shall have caused the LLP to take all necessary actions as may be required for consummating the transactions contemplated under this Agreement to HIPPL's satisfaction.
5. No event which would, or is reasonably likely to, individually or in the aggregate, have a Material Adverse Effect shall have occurred or be threatened to occur.
6. The Partners shall have delivered to HIPPL, the Conditions Precedent Satisfaction Letter and shall have, enclosed to such certificate, all necessary documents evidencing fulfillment of each of the Conditions Precedent required to be completed on or prior to the Closing Date.
7. The Partners and the LLP shall have obtained a certificate from a lawyer acceptable to HIPPL confirming the guideline value of all immovable Assets owned by the LLP.
8. The LLP and Partners will facilitate discussions between HIPPL and Reliance Projects and Property Management Services Limited ("**Reliance Projects**") to identify the areas common to Warehouse 1 and Warehouse 2 and the rights and obligations in relation to their maintenance.
9. The LLP shall have made applications, in form and manner acceptable to HIPPL, for discharge of mortgages created on land parcels comprised in Rectangle 39, Kila Nos. 20 and 21 in relation to loans taken by: (a) Shatrughan on his 11/320th share for INR 7,00,000 from OBC bank; and (b) Priya Vart on his 11/320th share for INR 8,06,000 from Indian Bank. Applications shall be sent by (i) registered post acknowledgment due, and proof of receipt provided to HIPPL and (ii) by physical delivery, with reasonable endeavours made to obtain acknowledgment from Indian Bank and provide such acknowledgment to HIPPL.
10. The LLP shall have procured a no objection certificate from Axis Bank Limited (in such form and substance acceptable to HIPPL) in respect of the Closing and certain matters connected thereto.
11. The LLP shall have procured a conditional no dues certificate ("**Conditional NDCs**") from each of the below Persons:

- (a) MVM Developers Private Limited (“**MVM**”);
 - (b) Vertical Infradevelopers Private Limited;
 - (c) Partner 1; and
 - (d) Partner 2,
- in form and substance acceptable to HIPPL, stating: (a) the particulars of the Outstanding Related Party Loans (i.e. the dues payable to the aforesaid Persons); and (b) upon payment of such amounts on or after the Closing Date to such Person, it/he/she shall have no further dues from the LLP, and shall provide a full and final no dues certificate.
12. The LLP shall have: (a) procured balance confirmation letters in form and substance acceptable to HIPPL from each of the vendors whose outstanding balances exceed INR 5,00,000; and (b) written off any advances which are not recoverable from any vendors.
 13. The LLP shall have: (a) filed the Entity Master Form quoting NIC 52109 (i.e. Storage and warehousing) in form and substance acceptable to HIPPL pursuant to the applicable Foreign Exchange Laws; and (b) provided a screenshot evidencing acknowledgment of such filing.
 14. The LLP shall have filed LLP Form 3 to record the terms of the Amended and Restated LLP Agreement dated August 22, 2022 and August 25, 2022.
 15. Each of the Confirming Party and Palra Estate Private Limited shall have adopted an anti-corruption compliance program which shall, take effect on and from Closing Date and, include a written anti-corruption policy designed to ensure compliance by the Confirming Party’s directors, officers, employees and agents with applicable Anti-Corruption Laws, and routine and periodic compliance trainings for such individuals, in each case in a form and substance to HIPPL’s satisfaction.
 16. The LLP shall have entered into a duly stamped addendum (“**DP World Lease Addendum**”) to the Lease Deed dated September 28, 2021 (“**DP World Lease Deed**”) with Delex Cargo India Private Limited (“**DP World**”), in form and substance reasonably acceptable to HIPPL, which records: (I) the actual leasable area of Warehouse 2, which is in compliance with the OC for Warehouse 2 and is not less than 3,30,999 (Three Lakh Thirty Thousand Nine Hundred Ninety Nine) square feet; (II) the rent commencement date being August 30, 2022; and (III) the aggregate monthly rental amount which is not less than INR 56,26,983 (Indian Rupees Fifty Six Lakh Twenty Six Thousand Nine Hundred and Eighty Three).
 17. The Partners shall have (a) procured a certificate from an independent chartered accountant, in form and substance acceptable to HIPPL, confirming that there are no pending proceedings against the Partners which would adversely affect transfer of the Partnership Interest under section 281 of the Income-tax Act, 1961; and (b) provided HIPPL with a copy of the screenshot of the income tax department’s website taken not earlier than 1 (one) day prior to the Closing Date evidencing that that there are no pending proceedings against the Partners which would adversely affect transfer of the Partnership Interest under section 281 of the IT Act.

SCHEDULE III
CONDITIONS PRECEDENT SATISFACTION LETTER

[Dated prior to the Closing Date]

To,

[●]

Re: LLP Acquisition Agreement dated _____ (the “Agreement”) executed by and amongst [●].

We refer to the Agreement executed by the parties thereto. In this letter, all capitalized terms used but not defined shall have the meaning given to them under the Agreement.

We hereby certify, confirm, declare and acknowledge that:

1. The Conditions Precedent set out in Clause 4.1 read with **SCHEDULE II** have been completed and satisfied (other than the Conditions Precedent that can only be satisfied at Closing) and certified copies of the necessary documents evidencing fulfillment of the Conditions Precedent are attached herewith;
2. As of the date hereof, no event which would, or is reasonably likely to, individually or in the aggregate, have a Material Adverse Effect, has occurred or be threatened to occur;
3. We have complied, and will comply, in all respects with all covenants and other agreements in the Agreement required to be performed and/or complied with on or prior to Closing.
4. Each of the Representations shall be true, accurate and not misleading in any respects.

The confirmations and statements contained in this letter shall be binding on us and on our successors and assigns.

Yours sincerely,

For **[insert name of LLP]**

Authorized Signatory

Name:

SCHEDULE IV

REPRESENTATIONS AND WARRANTIES

Each Warrantor represents and warrants to HIPPL as of the Execution Date and the Closing Date that that the following Representations are true, accurate and not misleading in in any respect by reference to facts and circumstances then existing on the Execution Date or the Closing Date (as the case may be):

1. **Power and Authority**

- 1.1 Each of the LLP and the Partners has the power and authority to execute, deliver and perform the Transaction Documents and to consummate the transactions and perform their respective obligations contemplated under the Transaction Documents (to which it is a party, as the case may be).
- 1.2 Each of the Partners is a resident in India as per the provisions of section 2(42) read with section 6 of the Income Tax Act, 1961 and a person resident in India as per the provisions of Section 2(v) of the Foreign Exchange Management Act, 1999.
- 1.3 Each of the Partners is registered with the Indian tax authorities and has been allotted Permanent Account Number (PAN).
- 1.4 The Transaction Documents (to which it is a party, as the case may be) has been duly and validly executed by each of the LLP and the Partners, and constitutes, legal, valid and binding obligations of such party, enforceable against it in accordance with its terms.

2. **Organization and Capital Structure**

- 2.1 The LLP is a limited liability partnership incorporated under the provisions of the Act and is duly organized, validly existing and in good standing under laws of India.
- 2.2 The LLP has the corporate power and authority to own, hold, operate and use its Assets and carry on the Business as now conducted.
- 2.3 The LLP is a resident of India and are not foreign owned or foreign controlled under the Foreign Exchange Laws.
- 2.4 The Capital Contribution of each Partner to the LLP (i) as on the Execution Date and as on the Closing Date immediately prior to Closing is as set forth in Part A of **SCHEDULE I**, and (ii) immediately after Closing on the Closing Date shall be as set forth in Part B of **SCHEDULE I**.
- 2.5 The Partnership Interest which shall be acquired by HIPPL on the Closing Date shall comprise and represent 100% (one hundred per cent) of the Partnership Interest in the LLP.
- 2.6 The constitution and any reconstitution of the LLP has been undertaken in compliance with applicable Laws and all corporate actions (including forms to be filed) required to be performed by the LLP and the Partners under applicable Laws have been duly and timely performed and all stamp duties and other similar fees have been paid.

- 2.7 The Original LLP Agreement sets out the entire understanding of the Partners on: (i) the rights of the Partners in respect of the LLP; (ii) the *inter-se* liabilities of the Partners and the LLP.
- 2.8 Except pursuant to this Agreement:
- (i) There are no rights or interests which entitle or may entitle any Person to any interest in the LLP (economic or otherwise) including pre-emptive rights, rights of first refusal or other similar rights at present or at a later date;
 - (ii) There are no agreements or other arrangements or understandings (save and except the Original LLP Agreement) with respect to the: (a) exercise or transfer of Partnership Interest; or (b) the *inter se* liabilities of the Partners and the LLP;
 - (iii) There are no shareholder agreements, voting trusts or other arrangements or understandings with respect to the voting of any Partnership Interest; and
 - (iv) The LLP has not issued, committed to issue, made any changes to, or registered any sale of the Partnership Interest after the Execution Date.
- 2.9 There are no accrued and unpaid interests or other payables on any part of the Partnership Interest.
3. **Ownership of Partnership Interest**
- 3.1 The Partners are the sole legal and beneficial owners of their respective Partnership Interest.
- 3.2 The Partners have, and will maintain, immediately prior to the Closing, good and marketable title to their respective Partnership Interest, free and clear of any and all Encumbrances, with full right and authority to sell and deliver the same to HIPPL, under this Agreement. On transfer of the Partnership Interest to HIPPL on the Closing Date, HIPPL shall acquire good and marketable title to the Partnership Interest, free and clear of any and all Encumbrances.
- 3.3 The Partners have made all Capital Contributions and acquired their respective Partnership Interest in compliance with the Original LLP Agreement and all applicable Laws. All actions required to be performed by the LLP under all applicable Laws have been duly and timely performed in respect of acquisition of such Partnership Interest and all stamp duties and other similar fees payable has been duly and timely paid.
- 3.4 The Partners have not, nor has anyone on their behalf, done or omitted any act whereby any part of the Partnership Interest can be forfeited or extinguished or any of the Transaction Documents rendered void or voidable.
- 3.5 None of the LLP, the Partners or any of their respective Affiliates have entered into or are parties to any agreement, or commitment or arrangement to give or create any Encumbrance over or which affect the Partnership Interest proposed to be acquired by HIPPL and no written claim has been made or threatened, by any Person to be entitled to any such Encumbrance.

- 3.6 There is no action, Order, suit, proceeding or investigation pending or threatened against the LLP and/or the Partners (as the case may be), which could reasonably result in any change in the current Capital Contributions of the LLP or prejudice HIPPL's title to the respective Partnership Interest to be acquired by it hereunder.
- 3.7 The LLP is solvent and is able to pay its debts as they fall due.
- 3.8 The Partners are not, and are not holding their respective Partnership Interest with the assets of, any "benefit plan investor" within the meaning of Section 3(42) of the US Employee Retirement Income Security Act of 1974, as amended.
4. **Conflicting Instruments, Consents and Governmental Approvals**
- 4.1 The execution, delivery and performance, by the LLP and the Partners, of the Transaction Documents and the transactions contemplated hereby, does not:
- (i) Violate, conflict or breach the terms or provisions of, or constitute a default, an event of default (or an event that, with the giving of notice or lapse of time or both, would constitute an event of default) or an event creating rights of acceleration or termination or a loss of rights under any or all of the following:
 - (a) The LLP Agreement;
 - (b) Any Contract to which the LLP or the Partners is a party;
 - (c) Any Governmental Approval or Order to which the LLP or the Partners is a party, or by which it is bound;
 - (d) Any Consents of any Third Party required to give effect to and complete the transactions contemplated in the Transaction Documents; or
 - (e) Any applicable Law affecting the LLP or the Partners;
 - (ii) result in the creation of any Encumbrance over the LLP, the Project and /or the Project Land and/or other assets of the LLP; or
 - (iii) constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy act or other applicable Law in relation to LLP or the Partners.
- 4.2 No Consent or Governmental Approval is required on the part of the LLP or the Partners in connection with the execution, delivery and performance of the Transaction Documents and the consummation of the transactions contemplated therein, except any Consent or Governmental Approval that is required to be obtained as a Condition Precedent.
- 4.3 No event which could have, individually or in the aggregate, a Material Adverse Effect has occurred or has been threatened.
- 4.4 The LLP and the Partners have terminated all discussions or contracts with any Person (except HIPPL) in relation to any proposed Transfer of the Assets and/or the Partnership Interest, including in relation to granting of any management rights as regards the LLP or

the Project.

- 4.5 Neither the entry into, nor compliance with, nor completion of the Transaction Documents will cause the LLP to lose the benefit of any right, credit or privilege it presently enjoys.

5. **Brokers**

Neither the LLP nor the Partners have entered into any agreement, arrangement or understanding with any Person which could result in the obligation of HIPPL or the LLP to pay any finder's fee, brokerage commission, advisory fee, fees payable to the legal and tax advisors, or similar payment in connection with the transactions contemplated hereby.

6. **Compliance with Laws**

- 6.1 The LLP is in compliance with and has at all times complied with all applicable Laws (including without limitation all applicable Anti-Corruption Laws, Anti-Money Laundering Laws, Sanctions Laws and Environmental Laws), have made timely filing of appropriate returns, statements and reports, and procured requisite registrations with the relevant Governmental Authority. The LLP is not in default with respect to any Order known to and/or served upon it.

- 6.2 The LLP and the Partners have not received any notice from any Governmental Authority in respect of any non-compliance with any applicable Laws including Anti-Corruption Laws, Anti-Money Laundering Laws and Sanctions Laws. There are no threatened or outstanding investigations or inquiries by, or disputes with any Governmental Authority or dispute or proceedings with any Person, or any internal investigation, in each case, relating to any violation of Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws by (i) the Partners, (ii) the LLP or officers, KMPs, employees of the LLP, or (iii) to the Knowledge of the LLP or the Partners, any authorized agents engaged for the purposes of the Business or the Project.

- 6.3 The LLP and Partners have not made any voluntary, direct or involuntary disclosure to any Governmental Authority with respect to any alleged act or omission relating to any non-compliance with any applicable Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws.

- 6.4 The LLP and the Partners have not taken any action that would constitute a violation, or implicate HIPPL in a violation, of any Anti-Corruption Laws. Neither the LLP, the Partners, nor any of their officers, employees, KMPs, or to the Knowledge of the LLP or the Partners, none of the authorized agents engaged for purposes of the Business or the Project have made, promised to make, or caused to be made, any Improper Payments (in each case in relation to the Business or the Project: (i) to or for the use or benefit of any Government Official; (ii) to any other Person either for an advance or reimbursement, with knowledge or reason to know that any part of such Improper Payment would be directly or indirectly given or paid by such other person, or would reimburse such other Person for Improper Payments previously made, to any Government Official; or (iii) to any other Person or entity, to obtain or keep business or to secure some other improper advantage, or the payment of which would otherwise violate any applicable Anti-Corruption Laws.

- 6.5 The LLP is not a Governmental Authority. None of the LLP, the Partners, or any of their respective Affiliates, officers, KMPs, or employees, and to the Knowledge of the LLP or

- the Partners, any authorized agents engaged for the purposes of the Business, or Project is currently a Government Official.
- 6.6 No Government Official is associated with, or owns an interest, whether direct or indirect, in the LLP or the Partners, or has any legal or beneficial interest in the proposed agreement/relationship (including payment of consideration) contemplated by the Transaction Documents.
- 6.7 The LLP has adopted internal controls sufficient to ensure that violations of Anti-Corruption Laws are prevented, detected and deterred.
- 6.8 No Order has been served on the LLP, petition presented, resolution passed or meeting convened for winding up (or other process whereby the Business is terminated or the Assets are distributed amongst the creditors or Partners or other contributories) of the LLP, or for an administration order against the LLP. There are no proceedings under any applicable insolvency, or similar Laws concerning the LLP and no events have occurred which, under applicable Laws, may result in any such proceedings.
- 6.9 The LLP and the Partners have no knowledge of the existence of any United States shareholder / Partner, within the meaning of section 951(b) of the U.S. Internal Revenue Code of 1986, with respect to the ownership of its securities or partnership interest. The LLP has provided HIPPL with true and accurate records of the holders of the Partnership Interest as of the date hereof, and all information regarding any voting trusts, proxies or arrangements of which it is aware. The LLP and the Partners have offered all such reasonable assistance as HIPPL shall have requested to ascertain whether any United States Person owns an interest in any Partner.
- 6.10 No laws have been enacted or otherwise adopted or proposed resulting in a Material Adverse Effect (either before or after the Closing Date).
- 6.11 *Compliance with Economic Sanctions*
- (i) Neither the LLP, the Partners or their respective KMPs, officers, or employees, or to the Knowledge of the LLP or the Partners, any of the authorized agents engaged for the purposes of the Business, or Project, is a Sanctioned Person, or otherwise a person or entity with whom transactions are prohibited under any Sanctions Laws.
 - (ii) None of the LLP, the Partners, or their respective KMPs, officers, or employees, and to the Knowledge of the LLP or the Partners, any authorized agents engaged for the purpose of the Business or the Project, has made any sales to or engaged in business activities with or for the benefit of, and for the purposes of financing the activities of (a) any Sanctioned Person; (b) any Sanctioned Jurisdictions; or (c) otherwise in violation of any Sanctions Laws.
 - (iii) The Partners will not use any amount payable under the Transaction Documents or the relationship proposed herein, for the purposes of financing the activities of any Sanctioned Person, or otherwise in violation of any Sanctions Laws.
- 6.12 *Compliance with Anti-Money Laundering Laws*
- (i) None of the LLP, the Partners, nor their Affiliates has taken any action that would

constitute a violation of any applicable Anti-Money Laundering Laws.

- (ii) The operations of the LLP have been conducted at all times in compliance with applicable Anti-Money Laundering Laws. The LLP has not used, employed, transferred, or transacted in any funds in connection with the Business or Project that are derived from or reflect the proceeds of any illegal activity or conduct.

6.13 *Books & Records*

- (i) The LLP: (a) keeps books and records which, in reasonable detail, accurately and fairly reflect the transactions and dispositions of the Assets of the LLP, and (b) maintains a system of internal accounting controls sufficient to provide reasonable assurances that:
 - (A) transactions are executed and access to Assets is permitted only in accordance with management's general or specific authorisation;
 - (B) transactions are recorded as necessary: (I) to permit preparation of financial statements in conformity with Accounting Principles or any other criteria applicable to such statements, and (II) and to maintain accountability for Assets;
 - (C) the recorded accountability for assets is compared with the existing Assets at reasonable intervals and appropriate action is taken with respect to any differences; and
 - (D) it does not maintain any off-the-books accounts or more than one set of books, records or accounts.

7. **Absence of Litigation**

- 7.1 There is no Litigation (whether by way of counter claim or appeal or otherwise) pending or threatened, which has been initiated by the LLP and/or the Partners against any Third Party or by a Third Party against the LLP and/or the Partners, or any dispute which is likely to result in Litigation by the LLP and/or the Partners against a Third Party or by a Third Party against the LLP and/or the Partners.
- 7.2 Without prejudice to the generality of the foregoing, there is no Litigation against the LLP and/or the Partners that may: (i) restrain or make illegal the consummation of the transactions contemplated by the Transaction Documents; (ii) affect the Assets of the LLP, including the Project and/or Project Land.

8. **No Investments**

The LLP is not the holder or beneficial owner of any shares or other capital in any body-corporate (wherever incorporated or not) and does not otherwise Control any Person, whether directly or indirectly, whether through the ownership of securities or through Control over composition of board of directors or by contract or proxy, or whether alone or in concert with others.

9. **Financial Statements**

- 9.1 True, correct and complete copies of the Delivered Financial Statements have been provided to HIPPL prior to the Execution Date.
- 9.2 The Financial Statements of the LLP, including the Delivered Financial Statements, and the notes thereto present fairly and accurately in all respects the financial position and results of operations of the LLP, as of the respective dates and for the respective periods covered thereby. The Financial Statements and the notes thereto have been or are prepared in accordance with applicable Law and Accounting Principles consistently applied and followed throughout the period indicated, and are true and correct in all respects. The balance sheets reflected in the Financial Statements present true and complete representations of the Assets and Liabilities of the LLP as of the dates specified therein. The LLP has established and maintains, adheres to and enforces a system of internal accounting controls that are effective in providing assurance regarding the reliability, completeness and accuracy of financial reporting and the preparation of its Financial Statements in accordance with applicable Law and Accounting Principles.
- 9.3 The LLP keeps books, records and accounts in reasonable detail that accurately and fairly reflect:
- (i) The acquisitions and dispositions of Assets of the LLP;
 - (ii) The value of inventory calculated in accordance with Accounting Principles; and
 - (iii) All other transactions of such entity required to be maintained/ recorded under applicable Law and Accounting Principles.
- 9.4 All accounts and notes receivable of the LLP have arisen from bona fide transactions in the Ordinary Course and are payable on ordinary trade terms. None of the accounts or the notes receivable of the LLP are subject to any defences, set-offs or counter-claims.
- 9.5 All amounts or dues outstanding or payable to the vendors of the LLP are reflected in a true and fair manner as liabilities in the Delivered Financial Statements and, except as disclosed therein, no amounts or dues are payable or outstanding to any vendor of the LLP.
- 9.6 The Delivered Financial Statements have adequate provisions for all Tax for which the LLP is liable in respect of any transaction or event occurring or income derived for the periods covered thereby.
- 9.7 The LLP does not maintain any off-the-books accounts or more than one set of books, records or accounts.
- 9.8 The Delivered Financial Statements fully disclose all transactions between LLP, on the one hand, and a Related Party of the LLP, on the other hand, and amounts outstanding thereunder.
- 9.9 All Current Assets are recoverable at value at which they are recorded in the Financial Statements.
10. **Liabilities and Financial Indebtedness**
- 10.1 Other than the borrowings and guarantees disclosed in the Delivered Financial Statements,

the LLP does not have any outstanding Financial Indebtedness or other borrowings/Liabilities as of the respective dates. All the Financial Indebtedness or other borrowings or liabilities availed by the LLP have been used / incurred for construction of the Completed Warehouses.

- 10.2 Except as disclosed in the Delivered Financial Statements, (i) the LLP does not have any other Liabilities of any other nature, including any Liabilities that are not required to be reflected on the face of the balance sheet in accordance with Accounting Principles; and (ii) the LLP has not written down or written up (or failed to write down or write up in accordance with the accounting or audit practices applied on a basis consistent with the past practices of the LLP) the value of any receivables or adjusted the book value of the Project.
- 10.3 The LLP is not a party to any swap, hedging or derivative transactions/ agreements or other similar arrangements.
- 10.4 The LLP has not received any notice to repay under any Contract relating to any Financial Indebtedness, which is repayable on demand.
- 10.5 The LLP has not defaulted (including in respect of repayment) of any Financial Indebtedness (including interest payable thereunder) in accordance with the respective terms of lending documents executed by it and no notice of default, breach, prepayment, fines, penalties, delay interest, etc. has been received by the LLP from any of the existing lenders of the LLP or to whom any Financial Indebtedness is owed by the LLP.
- 10.6 The LLP is not in breach of any applicable terms and conditions of any lending documents executed by it in relation to any loan/credit/borrowing availed by it.
- 10.7 There are neither any disputes between the LLP and any vendor nor are there any unaccounted claims, liquidated damages, penalty, interest levied by any vendor on the LLP, and there are no facts or circumstances which may reasonably be expected to give rise to any such dispute or claims.
- 10.8 All brokerages or any other similar expenses, including Taxes in relation to the Project or Project Land have been duly discharged and there is no outstanding obligation of the LLP in this regard.
- 10.9 Save and except the amounts set out in the below table (such amounts, “**Outstanding Related Party Loans**”), there are no amounts or liabilities owed by the LLP, to the Partners or their respective Affiliates.

Name of Partner / other Affiliate	Outstanding Related Party Loans
Mr. Vikas Yadav	INR 21,36,729
Ms. Chandervati Yadav	INR 40,49,09,925
MVM Developers Private Limited	INR 1,56,00,000
Vertical Infradevelopers Private Limited	INR 19,00,000

11. Taxes

- 11.1 All property taxes, land user conversion charges and other amounts and Taxes relating to the Project or the Project Land payable to any Governmental Authority which could directly or remotely constitute a charge / lien on the Project or otherwise adversely prejudice or affect the transactions herein, have been duly and timely paid by the LLP, and there are no outstanding payments to be made to any Governmental Authority in relation to same.
- 11.2 No property tax is payable on the Warehouses or any other buildings forming part of the Project. And no notices have been received from any Governmental Authorities in this regard.
- 11.3 The LLP has withheld with respect to its employees and all other Third Parties, all applicable Taxes required to be withheld by applicable Law and has made payment of such Taxes to the appropriate authorities within the due dates thereof.
- 11.4 The LLP will not be required to include any item of income in, or exclude any item of deduction from, taxable income for any taxable period (or portion thereof) ending after the Closing Date as a result of any action taken prior to the Closing Date.
- 11.5 There are no claims, proceedings, actions or demands against the LLP in relation to Taxes, or any notices in this regard, that are pending or threatened. The LLP does not have any liability for any unpaid Taxes which have not been accounted for or reserved fully in the Delivered Financial Statements.
- 11.6 The LLP:
- (i) Is not a party to, nor has any obligation, under any Tax-sharing, Tax indemnity or Tax allocation agreement or arrangement; and
 - (ii) Is not, nor has it ever been, a member of an affiliated, consolidated, combined or unitary group for any period or a party to any joint venture, partnership or other agreement that could be treated as a partnership for Tax purposes, or has any liability for the Taxes of another Person, whether as a transferee or successor, by contract or otherwise.
- 11.7 There has not been any and there is no Contract, including but not limited to the provisions of the Transaction Documents, covering any employee or former employee of the LLP that, individually or in the aggregate, could give rise to the payment of any amount that would not be deductible as an expense under applicable Law or Accounting Principles.
- 11.8 The LLP has not entered into any scheme or arrangement that was designed to willfully avoid Taxes.
- 11.9 The LLP is not treated for any Tax purpose as resident in a country other than India and the LLP has not had a branch or permanent establishment in a country other than India.
- 11.10 The LLP (i) has complied with all applicable Laws relating to Taxes; and (ii) has

- appropriately claimed deductions and made disallowances, correctly capitalized assets, offered income and computed Tax, under Applicable Law, in its tax returns from an income-tax perspective. The LLP has filed true and complete returns, estimates, information statements, reports and other filings required by Law relating to Taxes required to be filed by it with any Governmental Authority. All records which the LLP is required to keep in respect of Taxes under applicable Law or which would be needed to substantiate any claim made or position taken in relation to Taxes by the LLP, have been duly kept by the LLP. With respect to any period for which Tax returns/filings are not yet due and thus have not been filed, or for which Taxes are not yet due, the LLP has made due and sufficient accruals for such Taxes in its books and records in accordance with applicable Laws.
- 11.11 The LLP is in compliance with all transfer pricing requirements and all the transactions between the LLP and Related Parties have been effected on an arm's length basis.
- 11.12 The LLP has not, since inception, (and the Partners have not on behalf of the LLP) filed any entity classification election with the U.S. Internal Revenue Service with respect to itself.
- 11.13 The LLP has not been Relevant for U.S. federal income tax purposes prior to the Closing Date. "**Relevant**" for these purposes means that the classification of such entity for U.S. federal income tax purposes as either an association taxable as a corporation or an entity that is tax-transparent (i.e., either a partnership or an entity disregarded as separate from its owner) affects the liability of any Person for U.S. federal tax or information purposes.
- 11.14 The LLP has never filed a declaration in Form 10-IC as per Section 115BAA(5) of the Income Tax Act, 1961.
- 11.15 All the deductions / allowances / expenditures claimed for the purpose of business of the LLP by the LLP in its respective tax returns have been incurred by the LLP wholly and exclusively for the purpose of its businesses and are not excessive or unreasonable to the extent they are paid by the LLP to persons referred to in Section 40A(2)(b) of the IT Act.
- 11.16 All returns, computations, notices, deductions, withholdings and information which are or have been required to be made or given by the LLP for any Taxation purposes have been made as required under applicable Laws (along with requisite penalty/fee, in case of any delayed/ belated filings) for the period up to the Closing Date, and are true, correct and complete and are not the subject of any dispute with the taxation authorities, and all Taxes have been deducted and filings with respect to the same have been done and completed in accordance with applicable Law.
- 11.17 There are no outstanding agreements, waivers or arrangements extending the statute of limitations with respect to any Taxes of the LLP.
- 11.18 The LLP has claimed interest expenditure for Tax purposes only on borrowings which have been utilized for construction of the Project or for the business of the LLP.
- 11.19 The aggregate of all amounts received, including amount received for sales, turnover or gross receipts, in cash, by the LLP does not exceed 5% (five percentage) of such aggregate amount and aggregate of all payments made including amount incurred for expenditure, in cash, by the LLP did not exceed 5% (five percentage) of such aggregate payment.

- 11.20 There are no claims, proceedings, actions or demands against the LLP in relation to Taxes that are pending or threatened. No notices in relation to such claims, proceedings, actions or demands have been received by the LLP from any Governmental Authority. All Taxes which are payable by the LLP under applicable Law to the respective statutory or the Governmental Authority are paid up to date (whether or not shown or described in the filings) and the LLP does not have any liability for any unpaid Taxes which have not been accounted for or reserved fully in the Delivered Financial Statements. The LLP has not been subject to or is not currently subject to any investigation, audit, or search and, or seizure by any Tax authorities. There are no actual, pending or threatened liens, encumbrances on any of the assets of the LLP which arose in connection with any failure to pay any Taxes.
- 11.21 Any outstanding Tax receivables as reflected in the Delivered Financial Statements are refundable under applicable Laws.
- 11.22 The LLP has complied fully with all statutory requirements relating to the Tax enactments including but not limited to income-tax, goods and services tax, value added tax, sales tax (central as well as state), works contract tax, service tax (including registration in correct category of taxable service, correct availment of CENVAT / goods & sales tax credit on valid CENVAT / goods & sales tax documents, as applicable), customs duties, excise duties, taxes on entry into local areas, and any other central and local levies and all notices, provisions and conditions made or issued thereunder including (for the avoidance of doubt) the terms of any agreement reached with any tax authority in India or any overseas jurisdiction (along with requisite penalty/fee, in case of any delayed/ belated filings).
- 11.23 The LLP has acquired the Project Land at a value which is equal to or higher than the “stamp duty value” (as defined under the Explanation to Section 56(2)(vii) of the IT Act) of the Project Land.
- 11.24 The LLP has claimed all input Tax credit, benefits, refund, incentives, rebate, licenses etc in line with the indirect Tax Laws and the Governmental Authorities have not questioned or challenged availment, entitlement, eligibility of the LLP to claim such benefits, refund, incentives, rebate, licenses.
- 11.25 All goods, services or other inputs for which the LLP has claimed any exemption, credit, deduction or similar treatment with respect to any indirect Tax have been or are to be used for the purposes of the Business, and such exemption, credit, deduction or similar treatment is a valid exemption, credit, deduction or similar treatment available to the extent claimed.
- 11.26 There is no Tax liability in addition to the liability disclosed in the Delivered Financial Statements or the Estimated Closing Date Financial Statements and paid under respective returns for transactions undertaken up to the Closing Date.
- 11.27 The LLP has been discharging their obligations in relation to any Tax benefits availed of by them as required under applicable Law and no written notice/ letter/ summon/ communication (including email) has been received by them from any Governmental Authority in respect of any amounts payable by them in respect thereof which have not been responded by LLP.
- 11.28 Other than as set out pursuant to Clause 10.3, no Taxes are required to be paid to the income tax department under applicable Tax Laws in respect of the capital gains arising under

Section 45(4) of the IT Act.

- 11.29 The LLP has withheld with respect to third parties, all applicable Taxes was required to be withheld by Applicable Law and has made payment of such Taxes to the appropriate authorities in a timely manner.

12. Partner Tax Warranties

- 12.1 The Partner is not treated for any Tax purpose as resident in a country other than India.
- 12.2 There are no Tax proceedings pending against the Partners under any applicable Laws and (i) all undisputed claims of Tax under applicable Laws have been duly discharged in full, and (ii) there are no disputed claims of Tax under applicable Laws pending against the Partner.
- 12.3 All income Taxes due and payable have been duly discharged by the Partners and all Tax returns required to be filed by it, have been filed in accordance with the provisions of applicable Laws.

13. Tangible Movable Property

The LLP has good and marketable title to, or has valid leasehold interest in or valid rights under Contract to use, all tangible movable property reflected in the Delivered Financial Statements. All tangible movable property reasonably necessary for the conduct of the Business is reflected in the Delivered Financial Statements. All such tangible personal property is free and clear of any Encumbrances and no Person other than the LLP has any subsisting rights, claim or title over such tangible movable property, including the right to possess or use such tangible movable property. All such tangible movable property are in good condition and in a reasonable state of repair, reasonable wear and tear excepted, and material maintenance on such items has not been deferred beyond a reasonable time period. The LLP has not given any rights to any Third Parties with respect to any of such movable property.

14. Immovable Assets

- 14.1 The LLP has sole, clear, absolute and marketable title to the Project and the Project Land, free and clear of all Encumbrances of any nature whatsoever.
- 14.2 The LLP has uninterrupted, absolute, legal and physical possession of the Project Land except where actual or constructive possession has been granted to any permitted Persons under any Tenant Agreements.
- 14.3 All documents of title relating to the Project Land, a list of which has been included in **SCHEDULE VI** have been validly executed, adequately stamped and duly registered as required under applicable Law and such title documents that are required to be registered as per applicable Law have been duly registered. The LLP is in possession and has custody of originals of all such documents of title and **SCHEDULE VI** includes true and accurate details of the physical location at which the title documents referred to therein are held.
- 14.4 The description of the Project and the Project Land included in this Agreement and its boundaries as reflected in this Agreement are true and accurate.

- 14.5 The Project Land constitutes all interests in immovable property currently used or currently held for use in connection with the Business and which are necessary for the continued operation of the Business as currently conducted. The Project and Project Land, together with all the fixtures and improvements thereon owned by the LLP, are in good operating condition and repair (subject to normal wear and tear), and have been properly serviced and maintained, and the construction and usage thereof is in compliance with applicable Law, including all Environmental Law.
- 14.6 All requisite planning and other Governmental Approvals required under applicable Law, have been obtained in relation to the construction and development of the Warehouse 1 and Warehouse 2 and the construction of the said Project has been undertaken in compliance with such Governmental Approvals. Without prejudice to the generality of the foregoing, the construction and development of the Project has and is being undertaken in compliance with applicable Laws relating to fire safety.
- 14.7 The LLP does not own or hold and is not in possession of any land parcels other than the Project Land and has not encroached upon any land parcels adjacent to the Project Land.
- 14.8 The total floor space index (“FSI”) available on the Project Land is 0.75.
- 14.9 Details of sanction plans for the Project and the respective land area sanctioned for construction thereunder are set out below:

Sanction Plan	Date	Land Area (as denoted in sanction plan)	Warehouse
Memo No. JR-1058/AD(RA)/2018/21829	July 24, 2018	43,541.08 square metres	Warehouse 1
Memo No. JR-1055-C/JD(RD)/2021/31134	December 9, 2021	1,02,936.47 square metres	Warehouse 2

- 14.10 Details of built up areas as specified under the completion and occupancy certificates obtained for each of Warehouse 1 and Warehouse 2 are set out below.

Warehouse	Date	Area specified in certificate
Warehouse 1	29-04-2022	35,445.47 square metres
Warehouse 2	30-08-2022	30,862.519 square metres

The LLP has undertaken all acts required under applicable Law (including payment of requisite charges and penalties) for regularization of the abovesaid built up area of Warehouse 1 and Warehouse 2.

- 14.11 The Project Land benefits from all permanent and legally enforceable easements and other contractual rights (if any) necessary or appropriate for the continued use, enjoyment and maintenance of such property.
- 14.12 The Project Land does not include any areas that are (i) listed as of special architectural, historic significance, (ii) part of a conservation area, or (iii) reserved for any public purpose or use, or (iv) earmarked as right of way or meant for easement rights granted to any third party through the Project Land, and the Project has not been developed upon or over any such areas. The Project Land and any portion thereof does not form a part of any special economic zone notified under applicable Laws. The Project Land is located outside any buffer zones of water bodies (including water channels and nullahs), coastal areas, railway lines, and protected wildlife parks / sanctuaries (or any other ecological clusters. No notice has been served on the LLP by any Governmental Authority which might impair, prevent or otherwise interfere with the owners' proprietary rights in respect of the Project Land and Project.
- 14.13 The Project Land does not presently consist of any agricultural land and is currently zoned for the appropriate purposes (for warehousing or commercial use) for which it is being used.
- 14.14 There shall be no restrictions under the zoning regulations or other applicable Laws pertaining to the Project Land which restricts the development of the Project. The present use thereof continues to remain in compliance with all Governmental Approvals issued by the Governmental Authorities in respect of the Project Land.
- 14.15 Neither the LLP nor its predecessor in title, has given any rights of easement, pathways, public road, traditional rights of use as access or otherwise over the Project Land and there are no third party right(s) existing over the Project Land and the LLP has not received any notice from any Third Party claiming such rights over the Project Land or Project.
- 14.16 All the Governmental Approvals issued by the Governmental Authorities are valid and subsisting and have not received any notice from the concerned Governmental Authorities in relation to breach of such Governmental Approvals in respect of the Project Land.
- 14.17 There is free ingress and egress to the Project with no circumstances that would affect such free ingress and egress to the Project Land, in any manner whatsoever. The LLP has clear, valid, absolute and marketable rights to the access path providing ingress and egress to the Project Land.
- 14.18 There does not exist any actual or threatened condemnation, eminent domain or compulsory land acquisition proceedings, actual or threatened, that affects the Project and/or the Project Land, and neither the LLP nor the Partners have received any notice, oral or written, of the intention of any Person to take or use all or any part thereof.
- 14.19 There is no Litigation, which is ongoing, implied or is threatened which may have an effect on the right, title, marketability of or interest on the Project Land.
- 14.20 The LLP is not obligated under or a party to, any option, right of first refusal or other right under Contract to purchase, acquire, sell, assign or dispose of any immovable property or any portion thereof or interest therein.

- 14.21 There is no private or governmental action, or investigation pending before any Governmental Authority which is ongoing, or which may have an adverse effect on the right, title, marketability of or interest on the Project Land.
- 14.22 Neither the LLP nor anyone on its behalf has done, committed or omitted to do any act, deed, matter or thing (whether written, oral or in writing), whereby, the LLP's right to own, hold, use, manage, occupy, construct, develop, sell, assign, lease, sub-lease, license, mortgage, charge, lien, lease or transfer the Project or the Project Land or any part thereof, is or can be forfeited, extinguished or rendered void or voidable. The LLP has not entered into any arrangements or agreements, agreeing to transfer, gift, alienate, or grant possessory rights, in any other manner whatsoever, over the Project and/or Project Land and has not accepted or received any earnest money or advance deposit or other amounts whatsoever in respect thereof so as to prejudice their right to enter into the Transaction Documents and complete the actions contemplated herein.
- 14.23 There are no Persons who are in possession of the Project Land and there are no instances of Persons claiming any rights adverse to the interest of the LLP in the Project Land or any parts thereof.
- 14.24 There are no restrictions under the applicable Laws (including in respect of urban land ceiling law) which may obstruct the and enjoyment and use of, the Project Land by the LLP.
- 14.25 The various portions comprising the Project Land are contiguous, form one composite block of land, completely bounded and there are no boundary disputes or encroachments with respect to the Project and the Project Land. No portion of the Project Land has any land which is kharab or is otherwise rendered unusable (including on account of any obstruction, existing structures or natural objects) such that there shall be an adverse effect on the development potential.
- 14.26 The physical characteristics of the Project Land (including topography, flood-risk, soil quality, geo-technical considerations, etc.) are suitable for the development of the Project and do not impact the feasibility of undertaking such developments.
- 14.27 The Project Land is not impacted by any road widening requirements. In case any portion of the Project Land is required to be surrendered for road-widening works, the development potential shall remain unchanged.
- 14.28 There are no amounts outstanding in respect of land dues or other land related payments including, stamp duty, registration fees, transfer charges, conversion charges, differential premium, standard transfer fees (together with applicable interest thereon, if any), and any penalties payable to any Governmental Authorities, change in land use or zoning charges (including making the Project Land eligible for development of the Project), premium under applicable urban land ceiling law, and any Taxes (including goods and service tax) payable in connection with the acquisition with the Project Land, and all of the foregoing amounts have been paid on time in accordance with applicable Laws.
- 14.29 Save and except the LLP which owns the Project Land, there is no Person, in any capacity including that of a lessee, sub-lessee, tenant or licensee, who has any right to use, occupy or enjoy the Project Land. The LLP has not granted any such right or interest to any Person.

- 14.30 The LLP has paid all applicable betterment and/or improvement charges in connection with infrastructure provided by the Governmental Authorities to appropriate Governmental Authorities in relation to the Project Land in accordance with applicable Laws.
- 14.31 Adequate setback (as per Applicable Laws) has been maintained in relation to the high-tension line running through the Project Land. Further, to the knowledge of the LLP and/or the Partners, the said high-tension line does not interfere with or adversely affect the operations of the Project.
- 14.32 Other than in respect of equipment under Warehouse 1 which is being maintained by Reliance Projects, all other fit-outs, furnishing and equipment in the Project are covered by the defect liability protection under the relevant agreements entered into by the LLP with the relevant vendors.
- 14.33 *Tenant Agreements*
- (i) The Tenant Agreements executed by the LLP and the licensees occupying premises on the Project have been validly executed by the LLP, adequately stamped and duly registered as required under applicable Law.
 - (ii) As on the Execution Date, there are no licensees, lessees, or tenants other than pursuant to Tenant Agreements.
 - (iii) Each of the Tenant Agreements are in full force and effect, and the LLP has not received or given any notice of any breach or default or event that with notice or lapse of time, or both, would constitute a breach or default by the LLP under any of the Tenant Agreements. No party to the Tenant Agreements has exercised any termination rights with respect thereto or communicated to the LLP or the Partners of any intention to terminate any Tenant Agreement or request any amendments to any Tenant Agreement to reduce the rent, leased area and/or other terms that are less favorable to the LLP. There are no actual or threatened grounds to terminate any Tenant Agreements by any of the parties thereto.
 - (iv) There are no consents or waivers required under the Tenant Agreements, for the consummation of the transactions contemplated under the Transaction Documents.
 - (v) The LLP is not under an obligation under any of the Tenant Agreements to undertake any capital expenditure or development in any of the units in the Project.
 - (vi) The LLP is in compliance with all tenant requirements and specifications of leased areas of the Project as per the Tenant Agreements (including installation of adequate transformers / diesel generator set).
 - (vii) None of the tenants have been in breach or default of any provisions of the respective Tenant Agreements.
 - (viii) The Warehouse 1 and Warehouse 2 have been leased out in entirety to the respective tenants pursuant to the terms of the respective Tenant Agreements. True and complete copies of the Tenant Agreements subsisting as of the Execution Date have been provided to HIPPL.

- 14.34 **Annexure G** contains true, complete and accurate details of:
- (i) the rent rolls for the Project as of the Execution Date and does not include any rents allocable towards any specific tenant improvements.
 - (ii) the rent escalation under each Lease relating to the Project as of the Execution Date;
 - (iii) the Security Deposits (whether in the form of cash, letter of credit or otherwise) under each Lease relating to the Project as of the Execution Date;
 - (iv) the prepaid rents under each Lease relating to the Project as of Execution Date; and
- 14.35 Save and except an amount of INR 11,65,386 (Indian Rupees Eleven Lakhs Sixty Five Thousand Three Hundred Eighty Six only) invoiced to Reliance Projects vide Invoice No: GST/21-22/006 dated September 2, 2021, there are no defaults under any Lease relating to the Project.
- 14.36 There are no unexpired or outstanding Incentives under any Lease relating to the Project.
- 14.37 The Warehouse 1 and Warehouse 2 have been constructed and maintained at all times in compliance with applicable Laws, including the National Building Code, 2005. The Warehouse 1 and Warehouse 2 have been built after providing for necessary setbacks (as required under applicable Laws) from the high-tension lines and the nearby railway lines.
- 14.38 No rent, maintenance charges, utility charges waiver, abatement, deferment arrangements or any other rent, fee or cost waiver arrangements have been entered into with any tenant in the Project, and whether on account of COVID-19 or otherwise and no such amounts are overdue from any tenant.
- 14.39 The LLP has not entered into any common area maintenance or utility agreements with the tenants of the Completed Project.
- 14.40 The LLP has not received any notice from tenant for (i) terminating the maintenance services; (ii) any change or request for change in the terms of the rent, fees or any other amounts payable (including by way of withholding, set-off or deduction) by the tenant under the respective Tenant Agreements, or rent concessions provided or to be provided by the LLP; (iii) any change or request for change in the area of the premises subject to such Tenant Agreement; (iv) any termination or request for termination of such Tenant Agreement prior to the expiry of the term of the Tenant Agreement and any request to terminate or otherwise repudiate (or purportedly terminate or repudiate) its lease prior to the expiry of its term; (v) any breach or default under of such Tenant Agreement; or (vi) any change in or request for modification of any other terms of such Tenant Agreement.
- 14.41 The LLP has not received from any tenant in the Project security deposit other than as set out in **Annexure G**. The LLP holds all such security deposits in its own accounts.
- 14.42 Tenants in the Project are not entitled to claim any refund or reimbursement of the lease rent, maintenance amounts or utility charges, paid under the respective Tenant Agreements and the respective maintenance agreements.

- 14.43 Neither the LLP or the Partners have entered into separate arrangements with any tenant (that is other than the Tenant Agreements) for hiring of fixtures and fit-outs in the Project.

15. Environmental Matters

- 15.1 The LLP has complied with all applicable Environmental Law and the LLP and the Partners have not received any notification under any Environmental Law requiring them to take or omit to take any action.
- 15.2 All Environmental Permits required for the operation of the Business have been obtained and the LLP is in compliance with all conditions required to be complied with under such permits.
- 15.3 There are no facts or circumstances indicating, and none of the Partners or the LLP has received any notification, that any such Environmental Permit is to be modified, revoked, suspended or not renewed.
- 15.4 No Environmental Proceeding is pending or threatened by or against the LLP or any Person for whose acts or defaults the LLP may be vicariously liable.

16. Consents and Governmental Approvals

- 16.1 The LLP possesses all Consents and Governmental Approvals required under any applicable Laws for the conduct of the Business as currently conducted or ownership or operations of its Assets, including required registrations under Tax Law. The LLP has performed in all respects all of its obligations under each Consent and Governmental Approval and is in compliance with all conditions in each such Consent and Governmental Approval. No event has occurred or condition or state of facts exists which constitutes or, after notice or lapse of time or both, would constitute a breach or default under, or which would allow revocation or termination of, any such Consent or Governmental Approval. Neither the Partners nor the LLP has received notice of cancellation, default or dispute concerning or amendment or modification of any such Consent or Governmental Approval. All such Consents and Governmental Approvals shall subsist after the Closing Date in accordance with their respective terms.
- 16.2 All Consents and Governmental Approvals required under any applicable Laws in respect of each of the Project and Project Land have been duly obtained, including the environmental clearance, consent to establish and operate under the Water Act and Air Act, no objection from the fire department. All obligations under each such Consents and Governmental Approvals have been duly complied with. No event has occurred or condition or state of facts exists which constitutes or, after notice or lapse of time or both, would constitute a breach or default under, or which would allow revocation or termination of, any such Consent or Governmental Approval in respect of the Project and Project Land. No notice for cancellation, default or dispute concerning or amendment or modification of any such Consent or Governmental Approval in respect of the Project and Project Land has been received. All such Consents and Governmental Approvals shall subsist after the Closing Date in accordance with their respective terms.
- 16.3 The occupation certificate dated April 29, 2022, issued by the Director of Town and Country Planning Department, for Warehouse 1 duly and accurately captures the details of the driveway extent as provided for on the Project Land.

- 16.4 True and complete copies of Consents and Governmental Approvals subsisting as of the Execution Date have been provided to HIPPL prior to the Execution Date.

17. **Insurance**

All insurable risks in respect of the Business, Assets, Project and Project Land are covered by such insurance policies and the types and amounts of coverage provided therein as are (i) usual and customary in the context of the Business, Project and Project Land and the operations of the LLP; and (ii) sufficient so as to comply with the requirement of the Governmental Approvals, or under applicable Law or Contract. There is no claim by the Partners or the LLP pending under any of such policies. The activities and operations of the LLP have been conducted in a manner so as to conform to all applicable provisions of such insurance policies. All premiums due and payable under all such policies have been paid in full. All such policies will be outstanding and in full force and effect at the Closing Date, and the consummation of the transactions contemplated in the Transaction Documents will not cause a cancellation or reduction in the coverage of such policies. There are no insurance claims and liabilities, outstanding or otherwise, payable to any Person by the LLP. There are no special or unusual limits, terms, exclusions or restrictions in any of the policies and the premiums payable are not in excess of the normal rates and no circumstances exist which are likely to give rise to any increase in premiums. True and complete copies of all insurance policies with respect to the Project have been provided to HIPPL prior to the Execution Date.

18. **Contracts**

- 18.1 The LLP is not a party to any Contract other than those set out under **Annexure E**.
- 18.2 True and complete copies of such Contracts have been provided to HIPPL prior to the Execution Date.
- 18.3 The LLP does not have any subsisting Contracts with a Related Party.
- 18.4 The LLP has not issued any powers of attorney or any document of a like nature in favour of any Person.
- 18.5 The LLP's relationships with all parties having business relations with it are good commercial working relationships.
- 18.6 No amount is payable by the LLP to any of its Related Party for providing administrative, personnel or other corporate services.
- 18.7 Each Contract, to which the LLP is a party has been duly executed, adequately stamped and registered if required under applicable Law, is in compliance with applicable Laws, and confers enforceable rights on the LLP in accordance with the terms thereof. Each of the Contracts constitutes a valid and binding obligation of the LLP, is in full force and effect, and the LLP is not in breach or default under any such Contract, and no event has occurred and no condition or state of facts exist which, with the passage of time or the giving of notice or both, would constitute a breach or default by the LLP. The LLP has not waived or assigned any rights under such Contracts. No other party to any of the Contracts is in breach or default thereunder.

19. **Business of the LLP**

- 19.1 Other than the Business, the LLP does not engage in any other business or activity including any business in which foreign direct investment of 100% (one hundred per cent) under the automatic route is not permitted.
- 19.2 The LLP does not have any outstanding warranty or indemnity obligations to any Person.
- 19.3 The LLP has not made any commitment in relation to price reduction or discount or rebate in relation to the Business to any of the tenants (existing or prospective).
- 19.4 Details of all existing bank accounts of the LLP together with details of signatories to such accounts are as set out below:

Details of Bank Account	Purpose	Signatories
AXIS BANK LTD AC NO- 921020018086977 IFSC CODE-UTIB0003683 BRANCH- IFFCO CHOWK GURGAON	CURRENT ACCOUNT	VIKAS YADAV
AXIS BANK LTD AC NO- 921020011330097 IFSC CODE-UTIB0003683 BRANCH- IFFCO CHOWK GURGAON	ESCROW ACCOUNT	VIKAS YADAV

20. **Employees**

- 20.1 The LLP has obtained all registrations under applicable labour legislations, rules and regulations and any other applicable Laws in connection with its employees.
- 20.2 The LLP is and has been, in compliance with all applicable Laws relating to employment and employment practices, including any such applicable Laws regarding work conditions, hours of work, payment of wages or other dues, provident fund, gratuity, bonus, employees state insurance, minimum wage, overtime payments, workplace discrimination, workers' compensation, employee income tax withholding, worker classification (including the proper classification of workers as independent contractors and consultants) and family and medical leave.
- 20.3 The LLP is not and has not been engaging in any unfair labour practice as defined under the Industrial Disputes Act, 1947.
- 20.4 The LLP has paid all applicable taxes, insurance and other statutorily required contributions and other levies due in respect of its employees in relation to their

employment by the LLP, including under the Payment of Gratuity Act, 1972, the Employee State Insurance Act, 1948 or the Employees Provident Fund and the Miscellaneous Provisions Act, 1952.

- 20.5 The LLP has made adequate payments of cess as required under the Building and Other Construction Workers Cess Act, 1996.
- 20.6 The LLP does not have any Benefit Plans. For the purpose hereof, “**Benefit Plan**” means any plan, contract or other arrangement, formal or informal, whether oral or written, providing any benefit to any present or former officer, director or employee, or dependent or beneficiary thereof, including any profit sharing, bonus, severance, retirement, health, insurance plan, employee stock option, stock purchase, stock appreciation right or phantom stock option schemes.
- 20.7 None of the outsourced/contracted personnel utilized by the LLP has claimed to be, an employee of the LLP and there are no outstanding liabilities or claims made on the LLP under the Contract Labour (Regulation and Abolition) Act, 1970.
- 20.8 There are no employment-related disputes pending or threatened against the LLP. There is no labour strike, dispute, slowdown or stoppage actually pending or threatened against or affecting the LLP. There is no industrial or trade dispute or any dispute or negotiation regarding a claim with any trade union that relates to or involves the LLP. No officer or Director or key employee has terminated or threatened to terminate his/her engagement with the LLP as a result of the transactions contemplated by the Transaction Documents or otherwise as a result of the transactions contemplated by the Transaction Documents or otherwise.
- 20.9 The LLP has no collective bargaining agreements, arrangement or similar understanding with any trade union, staff association or other body representing the personnel utilized by the LLP.
- 20.10 The LLP has withheld and paid for appropriate contributions, as required by any applicable Law.

21. **Intellectual Property**

- 21.1 The LLP has the right to use the trademarks, trade names, service marks, service names, trade dress, domain names, logos and corporate names, both primary and secondary, used for the Business and Project.
- 21.2 The LLP owns all right, title and interest in the trade secrets, know-how and other confidential information relating to the Business, including proposals, financial and accounting data, business and marketing plans, customer and supplier lists, sales targets, sales statistics, market share statistics, marketing surveys and reports, marketing research and any advertising or other promotional material and related information and any databases (electronic or otherwise) containing any of the foregoing (collectively with paragraphs 21.1 and 21.2 above, the “**Intellectual Property**”), including exclusive rights to use, Transfer and license the same.
- 21.3 Each item of Intellectual Property has been duly registered with, filed in or issued by the appropriate Governmental Authority, to the extent required, and each such registration,

filing and issuance remains in full force and effect.

21.4 The Intellectual Property is free and clear of any Encumbrance by whatever name. There are no facts or circumstances that would render any Intellectual Property invalid or unenforceable. The LLP has not Transferred ownership of, or granted any license of or right to use, or authorized the retention of any exclusive rights to use or joint ownership of, any of its Intellectual Property to any Person. There is no Person infringing or misappropriating the Intellectual Property. There is no suit, claim, or notice whether pending or adverse to the interests of the LLP in, or for infringement against, any of the Intellectual Property.

21.5 Save and except 'off the shelf' software, the LLP is not obligated to pay any amounts as royalty or fee for the use of any technology or Intellectual Property.

22. Information Technology Matters

The LLP has exclusive control of the operation of their computer systems and of the storage, processing and retrieval of all data stored on its computer systems and any Intellectual Property rights in such data are owned solely by them.

23. Corporate Records

The minute books of the LLP contain true, correct and complete records of all meetings and accurately reflect all corporate action of the partners of the LLP. The statutory books and registers of the LLP are true, correct and complete in all respects. The LLP has provided to HIPPL true, correct and complete copies of the Original LLP Agreement and all amendments thereto (if any).

24. Absence of Certain Changes or Events

Since March 31, 2022:

- (i) The LLP has conducted the Business only in the Ordinary Course consistent with past practice;
- (ii) There has not occurred any events which, individually or in the aggregate with other events, would cause a Material Adverse Effect;
- (iii) The LLP has not taken any of the actions set forth in Clause 6.3.

25. Information and Disclosure

25.1 All information in relation to the LLP, the Partners, the Business and Assets, which would be material to an understanding of the Business, Assets, liabilities, condition (financial or otherwise), results of operations or prospects of the LLP or which may be relevant in making a decision in relation to the acquisition of the Partnership Interest in the manner contemplated under the Transaction Documents (including the KYC documents and responses to anti-corruption questionnaires provided by the Warrantors prior to the execution of this Agreement, as sought during the financial, business, technical and legal due diligence exercise carried out by HIPPL), have been made available and disclosed to HIPPL prior to the Execution Date, and such information is true, correct and accurate in

all respects, and no such information omits to state any fact necessary to make such statements accurate.

- 25.2 None of the representations or warranties of the LLP or the Partners contained in the Transaction Documents and none of the information contained in any certificate, or other document delivered pursuant hereto or thereto or in connection with the transactions contemplated hereby or thereby contains any untrue statement of a fact or omits to state a fact necessary to make the statements herein or therein not misleading.
- 25.3 The information contained in this Agreement or otherwise furnished to HIPPL pursuant to the Disclosure Letter is true and complete.

26. Specific Representations

- 26.1 The LLP owes the following amounts to the vendors and suppliers set out below. Other than these the LLP does not owe moneys to any other vendor or supplier.

Name of Vendor	Amount (in INR)
Nancy	7,62,500.00
Siddharth Kaushik	5,70,000.00
Trishala	8,63,862.00
Moonwalk Infra Projects Pvt Ltd	99,09,737.00
MS Construction Company	34,06,885.00
Neeraj Infra	19,52,960.00
Deepak	2,02,502.00
Vikas Yadav HUF	47,00,000.00
Malik Electrical Trading Company	2,40,201.00

- 26.2 The vendors and suppliers of the LLP owe the below amounts to the LLP:

Name of Vendor	Amount (in INR)
Mahabir Bricks Udyog Kulana	13,95,177.00
Engrow Enviro Technocrats Pvt Ltd	12,712.00

- 26.3 No used oil is stored in the Project premises.
- 26.4 There are no Contracts subsisting between the LLP and its Related Parties; and no amounts are payable to Related Parties under any former expired or terminated agreements.

- 26.5 The tenants in the Project (viz. Reliance Projects and DP World) do not require any diesel generator sets to be provided by the LLP for common areas within the Project, including for the purposes of external lighting, sewage treatment plant, signage, and office.
- 26.6 The LLP or the Partners or any of their respective representatives has/have not undertaken or provided any commitment to any tenant in the Project that it shall provide a parallel access road for the Project, which is not currently present. Further, no Governmental Approval or Consent has been procured on the representation or condition that a parallel access road for the Project exists or will be provided.
- 26.7 The LLP has complied with all applicable provisions of the Forest Conservation Act, 1980 and procured approvals to the extent relevant for the Project.
- 26.8 All mutation orders passed by the revenue authorities with respect to devolution of title to the Project Land have been undertaken in accordance with applicable Laws and due process.
- 26.9 The Completed Project Land which was acquired by the LLP for INR 138,000,000 (Indian Rupees One Hundred and Thirty Eight Million) has been held for more than 24 (twenty four) months by the LLP.

SCHEDULE V

FORMAT OF DISCLOSURE LETTER

To,

[HIPPL]

[Address]

Re: LLP Acquisition Agreement dated [●] (the “LLP Acquisition Agreement”) executed by and amongst [●]

We refer to the LLP Acquisition Agreement. In this letter, all capitalized terms used herein but not defined shall have the meaning given to them under the LLP Acquisition Agreement.

This letter together with its schedules shall be the Disclosure Letter for purposes of the LLP Acquisition Agreement and shall be deemed to be incorporated in the LLP Acquisition Agreement. Any disclosure made in this Disclosure Letter, to the extent Fully and Fairly Disclosed in accordance with the terms hereof and the LLP Acquisition Agreement, shall qualify the relevant Representations (save and except the Fundamental Warranties and Tax Warranties) against which such disclosure is made and not to the Representations as a whole.

No information, document or finding furnished to HIPPL during the due diligence exercise shall (i) apply as an exception, exclusion, disclosure or qualification to the representations and warranties of the Warrantor, or (ii) limit or narrow the scope of the Partners’ liability under the LLP Acquisition Agreement.

The headings and numbering used in this Disclosure Letter refer to the corresponding paragraph of **SCHEDULE IV** of the LLP Acquisition Agreement, and such headings and numbers are for convenience only and shall not affect the interpretation of any provision of the LLP Acquisition Agreement or this Disclosure Letter.

Any information disclosed in any paragraph of this Disclosure Letter shall only apply to and be limited to the corresponding paragraph of **SCHEDULE IV** of the LLP Acquisition Agreement and shall not, and shall in no circumstance be deemed to, apply as an exception, exclusion or qualification to any other paragraph of **SCHEDULE IV** of the LLP Acquisition Agreement or provision of the LLP Acquisition Agreement. Further, this Disclosure Letter, along with the schedules hereto, shall be deemed to be schedules to the LLP Acquisition Agreement. In the event of any conflict or inconsistency between this letter and the provisions of the LLP Acquisition Agreement, the provisions of the LLP Acquisition Agreement shall prevail to the extent of such conflict or inconsistency.

The Partners hereby makes the following disclosures to the relevant Representations set forth in the table below:

Sl. No.	Paragraph	Disclosure
1.	[●]	[●]

Yours sincerely,

[Signature blocks to be inserted]

SCHEDULE VI

TITLE DOCUMENTS AND THEIR LOCATION

Sr. No.	Title Document	Location
1.	Release Deed dated December 28, 2001, bearing Registration No. 3256	Not collected from erstwhile owner
2.	Release Deed dated October 24, 2007 bearing Registration No. 4786	Not collected from erstwhile owner
3.	Release Deed dated April 6, 2010 bearing Registration No. 49	Not collected from erstwhile owner
4.	Release Deed dated August 29, 2011 bearing Registration No. 7323	Not collected from erstwhile owner
5.	Release Deed dated November 11, 2008 bearing Registration No. 3831	Not collected from erstwhile owner
6.	Release Deed dated February 21, 2012 bearing Registration No. 11902	Not collected from erstwhile owner
7.	Release deed dated September 11, 2017 bearing Registration No. 3212	Not collected from erstwhile owner
8.	Transfer Deed dated February 12, 2018 bearing Registration No. 5873	Not collected from erstwhile owner
9.	Transfer Deed dated February 12, 2018 bearing Registration No. 5874	Not collected from erstwhile owner
10.	Release Deed dated July 13, 2013 bearing Registration No. 2897	Not collected from erstwhile owner
11.	Release Deed dated December 26, 2018 bearing Registration No. 5076	Not collected from erstwhile owner
12.	Release Deed dated May 14, 2019 bearing Registration No. 621	Not collected from erstwhile owner
13.	Blood Relation Transfer Deed dated August 7, 2019 bearing Registration No. 2623	Not collected from erstwhile owner
14.	Release Deed dated April 11, 2008 bearing Registration No. 181	Not collected from erstwhile owner
15.	Release Deed dated August 29, 2011 bearing Registration No. 7328	Not collected from erstwhile owner
16.	Exchange Deed dated January 8, 2012 bearing Registration No. 2492	Not collected from erstwhile owner
17.	Sale Deed dated July 15, 1999 bearing Registration No. 1394	Not collected from erstwhile owner
18.	Sale Deed dated June 13, 1997, bearing Registration No. 651	Not collected from erstwhile owner
19.	Sale Deed dated November 2, 2007, bearing Registration No. 4965	Not collected from erstwhile owner
20.	Release deed dated December 28, 2001, bearing	Not collected from

Sr. No.	Title Document	Location
	Registration No. 3255	erstwhile owner
21.	Sale deed dated June 16, 1977 bearing registration no. 602	Not collected from erstwhile owner
22.	Release deed dated February 6, 2012 bearing registration no. 11694	Not collected from erstwhile owner
23.	Sale Deed dated September 11, 2017 bearing Registration No. 3213	Axis Bank
24.	Sale Deed dated March 3, 2019 bearing Registration No. 509	Axis Bank
25.	Sale Deed dated March 1, 2019 bearing Registration No. 511	Axis Bank
26.	Sale Deed dated September 11, 2017 bearing Registration No. 3211	Axis Bank
27.	Sale Deed dated March 13, 2019 bearing Registration No. 6568	Axis Bank
28.	Sale Deed dated May 8, 2018 bearing Registration No. 2937	Axis Bank
29.	Sale deed dated March 1, 2019 bearing Registration No. 508	Axis Bank
30.	Sale Deed dated May 2, 2019 bearing Registration No. 586	Original
31.	Sale Deed dated July 26, 2019 bearing Registration No. 2344	Original
32.	Sale Deed dated September 15, 2021 bearing Registration No. 4207	Original
33.	Sale deed dated May 9, 2019 bearing Registration No. 587	Original
34.	Sale Deed dated August 28, 2019 bearing Registration No. 3057	Misplaced / lost

SCHEDULE VII

CLOSING ADJUSTMENTS

PART A – AGREED PRINCIPLES

1. The Estimated Closing Date Financial Statements/Reviewed Closing Date Financial Statements shall be prepared:
 - (i) In accordance with the accounting principles, procedures and practices adopted in the Delivered Financial Statements and the Signing Financials, applied on a consistent basis;
 - (ii) So far as not inconsistent with the policies referred to in sub-paragraph (i) above, in accordance with the Accounting Principles.
2. The Estimated Closing Date Financial Statements/Reviewed Closing Date Financial Statements shall be expressed in INR.
3. It is clarified that, if there is any conflict between the accounting principles used in the preparation of the Example Purchase Consideration Computation and the accounting principles in this Part A of SCHEDULE VII, the accounting principles used in the preparation of the Example Purchase Consideration Computation will prevail.

PART B – EXAMPLE PURCHASE CONSIDERATION COMPUTATION

Particulars	Amount (INR)
TEV	1,93,00,00,000
Add: Cash & Cash Equivalents (A)	2,26,61,125
Add: Current Assets (B)	34,96,157
(Less): Financial Indebtedness (C)	(76,83,44,261)
(Less): Current Liabilities (D)	(2,19,69,418)
(Less): Security Deposit (E)	(4,78,17,317)
(Less): Deductible Amounts (F)	(1,28,10,068)
Example Purchase Consideration (G)	1,10,52,16,218

Workings For Line Items

Cash and Cash Equivalents (A)

<u>Amounts in INR</u>	<u>INR</u>
Cash balance	68,71,860
Fixed deposits	1,57,89,265
Cash and Cash Equivalents (A)	2,26,61,125

Current Assets (B)

<u>Amounts in INR</u>	<u>INR</u>
Trade receivables	34,96,157
<u>Loans and advances / Other current assets</u>	
TDS receivable	-
Others	-
Current Assets (B)	34,96,157

Financial Indebtedness (C)

<u>Amounts in INR</u>	<u>INR</u>
Secured borrowings from banks	72,18,14,603
Unsecured borrowings from related parties	3,09,29,658
Unsecured borrowings from unrelated parties	1,56,00,000
Interest payable	-

Financial Indebtedness (C)	76,83,44,261
Current Liabilities (D)	
<u>Amounts in INR</u>	<u>INR</u>
Trade payables	1,83,97,905
<u>Other current liabilities</u>	
Audit Fees Payable	30,000
Provision for income tax	17,33,314
Others	18,08,199
Current Liabilities (D)	2,19,69,418
Security Deposits (E)	
<u>Amounts in INR</u>	<u>INR</u>
Security deposits from customers	4,78,17,317
Security Deposits (E)	4,78,17,317
Deductible Amounts (F)	
<u>Amounts in INR</u>	<u>INR</u>
<u>Any other assets / liabilities not recorded in the financial statements</u>	
Identified Capex Pending	1,28,10,068
Others	-
Deductible Amounts (F)	1,28,10,068

SCHEDULE VIII

SPECIFIC INDEMNITIES

1. Any contravention of Environmental Laws.
2. Non-compliance/deviations/alterations with the approved plans and building permits issued in respect of the Project.
3. Non-compliance, if any, with applicable Laws in relation to fire safety.
4. Any claims from erstwhile owners/ any third party in relation to rights/interests of heirs over the land parcels listed in **Annexure B**.
5. Legacy mortgages that have not been cleared, including but not limited to the *murth rehan* pertaining to Rectangle No. 25 Kila No. 21 admeasuring 1 acre, and as reflected in the jamabandi for the year 2017-2018.
6. Any claims arising due to non-removal of the LLP as a party to the Partition Suit Proceedings.
7. Non-possession of title documents as set out in **Annexure C**.
8. The LLP not having clear and marketable title to the Project Land, including but not limited to (i) land parcels in relevant kila nos. in rectangle nos. 34, 35, 39 and 50 (admeasuring approximately 0.47 acres, forming part of Warehouse 1 and Warehouse 2) as has devolved in accordance with Will dated April 6, 2010; (ii) land parcels in rectangle no. 39, kila nos. 20 and 21 (admeasuring approx. 0.114 acres, part of Warehouse 2) as has devolved in accordance with Will dated March 25, 2003; and (iii) land parcels in relevant kila nos. in rectangle 25 (admeasuring approx. 0.74 acres, part of Warehouse 1) as has devolved in accordance with Will dated January 6, 2009.
9. Non-compliance with the buffer zone requirements under applicable Law along the railway line adjacent to the Project.
10. Tax liability on HIPPL or the LLP that arises out of, or results from, or relates to: (i) the acquisition of the Aggregate Partnership Interest and payment of the Purchase Consideration; and (ii) the other incidental matters contemplated under or taken pursuant to this Agreement or under other Transaction Documents in connection with (i) above.
11. Tax liability on the LLP that arises out of, or results from, or related to any action or positions adopted by the LLP on Tax matters prior to Closing Date.
12. Tax liability on HIPPL or the LLP arising from change in head of income from 'house property' to 'business income'.

13. Failure to procure a certificate of registration under, and otherwise comply with, the provisions of the Contract Labour (Regulation & Abolition) Act, 1970 in relation to Warehouse 1 and Warehouse 2.
14. Any liability in relation to security deposit collected from FSC in relation to its lease of Warehouse 1 over and above the amount to be set-off against the invoice raised by the Partners (or their Affiliates) to FSC for provision of works / services.
15. Liability in relation to payment of cess or deficit cess (together with penalties, if any) under The Building and Other Construction Workers Welfare Cess Act, 1996;
16. Tax liability on the LLP that arises out of, or results from or relates to the reconstitution of the LLP as contemplated under section 45(4) of the Income-tax Act, 1961;
17. Tax liability on the LLP that arises out of, or results from or relates to the action taken by the LLP in connection with writing off the advance given to Vertical Infraservice Private Limited;
18. Any liability (including any liquidated damages and such other penalties) for the delay in handover of the Warehouse 2 (or any part thereof) to DP World pursuant to the DP World Lease Deed;
19. Any penalty due to delay in filing of Form LLP-8 and / or Form LLP-11 for the financial years 2018-2019, 2019-2022 and 2020-2021;
20. Any claim or any demand notice from any individual by the name Chameli.
21. Any Losses due to delay in procuring occupancy certificate dated August 30, 2022 in relation to Warehouse 2.
22. Any Losses due to invocation of the provisions of Section 281 of the Income Tax Act, 1961 by any Tax authority, with reference to any Taxes payable by or any Tax proceedings pending against the Partners, that affects the title to the Partnership Interest.

SCHEDULE IX

CONDITIONS SUBSEQUENT

Part A : Critical CS Items

1. Prior to: (i) commencement of construction of Warehouse 3; or (ii) expiry of 12 (twelve) months from the Closing Date (whichever is earlier), the Partners shall have caused the LLP to obtain an expansion environment clearance for Warehouse 3 or an expansion approval for EC II (“**Warehouse 3 EC**”), in form and substance acceptable to HIPPL, which shall also accurately capture the particulars of the developments on the Project Land, including the green area for the Project Land as a whole;
2. Within 30 (thirty) days of obtaining the Warehouse 3 EC, the Partners will prepare, discuss and finalise with HIPPL a detailed plan / drawing identifying the green area to be created as prescribed under the Warehouse 3 EC, read with EC II, on the Project Land. The Partners shall then cause the LLP to create the green area as per the agreed plan / drawing on the Project Land.
3. Prior to the earlier of the following : (i) commencement of use / operationalising of Warehouse 2 by DP World or (ii) 30 (thirty) days from the Closing Date, the LLP shall procure ‘consent to operate’ from SPCB in relation to Warehouse 2, in form and substance acceptable to HIPPL, which covers the accurate built up area, infrastructure on site and is per applicable Laws.
4. The Partners shall have caused the LLP to procure a revised ‘consent to operate’ for the entire Project, in form and substance acceptable to HIPPL, and which accurately reflects the built-up areas of Warehouse 1, Warehouse 2 and Warehouse 3 and does not impose any additional restrictions, compliance requirements or obligations on the LLP other than as already undertaken under similar approvals obtained for Warehouse 1 and Warehouse 2.
5. The Partners shall have caused the LLP to obtain a revised fire no objection certificate in form and substance acceptable to HIPPL from the Director, Fire Services, in respect of Warehouse 1 and Warehouse 2, which record the actual built up area of such warehouses, within the following timelines:
 - (i) Warehouse 1 – No later than 12 (twelve) months from the Execution Date
 - (ii) Warehouse 2 – May 31, 2023.
6. The Partners shall have completed the items of capital expenditure relating to the Completed Project, as set out in **Part B** of **SCHEDULE X** within the timelines specified under the said **Part B** of **SCHEDULE X**. The LLP shall pay / reimburse costs to the Partners up to the amount set out in, and only upon successful completion (to the LLP’s satisfaction) of the relevant item as set out in the said **Part B** of **SCHEDULE X**, with any excess amounts being incurred solely by the Partners.
7. Prior to expiry of 6 (six) months from Closing Date, the Partners shall have: (a) installed and operationalised the fire suppression system for the 1 Main LT panel and 1 Fire Panel; (b) provided the main LT panels and fire panels of both Warehouse 1 and Warehouse 2 with CO2 / inert gas flooding system as per ‘National Building Code’; and (c) installed and maintained fire extinguishers and fire buckets at proper locations in Warehouse 1. All costs incurred in this regard shall be borne / reimbursed by the LLP.

8. No later than 10 (ten) days from the Closing Date, the Partners, HIPPL and Palra Estate Private Limited shall have agreed on the format of the template share purchase agreement, in such form and substance acceptable to HIPPL, and as referred to in Clauses 3.8(iv) and 4.8(iv) of the Framework Agreement.
9. No later than 60 (sixty) days from the Closing Date, the Partners shall obtain a no objection certificate from the Tax authorities under Section 281 of the Income Tax Act, 1961, in respect of the Transfer of the Partnership Interest to the satisfaction of HIPPL and the same shall be provided to HIPPL in its original form.
10. No later than 60 (sixty) days from the Closing Date, the Partners shall have procured payment by DP World, of the balance security deposit of INR 82,61,898 (Indian Rupees Eighty Two Lakhs Sixty One Thousand Eight Hundred and Ninety Eight) and advance lease rental of INR 15,80,949 (Indian Rupees Fifteen Lakhs Eighty Thousand Nine Hundred and Forty Nine only), pursuant to the DP World Lease Addendum.
11. No later than 6 (six) months from the Closing Date, the Partners shall have procured execution of an agreement between the LLP and DP World, in relation to the common area maintenance services, in form and substance satisfactory to HIPPL, which, in any event, shall fulfil the below conditions –
 - (a) the fees payable by DP World for the common area maintenance services shall not be lower than the maintenance fees specified under the DP World Lease Deed;
 - (b) the scope of the common area maintenance services shall not be greater than the scope set out under the DP World Lease Deed; and
 - (c) the other terms and conditions applicable to the common area maintenance services shall not be more onerous than those set out under the DP World Lease Deed.
12. No later than 15 (fifteen) days from the Closing Date, the LLP shall have procured a written confirmation from DP World: (I) that it shall require not more than 2 (two) borewells and will use ground water only once requisite approvals have been obtained from Governmental Authorities for constructing a well, extracting and utilising ground water; and (II) that the borewells will be made operational by the LLP no later than 6 (six) months from the Closing Date.

Part B : Other CS Items

1. Each of the covenants and obligations set forth in this Agreement and the other Transaction Documents that are required to be complied with or performed by the Partners have been complied with or performed. Each of the Representations (save and except those Disclosed) should have been true and correct as of the Execution Date and Closing Date.
2. The Adjustment Amount (if any) shall have been paid in accordance with Clause 5.4.
3. The Partners shall have caused the LLP to complete construction, leasing and execution of duly

stamped and registered lease agreements in respect of Warehouse 3 in accordance with the conditions and timelines agreed under the Development Management Agreement.

4. The Partners shall have caused the LLP to undertake, to the satisfaction of HIPPL, regularization of the gate / entry near Warehouse 2 while obtaining the sanction plan, and if required the occupation certificate, for Warehouse 3.
5. The Partners shall have caused the LLP to have validly procured, and keep renewed and subsisting, all Governmental Approvals and Consents in respect of the Warehouses to the satisfaction of HIPPL.
6. No later than 12 (twelve) months from the Closing Date (which timeline may be extended in writing with the mutual consent of the Partners and HIPPL), the LLP will procure an order from the relevant court directing the removal of the LLP as a party to the proceedings with respect to appeal dated February 24, 2021 filed with the Court of Assistant Collector, First Grade, Jhajjar (“**Partition Suit Proceedings**”) with respect to land bearing Rectangle No. 32, Kila No. 6/4, Rectangle No. 33 Kila No. 10/1, Rectangle No. 41 Kila Nos. 16/2, 24, 25/1, 25/2/1, Rectangle No. 40 Kila Nos. 21/1, 22/1, 20/3, Rectangle No. 34 Kila Nos. 15/1/2/1, 15/2/2, 16/1, 16/3, 25/1/1, 25/3/1.
7. No later than earlier of: (i) completion of construction of the Warehouse 3; or (ii) expiry of Applicable Construction Timeline (as defined under the Development Management Agreement), the LLP shall install and provide an additional rain water harvesting pit in the Project in accordance with the terms of the EC I and EC II.
8. Prior to commencement of construction of Warehouse 3, the Partners shall have caused the LLP to, procure a certificate of registration under Section 7 of the Contract Labour (Regulation & Abolition) Act, 1970, as principal employer for engaging contract labour for construction of Warehouse 3.
9. The Partners shall cooperate with, and provide all necessary documents to the LLP (to the extent these are not available with the LLP and/or HIPPL), in respect of filing of LLP Form 3 with the RoC to record the terms of the Amended and Restated LLP Agreement to be executed as on the Closing Date for admission of HIPPL (and its nominee) and resignation of Mr. Vikas Yadav and Ms. Chandervati Yadav as the partners of the LLP.
10. No later than 6 (six) months from the Closing Date (which period may be extended by a further period of 3 (three) months, at the sole discretion of HIPPL), the LLP shall obtain discharge of mortgages created on land parcels comprised in Rectangle 39, Kila Nos. 20 and 21 in relation to loans taken by: (i) Shatrughan on his 11/320th share for INR 7,00,000 from OBC Bank; and (ii) Priya Vart on his/her 11/320th share for INR 8,06,000 from Indian Bank; and provide copies of documents evidencing the same to HIPPL.
11. No later than 6 (six) months from the Closing Date (which period may be extended by a further period of 3 (three) months, at the sole discretion of HIPPL), the LLP to: (i) ensure that the mortgage created on Rectangle No. 25 Kila No. 21 admeasuring 1 acre (8 kanal), as reflected in the jamabandi for the year 2017-2018, is discharged; and (ii) proof of payment is provided to HIPPL in this regard.
12. The Partners shall have completed the items of capital expenditure relating to the Completed Project, as set out in **Part A of SCHEDULE X** within the respective timelines specified under

the said **Part A** of **SCHEDULE X**. The LLP shall pay / reimburse costs to the Partners up to the amount set out in, and only upon successful completion (to the LLP's satisfaction) of the relevant item as set out in the said **Part A** of **SCHEDULE X**, with any excess amounts being incurred solely by the Partners.

13. No later than 6(six) months from the Closing Date, the Partners shall have, at their cost, caused the LLP, to obtain requisite Governmental Approvals and install and operationalise such borewells as per the terms agreed to with DP World.
14. No later than 30 (thirty) days from the Closing Date, the LLP shall have filed Form 5C as per Rule 8AB of the Income Tax Rules, 1962.
15. No later than 30 (thirty) days from the Closing Date, the LLP shall have obtained a valuation certificate from a registered valuer as defined under clause (g) of rule 11U of Income Tax Rules, 1962 for the purposes of Rule 8AB of Income Tax Rules, 1962.

SCHEDULE X

LIST OF PENDING CAPITAL EXPENDITURE ITEMS

S.No.	Description	Capex Est.	Due Date for completion
Part A			
1	Plaster cracks on walls to be repaired	Rs 2,62,280	Prior to expiry of 6 months from Closing Date
2	Painting touch-ups wherever required (particularly west and north side of the wall)	6,64,000	Prior to expiry of 6 months from Closing Date
3	Repair of cracks near dock leveller	1,00,000	Prior to expiry of 6 months from Closing Date
4	Repair of paver block (driveway, apron & parking)	33,25,270	Prior to expiry of 6 months from Closing Date
5	Mezzanine steel staircase repair	15,000	Prior to expiry of 6 months from Closing Date
6	Insulation sheet replacement wherever required	1,39,440	Prior to expiry of 6 months from Closing Date
7	Repair of deck sheet	50,000	Prior to expiry of 6 months from Closing Date
8	Organic waste converter	5,00,000	Prior to completion of Warehouse 3
Part B			
1	Water curtain system along with pumps to be provided to WH-1.	40,00,000	Prior to expiry of 6 months from Closing Date
2	Additional fire tank of 162 KLD to be provisioned in WH1	18,00,000	Prior to expiry of 6 months from Closing Date

	Total Cost	Rs 1,08,55,990	
Add:	Goods & Service Tax (18%)	Rs. 19,54,078.20	
	Total Cost (incl. GST)	Rs 1,28,10,068.20	

ANNEXURE A

DETAILS OF COMPLETED PROJECT LAND

All those pieces and parcels of land admeasuring, in the aggregate, approximately 26.86 acres situated in Village Koka, Tehsil and District Jhajjar, Haryana, India comprised in the following Rectangle Nos.:

Rectangle No.	Kila No.	Extent (Kanal Marla)	Extent (Acres)
35	2/1	Kamaj Marla	approx. 8 acres
	2/2	7K 19M	
	9	8K	
	11	8K	
	12	8K	
	19	8K	
	20	8K	
	21/1	5K 2M	
	21/2	2K 18M	
	22/1	5K 2M	
	22/2	2K 18M	
39	1	8K	approx. 8.05 acres
	2	8K	
	3/1	4K	
	8/2	4K	
	11	8K	
	12	8K	
	13/1	4K	
	18/2	4K	
	19	8K	
	22	8K	

Rectangle No.	Kila No.	Extent (Kanal Marla)	Extent (Acres)
	23/1	4K	
50	1/1	2K	approx. 6.86 acres
	½	6K	
	2/1	2K	
	2/2	6K	
	3/1	1K	
	3/2	7K	
	4/1	2K 3M	
	4/2min	2K 17M	
	7	2K 2M	
	8	8K	
	9	8K	
	10/1	7K 16M	
34	5/3	2K 12M	approx. 0.61 acres
	6/3	2K 6M	
35	1/1	9M	2 acres
	½	7K 11M	
	10	8K	
39	9	8K	2 acres
	10	8K	
39	20	8K	2 acres
	21	8K	
25	13/1/3	1K 15M	approx. 1.97 acres
	18/2	3K 15M	
	18/3	2K 1M	

Rectangle No.	Kila No.	Extent (Kanal Marla)	Extent (Acres)
	19/2	12M	
	22/2	7K 12M	
25	22/1	8M	0.4 acre
25	21	8K	1 acre
26	25/3	2K 10M	0.31 acres
Total			33.1 acres

ANNEXURE B

INTESTATE SUCCESSION LAND PARCELS

Land parcels in relation to which the rules of intestate succession as prescribed in the Hindu Succession Act, 1956 has not been complied with details of individuals with possible claims:

- (i) Heirs of the mother of Bhagwat (his death is recorded in mutation entry bearing reference no. 740 dated December 19, 1997) in relation to land parcels in relevant kila nos. in rectangle nos. 34, 35, 39 and 50 (admeasuring approximately 0.44 acres and , forming part of Warehouse 1 and Warehouse 2). The heirs of Bhagwat as per the mutation order are Munni Devi, Naresh Kumar, Devi, Pista Devi, Ramesh Kumar, Suresh Kumar , Umesh Singh and Dinesh Kumar;
- (ii) Widower of Pista Devi (her death is recorded in mutation entry bearing reference no. 898 dated November 27, 2006), or his heirs thereof in relation to land parcels in relevant kila nos. in rectangle nos. 34, 35, 39 and 50 (admeasuring approximately 0.13 acres, forming part of Warehouse 1 and Warehouse 2). The heirs of Pista Devi as per the mutation order are Vikram Singh, Virender, Suman and Nisha;
- (iii) Heirs of the mother of Mahavir (his death is recorded in mutation entry bearing reference no. 907 dated September 26, 2007) in relation to land parcels in relevant kila nos. in rectangle nos. 34, 35, 39 and 50 (admeasuring approximately 0.59 acres, forming part of Warehouse 1 and Warehouse 2). The heirs of Mahavir as per the mutation order are Anokhi, Satbir Singh, Chandrapal Singh, Mahesh Kumar, Dinesh Kumar, Shreshthma Devi;
- (iv) Widower of Bhagwati (*used interchangeably with Bhanwati*) (her death is recorded in mutation entry bearing reference no. 857 dated July 31, 2005), or his heirs thereof in relation to land parcels in Rectangle No. 39, Kila No. 20, 21 (admeasuring 0.01 acres, forming part of Warehouse 2). The heirs of Bhagwati as per the mutation order are Kamlesh, Mahavir, Surender and Subhash;
- (v) Heirs of the mother of Bhagat (his death is recorded in mutation entry bearing reference no. 899 dated November 27, 2006) in relation to land parcels in Rectangle No. 39, Kila No. 20, 21 (admeasuring 0.05 acres, forming part of and Warehouse 2). The heirs of Bhagat as per the mutation order are Omwati, Sheila, Veerpal, Rajesh, Sohanpal, Rajender, Satender, Veervati, Ramwati, Krishna;
- (vi) Widower of Dharamwati (her death is recorded in mutation entry bearing reference no. 993 dated March 15, 2010), or his heirs thereof in relation to land parcels in Rectangle No. 39, Kila No. 20, 21 (admeasuring 0.01 acres, forming part of and Warehouse 2). The heirs of Dharamwati as per the mutation order are Suresh Kumar, Ramesh Kumar, Santosh;
- (vii) Heirs of the mother of Patram (his death is recorded in mutation entry bearing reference no. 1016 dated June 19, 2011) in relation to land parcels in Rectangle No. 39, Kila No. 20, 21 (admeasuring 0.17 acres, forming part of and Warehouse 2). The heirs of Patram are Subhash, Dinesh, Suresh, Munesh and Geeta;
- (viii) Heirs of the mother of Hira (his death is recorded in mutation entry bearing reference no. 738 dated November 19, 1997) in relation to land parcels comprised

in relevant Kila Nos. in Rectangle No. 25 (admeasuring approximately 0.19 acres, forming part of and Warehouse 1 and Warehouse 2). The heirs as of Hira per the mutation order are Barfi Devi, Om Prakash, Rajpal Singh, Vidya, Udham, Satyawati, Veena, Manveer Singh, Randhir Singh and Lakhjeet Singh;

- (ix) Heirs of the mother of Sohanpal (his death is recorded in mutation entry bearing reference no. 858 dated July 31, 2005) in relation to land parcels comprised in relevant Kila Nos. in Rectangle No. 25 (admeasuring approximately 0.05 acres, forming part of and Warehouse 1 and Warehouse 2). The heirs of Sohanpal as per the mutation order are Shakuntala, Sushmita and Manish; and
- (x) Widower of Angoori (her death is recorded in mutation entry bearing reference no. 889 dated November 27, 2006), or his heirs thereof in relation to land parcels comprised in relevant Kila Nos. in Rectangle No. 25 (admeasuring approximately 0.02 acres, part of and Warehouse 1 and Warehouse 2). The heirs of Angoori as per the mutation order are Lakhpal Singh, Sukhpal, Lakhan, Randhawa, Sheila, Brijesh, Shashi, Rekha, Mamta, Shakuntala, Pushpa and Manish.

ANNEXURE C

LIST OF ORIGINAL TITLE DOCUMENTS

Sr. No.	List of Documents	Transferor	Transferee
1.	Release Deed dated December 28, 2001, bearing Registration No. 3256	Champa	Subhash
2.	Release Deed dated October 24, 2007 bearing Registration No. 4786	Munni	Ramesh Kumar, Suresh Kumar, Umesh Singh, Dinesh Kumar and Naresh Kumar
3.	Release Deed dated April 6, 2010 bearing Registration No. 49	Devi	Ranjit
4.	Release Deed dated August 29, 2011 bearing Registration No. 7323	Anokhi and Shreshthma	Satbir, Chandrapal, Mahesh, Dinesh
5.	Release Deed dated November 11, 2008 bearing Registration No. 3831	Vikram Singh, Virender, Suman and Nisha	Ramesh, Suresh, Dinesh and Naresh
6.	Release Deed dated February 21, 2012 bearing Registration No. 11902	Malhu	Kulwant and Balwant Raj
7.	Release deed dated September 11, 2017 bearing Registration No. 3212	Om Prakash	Subhash
8.	Transfer Deed dated February 12, 2018 bearing Registration No. 5873	Manohar Lal	Manoj, Naveen and Pradeep
9.	Transfer Deed dated February 12, 2018 bearing Registration No. 5874	Manohar Lal	Manoj, Naveen and Pradeep
10.	Release Deed dated July 13, 2013 bearing Registration No. 2897	Rajesh, Sheila, Krishna, Ramwati and Veervati	Veerpal, Sohanpal, Rajender and Satender
11.	Release Deed dated December 26, 2018 bearing Registration No. 5076	Devati, Ramesh, Subhash, Surender and Mahavir	Prem Pal, Samar Pal and Sanveer
12.	Release Deed dated May 14, 2019 bearing Registration No. 621	Kamlesh and Suresh	Prem Pal, Samar Pal and Sanveer
13.	Blood Relation Transfer Deed dated August 7, 2019 bearing Registration No. 2623	Suresh, Munesh and Geeta	Dinesh and Subhash
14.	Release Deed dated April 11, 2008 bearing Registration No. 181	Om Prakash	Umesh, Mukesh, Deepak, and Vikrant, Jogender
15.	Release Deed dated August 29, 2011 bearing Registration No. 7328	Anokhi and Shreshthma	Satbir Singh, Chandrapal Singh, Mahesh Kumar and Dinesh Kumar
16.	Exchange Deed dated January 8,	Om Prakash, Ramesh, Suresh,	Pratap Singh

Sr. No.	List of Documents	Transferor	Transferee
	2012 bearing Registration No. 2492	Naresh and Dinesh, Mahesh Kumar and Dinesh Kumar	
17.	Sale Deed dated July 15, 1999 bearing Registration No. 1394	Manveer Singh, Randhir Singh, Mithilesh and Rinku	Dharampal
18.	Sale Deed dated June 13, 1997, bearing Registration No. 651	Manveer Singh, Randhir Singh and Lakhjeet Singh	Suraj Bhan
19.	Sale Deed dated November 2, 2007, bearing Registration No. 4965	Suraj Bhan	Kusum
20.	Release deed dated December 28, 2001, bearing Registration No. 3255	Mahavir, Champa, Manohar Lal, Om Parkash, Samsher	Ranjit
21.	Sale deed dated August 28, 2019 bearing Registration No. 3057	Subhash and Dinesh	Vertical
22.	Sale deed dated June 16, 1973 bearing Registration No. 227	Lakhpal, Randhawa, Sukhpal Singh, Lakhan Singh, Sheila, Brijesh, Shashi, Rekha, Mamta, Shakuntala, Sushmita, Manish, Rajpal, Veena, Randhir, Manveer, Mithilesh, Rinku, Umesh, Mukesh, Deepak, Vikrant and Jogender	Mahavir Singh, Bhagat Singh and Om Prakash
23.	Release deed dated February 6, 2012 bearing registration no. 11694	Munni Devi, Vikram Singh and Virender Singh	Ramesh, Suresh, Umesh, Dinesh and Naresh

ANNEXURE D1

REQUISITE GREEN AREA LAND

[enclosed separately]

ANNEXURE D2

LIST OF SURVEY NOS. COMPRISING THE REQUISITE GREEN AREA LAND

Mustaqil No.	Killa No.	Area in Sqm
50	1/2	3,035
	2/2	3,035
	3/2	3,541
	9	4047
	10/1	3925
	Total	17,584

ANNEXURE E

LIST OF CONTRACTS

1. Lease Deed with DP World dated September 28, 2021;
2. Lease deed with Reliance Projects dated February 26, 2021;
3. Loan Agreement with Axis Bank dated March 30, 2021;
4. Term Loan Agreement with Axis Bank dated March 30, 2021;
5. Deed of Hypothecation with Axis Bank dated March 30, 2021.

ANNEXURE F

TERMS GOVERNING LICENSING OF TRADEMARK

1. **Grant of License**

- 1.1. The Licensor hereby grants (and Partner 1 and Partner 2 shall cause to grant) in favour of the LLP (hereinafter in this **Annexure F** referred to as the “**Licensee**”) a fully paid-up, royalty-free, non-exclusive, worldwide license (“**License**”) to use the Trademark(s) for the Project for the License Term. The License to use the Trademarks includes use as a trademark, service mark, logo, domain name, social or mobile media identifier in relation to the Project, corporate or trade name or other source indicator of the Licensor.
- 1.2. The Licensee has complete discretion to utilise the Trademarks, as it deems fit, only in connection with the Project (and the advertising, marketing and promotion thereof). The Licensor shall not interfere in the manner of utilisation of the Trademarks by the Licensee for the Project.
- 1.3. For the avoidance of doubt, the Licensor reserves to itself every right to use, and grant other licenses to use the Trademarks, including for any other warehousing project.

2. **Valid Consideration**

The mutual rights and obligations set out under this License shall form good and sufficient consideration for the performance of the terms of this **Annexure F** by the Licensor. For the avoidance of doubt, any Taxes arising on account of this grant of License shall be to the sole account of the Licensor.

3. **Covenants of Licensor**

- 3.1. The Licensor shall, at the Licensee’s expense, make applications, as requested by the Licensee to register or record the Licensee as a permissible user or licensee of the Trademarks as may be required under the applicable Law and shall execute such other documents as may be necessary to implement such applications, including the entry into further confirmatory and recordable registered user agreements within the terms hereof.
- 3.2. The Licensor shall deliver to the Licensee, the details and copies of any communication from Governmental Authorities or Third Parties in relation to the Trademarks, which will or could reasonably be expected to have an impact on the utilization of the Trademarks by the Licensee in accordance with the terms of the Agreement, as soon as practicable and in any event within 5 (five) Business Days from the date of receipt of such correspondence by the Licensor.
- 3.3. The Licensor shall deliver to the Licensee, the details of any investigation, litigation or notice alleging or actual violation of applicable Law, dispute which will or could reasonably be expected to have an impact on the on the utilization of the Trademarks by the Licensee in accordance with the terms of the Agreement, as soon as practicable and in

any event within 5 (five) Business Days from the date of receipt of such correspondence by the Licensors.

4. **Covenants of Licensee**

4.1. The Licensee further undertakes not to:

- (i) take any action to contest the validity of or right or title to the Trademarks of (a) the Licensors or, (b) any of the Licensors's Affiliates or (c) any Persons to whom the Licensors has granted licenses, and details of which Persons have been intimated to the Licensee (collectively, "**Licensed Users**"), and not at any time take any action which might impair the rights of the Licensed Users nor object to the use of the Trademarks by any of the Licensed Users;
- (ii) challenge, or to assist others in challenging, the validity of the Trademarks or to dispute Licensors's ownership and registration thereof; and
- (iii) ensure that none of its Affiliates, shall during the Term of this License, without the Licensors's prior written approval, directly or indirectly use the Trademarks for any purpose other than as permitted under this License.

5. **Infringement Scenario**

- 5.1. In the event that a suit, action or other proceeding involving any claim of Trademark infringement, dilution or similar claim is threatened or instituted against the Licensee by a third party based on its use of any of the Trademarks, the Licensee shall as soon as reasonably practicable and in any case within 30 (thirty) Business Days inform the Licensors thereof and transmit all documents and other information relating to such suit, action or proceeding to the Licensors.
- 5.2. The Licensors shall control the defence of such suit, action or proceeding at its own cost and expense. The Licensee shall provide all assistance reasonably requested by the Licensors in the defence of such suit.
- 5.3. If the Licensee becomes aware of any infringement, actual or suspected, or any other unauthorized use of the Trademarks (or any of them), the Licensee shall promptly give notice to the Licensors in writing, specifying the particulars of such use and in any case within 30 (thirty) Business Days. The Licensors shall have the right, at its own cost, to prosecute or otherwise stop or prevent such actual or threatened infringement in its own name. Any recovery or compensation that may be awarded as a result of such action shall belong to the Licensors.

6. **Term and Termination**

- 6.1. The License shall remain valid for a period of 24 (twenty four) months from the Closing Date or until Termination in accordance with paragraph 6.2 below (such term, "**License Term**").
- 6.2. The grant of License may be terminated, in the applicable Party's discretion:

- (i) by the Licensor or by the Licensee (as relevant, the “**Terminating Parties**”), after serving notice to: (a) the Licensee with a copy to HIPPL, where the Terminating Party is the Licensor; (b) the Licensor, where the Terminating Party is the Licensee (the party receiving the notice of termination, “**Non-Terminating Party**”) of the termination decision, in the following cases:
 - (a) subject to observance of the applicable Law, in case of a Non-Terminating Party filing for bankruptcy, of an agreement with creditors or of opening of reorganisation or of judicial liquidation procedures, in each case, where the Non-Terminating Party becomes unable to perform its obligations under this License; or
 - (b) in case of winding up of a Non-Terminating Party; or
 - (ii) by HIPPL or the Licensee, by provision of a prior written notice of at least 30 (thirty) days to the Licensor if:
 - (a) HIPPL or its Affiliates cease to directly or indirectly hold any partnership interest or such other ownership interest in the Licensee;
 - (b) the Licensee transfers all or any part of Project to a third party, in which case termination can be in its entirety or with respect to the part of the Project transferred;
 - (c) legal proceedings have been initiated (I) challenging Licensor’s rights in the Trademarks or (II) against the Licensor or Licensor’s Affiliates which reasonable impacts the Licensee’s rights under this License; or
 - (d) Licensee or HIPPL determines that the continued use of the Trademarks has an adverse impact on the reputation of HIPPL, Licensee or Project.
- 6.3. Without prejudice to the above, this grant of License may be terminated with mutual written consent of the Licensor and the Licensee.
- 6.4. Upon termination of this License, the Licensee shall be required to eliminate any reference to the Trademarks and stop using the Trademarks for and in relation to the Project, within a period of 90 (ninety) days from the termination and not recommence any use of the Trademarks except (i) as required by applicable Law; (ii) in a neutral, non-trademark manner to describe the history of the Project; and (iii) on internal business and legal materials.
7. **Waivers and Assurances**
- 7.1. The Licensor acknowledges that the Licensee has been utilizing the Trademarks in relation to the Project as on the Execution Date, and the Licensor:

- (i) unconditionally and irrevocably waives its rights to any and all claims, damages, or any other right that may have been accrued to it whether under any contract, or otherwise against the Licensee, on account of utilization of the Trademarks by the Licensee; and
- (ii) undertakes that it shall cooperate with the Licensee to execute and deliver, or cause to be executed and delivered, any documents and to obtain all consents required under any permit, license, contract or other instrument, and to take all such other actions as the Licensee may reasonably request the Licensor to take in relation to the utilization of the Trademarks.

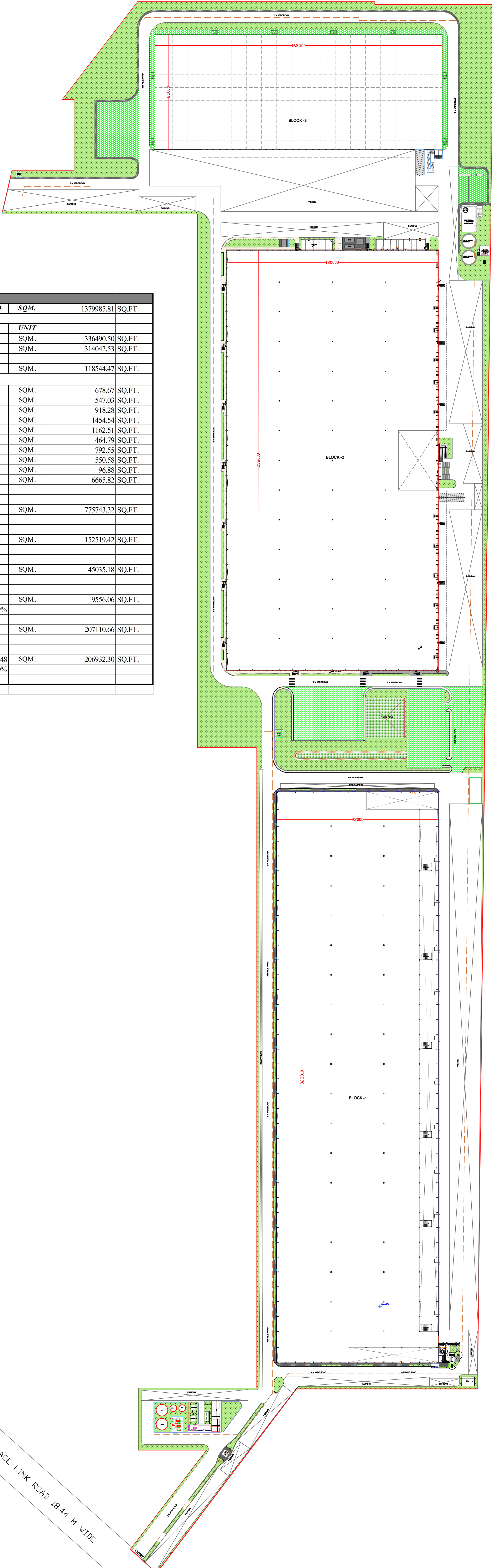
ANNEXURE G

RENT ROLL

Sl. No.	Box	Leasable Area (in sq ft)	Tenant	Lease Commencement Date	Tenure	Lock-in	Current rent (in INR/sq ft/month)	Next Escalation Date	Escalation Terms
1.	WH 1	3,68,178.339	Reliance Projects & Property Management Services Limited	February 1, 2021	9 years from Lease Commencement Date	8 years 2 months from Lease Commencement Date	18.4641	May 1, 2023	5% every year
2.	WH 2	3,30,999**	Delex Cargo India Private Limited	August 30, 2022**	9 years 11 months from 'Execution Date' (i.e. September 28, 2021)	5 years from Lease Commencement Date	17.00	Details to be specified **	5% every year after completion of 2 years from Lease Commencement Date

** - On the assumption that the DP World Lease Addendum shall be executed as per the terms proposed by the LLP

ANNEXURE D1



NET PLOT AREA		AREA DETAIL			
		128205.81	SQM.	1379985.81	SQ.FT.
S. NO.	DESCRIPTION	AREA	UNIT		
1	WAREHOUSE 01 COVERAGE AREA	31260.73	SQM.	336490.50	SQ.FT.
2	WAREHOUSE 02 COVERAGE AREA	29175.26	SQM.	314042.53	SQ.FT.
3	PROPOSED WAREHOUSE 03 COVERAGE AREA	11013.05	SQM.	118544.47	SQ.FT.
ANCILLARY					
4	PUMP ROOM-01	63.05	SQM.	678.67	SQ.FT.
5	DRIVER ROOM-01	50.82	SQM.	547.03	SQ.FT.
6	HTVCP PANEL	85.31	SQM.	918.28	SQ.FT.
7	PUMP ROOM-02	135.13	SQM.	1454.54	SQ.FT.
8	L.T. PANEL	108.00	SQM.	1163.51	SQ.FT.
9	WASHING AREA	43.18	SQM.	464.79	SQ.FT.
10	SCRAP ROOM	73.63	SQM.	792.53	SQ.FT.
11	TOILET	51.15	SQM.	550.58	SQ.FT.
12	GUARD-1	9.00	SQM.	96.88	SQ.FT.
	TOTAL	619.27	SQM.	6665.82	SQ.FT.
14	TOTAL GROUND COVERAGE	72068.31	SQM.	775743.32	SQ.FT.
		56.21%			
15	GREEN AREA AS/SITE	14169.40	SQM.	152519.42	SQ.FT.
		11.05%			
16	AREA UNDER GREEN PAVER	4183.87	SQM.	45035.18	SQ.FT.
		3.26%			
17	ADDITIONAL GREEN FOR BLOCK-03	887.78	SQM.	9556.06	SQ.FT.
		0.69%			
18	TOTAL GREEN + GREEN PAVER+ADDL GREEN	19241.05	SQM.	207110.66	SQ.FT.
		15.01%			
19	TOTAL PARKING	19224.48	SQM.	206932.30	SQ.FT.
		15.00%			

[illegible]